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GRAMDAN MOVEMENT

A HANDBOOK



श्रीलंका, पुस्तकालय
श्रीलंका
1668
स्नान कक्षा

GOVERNMENT OF INDIA

PLANNING COMMISSION

NEW DELHI

CONTENTS

	PAGES
1. Bhoodan	I
2. Gramdan	4
3. Draft Gramdan Bill	9
4. Sulabh Gramdan	13
5. Model Gramdan Bill	21
6. Socio-economic Development	29
7. Wardha Pilot Project	29
8. Annexures	31

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FOREWORD

The Gramdan movement initiated by Acharya Vinoba Bhave aims at the furtherance of Community life and creates a psychological climate for the solution of the land problem. Its essential features are its non-violent technique, voluntary character and sharing of wealth and income.

The Yelwel conference held in September, 1957 and attended by the representatives of the Government of India, State Governments and various political parties, had expressed their full appreciation of the movement and their desire to help it. The conference had also appealed to all sections of the people to give their enthusiastic support to it. It was further pointed out at the conference that closest cooperation was desirable between the community development movement and the gramdan movement. The object in bringing out this brochure is to set out briefly in one place the various steps which have been taken by the government to promote the smooth progress of the movement and to find solutions to the various problems which have arisen from time to time in the course of its development.

It is hoped that this handbook on gramdan would be found useful by both official as well as non-official workers engaged in this movement.

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Dated 15th November, 1964.

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BHOODAN

1. *Introductory*.—The ideals of Liberty, Equality and Fraternity have acquired new dimensions in the present century. The systems of land holding which prevail in most under-developed or developing countries—the mal-distribution of land and the complexity in the tenurial conditions—present perhaps the greatest hurdle to the propagation and achievements of these ideals in the rural areas. The bhoodan and gramdan movements represent a non-violent approach to the solution of this complicated problem.

2. The bhoodan movement which is the precursor of the gramdan movement was started on 15th April, 1951 in the Telengana area of Andhra Pradesh when it was in a state of turmoil due to a conflict between landowners, the landless and the tenants. It was initiated by Acharya Vinoba Bhave and nurtured by the Akhil Bharat Sarva Seva Sangh. Broadly speaking, the movement seeks to redress social injustice by arousing the conscience of the people and thus to bring about a moral revolution for the establishment of a new social order based on *Sarvodaya* ideals. It attempts a peaceful and voluntary solution of the land problem by a more equitable distribution of land.

3. In its practical application, it takes the form of asking for voluntary donations of land for re-distribution among the landless people. Such donations as are offered are received freely not only from large and middle owners, but also from small owners.

4. In the non-agricultural sector, the movement has spread out in various forms such as *Sampatidan* (donations of money or such other resources), *Buddhidan* and *Jivandan* (dedication of one's mental abilities and life to the achievements of *Sarvodaya* ideals) etc. These movements, apart from their wider implications of an all-embracing reorganisation of the social and economic pattern, were aimed at strengthening the bhoodan movement by making available a number of dedicated workers and some resources in money and materials for giving assistance to the poor and the landless who were settled on bhoodan lands.

5. The bhoodan movement spread all over the country. 42,27,476 acres of land were donated in bhoodan by large, medium and small holders alike up to March 31, 1964. The

lands donated included cultivated lands, culturable wastelands, and in some cases, uncultivable lands also. It is estimated that about two-third of this area is either cultivated or is culturable waste available for re-distribution. The remaining 1/3rd is either uncultivated land or is disputed land. 10,70,000 acres have been distributed up to March 31, 1964 as follows :—

Serial No.	State	Lands donated	Lands distributed
1.	Andhra	241952	102033
2.	Assam	11935	265
3.	Bihar	2132772	..
4.	Gujarat	103530	50984
5.	Jammu & Kashmir	5	5
6.	Kerala	26293	5774
7.	Madras	80433	21519
8.	Madhya Pradesh	404662	139988
9.	Maharashtra	150394	102212
10.	Mysore	20086	3123
11.	Orissa	157460	51102
12.	Punjab	14739	3601
13.	Rajasthan	430437	97774
14.	Uttar Pradesh	434351	207590
15.	West Bengal	12887	3825
16.	Delhi	300	180
17.	Himachal Pradesh	5240	2531
TOTAL		4227476	1070166

6. It needs to be stated that the donations are received by the bhoodan workers under the overall guidance of the Akhil Bharat Sarva Seva Sangh after the *Dan patras* are duly filled in and signed by the donors. The distribution of lands is also carried out by the bhoodan workers. The government does not come into the picture in either case except to the extent it helps in providing the necessary legislative framework for the verification of donations and distribution of lands, and in some cases, financial assistance to be given to the landless allottees.

7. The distribution of these lands was beset with several difficulties. The transfer of donations in bhoodan had to be verified. A sizeable area required to be reclaimed before it could be brought under cultivation. The landless persons to whom the lands were being distributed did not possess the wherewithal of cultivation. A mere allotment of land to them could not, therefore, suffice unless it was accompanied by necessary financial assistance. In all these, active cooperation of the state governments was required. Most states have enacted legislation or framed rules under the existing laws in this connection. Legislation on bhoodan has been enacted in the States of Bihar, Gujarat, Jammu and Kashmir, Madras, Maharashtra, Madhya Pradesh, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal and Himachal Pradesh. Special Rules have been provided for the distribution of bhoodan lands in Kerala and in Gujarat (excluding Saurashtra). These laws and rules provide for the setting up of State Bhoodan Boards, verification of donations, transfer of lands in favour of the bhoodan boards and for streamlining the procedures for allotment of land to the landless persons. The members constituting the bhoodan boards are nominated by Acharya Vinoba Bhave. The boards usually include the minister concerned and the prominent workers in the field of bhoodan from the state as member. All transfers of bhoodan lands and their subsequent allotment to landless persons are exempted from stamp duty and registration charges.

8. The verification and certification of donations by the state agency is, however, apt to take time. To facilitate early distribution of donated lands, Acharya Vinobha Bhave decided that donors might nominate the allottees and transfer lands to them under intimation to the bhoodan boards and the Government.

9. State governments have also contributed financial assistance in the form of *ad hoc* grants to the bhoodan samitis towards the cost of administration. The assistance given by state governments from 1955-56 to 1960-61 is set out in *Annexure I*. (p. 31).

10. Several schemes of settlement on bhoodan lands were sanctioned by the government of India. During the second plan, in Bihar a scheme for cooperative settlement of 250 families on sizeable blocks of lands at a cost of 25 lakhs and another for the settlement of 10,000 families on individual basis at a cost of Rs. 30 lakhs were sanctioned. The bulk of these

allotments have been utilised and about 15,000 families provided assistance out of this fund. During the third plan so far one scheme in Bihar and another in Kerala have been sanctioned by the Government of India. These two schemes envisaged the settlement of 1,500 families on bhoodan lands. The details of these schemes are in *Annexure II* (pp. 32-3). In Madhya Pradesh colonisation of 20 harijan families in Kanti colony, district Shivpuri on bhoodan lands was undertaken in the year 1962. Eighteen families have been settled so far.

GRAMDAN

11. The bhoodan movement asking for gifts of portions of lands soon developed into a movement asking for one-sixth share in holdings and then widened into gramdan asking for complete surrender of property rights in lands in favour of the village community. Mangroth in Uttar Pradesh was the first village to be given in gramdan. In Orissa, the gramdan movement assumed mass proportions, particularly among the *adivasis* of district Koraput during Acharya Vinoba Bhave's *Pad Yatra* (foot march) through the state in 1955. In the next phase, more advanced and prosperous villages of Madras, Maharashtra and Kerala also joined the movement in considerable numbers. By March 31, 1964, 6807 villages were given in gramdan as follows :—

No.	Name of State	No. of Gramdan Villages
1.	Andhra	651
2.	Assam	966
3.	Bihar	121
4.	Gujarat	164
5.	Jammu & Kashmir	...
6.	Kerala	559
7.	Madras	254
8.	Madhya Pradesh	191
9.	Maharashtra	790
10.	Mysore	58
11.	Orissa	2405
12.	Punjab	6
13.	Rajasthan	234
14.	Uttar Pradesh	56
15.	West Bengal	347
16.	Delhi	1
17.	Himachal Pradesh	4
TOTAL		6807

12. *Concept of Gramdan.*—The ultimate goal of the gramdan movement is *Gram Raj* as conceived by Mahatma Gandhi. It is based on the concept that a village community as a whole constitutes a big family. Love and non-violence will be the basis of all acts of the community. Cooperation and equitable sharing together will be its guiding principles. The lands in a village would be common property, or rather more exactly, property held in trust by the village community on behalf of God. All the persons in the community, irrespective of age or sex, caste or creed, constitute one body—*Gram Samaj*. The adults (men and women) in the community would form the *Gram Sabha* (the village parliament) managing the lands and the multifarious affairs of the community on its behalf.

13. Gramdan, like bhoodan is a purely voluntary non-official movement. Again, as in the case of bhoodan, the organisation which promotes this movement is the All India Sarva Seva Sangh. The governmental agency is not involved in the propagation of the movement. And yet gramdan and bhoodan could play an important role in schemes of national development and the approach implicit in them formed part of a wider approach for which, among other things, community development was an important means. As stated by the late Prime Minister, Pandit Jawaharlal Nehru at the Development Commissioners' Conference at Mussoorie on 29th April, 1957, "The bhoodan movement has great significance for what it had achieved and for the new psychology it creates about land and land holdings and about the terrific passion for private possession of land. The gramdan villages offered the best chance of putting the idea of cooperative endeavour into effect in view of the fact that the usual difficulties arising out of the individual ownership of land did not obtain there."

14. For these considerations and in view of the fact that the movement had an intimate bearing on improving the conditions of the weaker sections of the community it was necessary for the government to help these movements to success. Early in 1957, the Planning Commission arranged a study of the gramdan villages in district Koraput (Orissa) which had the largest number of gramdan villages, by one of its officers with a view to determining the directions in which the government action would be most fruitful (*Annexure III* pp. 34-47).

15. *Yelwel Conference.*—At the invitation of the Sarva Seva Sangh, a Gramdan Conference representative of all parties was held on September 21-22, 1957 at Yelwel in Mysore State. The Rashtrapati graced the conference with his presence. Others who attended the conference included the Prime

Minister, the Home Minister, the Planning Minister, the Minister of Food and Agriculture and the representatives of various political parties.

16. Acharya Vinobhaji explained to the conference how he came to adopt the non-violent technique for the solution of socio-economic problems, specially the land problem. Beginning with voluntary land gifts, the movement developed and reached the stage of gramdan, that is, the gift of the entire village to the village community. More than 3,000 villages have thus far been voluntarily offered as gramdan to the village community by the people concerned, who have thereby relinquished their private ownership in land.

17. The participants in the conference welcomed this gramdan movement and expressed their high appreciation of the objectives underlying it. This would lead to a fuller development of cooperative life and effort in the village concerned and would also result in the economic betterment of the people of these villages and all round progress and development. It would further create the psychological climate all over India for the solution of the land problem and for the furtherance of cooperative life. The essential feature of this movement was the non-violent technique adopted and its voluntary character. Thus, the ethical approach was combined with practical economic advantages and the development of a social order based on cooperation and self-help. Such a movement deserves every kind of help and encouragement.

18. The members of the central and state governments, who were present, while expressing their full appreciation of the gramdan movement and their desire to help it, pointed out that the government concerned would have to proceed with their schemes of land reforms which were based on the abolition of all intermediate interests in land, the limitation of holdings, and the promotion of the cooperative movement in all its phases with the consent of the people concerned. This governmental approach was not in conflict with the gramdan movement and would indeed be helped by it.

19. It was further pointed out that closest cooperation was desirable between the community development movement and the gramdan movement.

20. At the conclusion of its two days' deliberations, the conference expressed its high appreciation of Vinobhaji's mission and his efforts to solve national and social problems by non-violent and cooperative methods, and appeals to all sections of the Indian people to give this mission their enthusiastic support.

21. *Gramdan and Community Development.*—In pursuance of the suggestions made at the All Parties Conference at Yelweli regarding the desirability of coordination between gramdan and community development movements, the Minister of Community Development held preliminary discussions with Shri Jayaprakash Narayan on 17th and 18th November, 1957. One of the important points which emerged from the discussion was that there was need for a fuller understanding of the philosophy, objectives and methods of the working of the community development movement among the workers of the gramdan movement and those of the gramdan movement among the workers of the community development movement. This was followed by discussions between the representatives of Sarva Seva Sangh and the Ministry of Community Development from 15th to 19th December, 1957.

22. A broad framework of the approach to the problem indicating such basic objectives and methods of work and procedure as would ensure coordination between the two movements was prepared and is set out in *Annexure IV* (pp. 48–55). It was considered later at an informal meeting attended by the late Prime Minister, Pandit Jawaharlal Nehru, the Minister of Community Development and the leaders of Sarva Seva Sangh.

23. As a result of these discussions, it was agreed that the essential common objectives of the two movements would be to promote the all-sided development of the village community, including their economic, social, cultural and moral development and, in particular,

- (a) to develop a spirit of community life among the people by promoting cooperation and mutual sharing, leading ultimately to a voluntary ownership of the basic means of production, such as lands, and fulfilment by the village community of responsibility for the welfare, employment and livelihood of all members,
- (b) to make the village self-sufficient, in the primary needs of life, such as food, clothing and shelter and to promote the development of each village along with the development of local area of which it forms a part, and
- (c) to develop self-reliance in the individual and initiative in the community so that the people are able to manage and run their affairs themselves and make the villages self-governing units of the larger Indian democracy.

24. It was also decided that the development of gramdan villages would be the responsibility of the extension organisations of the government, but the extension officers selected for work in such villages would be given a special orientation. The extension organisation would be fully assisted by the Sarva Seva Sangh.

25. A number of steps were suggested to bring about co-ordination between gramdan and community development movements :—

- (i) A special seminar should be arranged of the top level workers of both the movements.
- (ii) Sarva Seva Sangh workers would participate in seminars organised by the Ministry of Community Development and the state governments.
- (iii) All the key personnel working on the community development programme should be given a special training which should form a part of the syllabus of the training centres.
- (iv) A complete set of bhoodan literature both in the local language and in english should be supplied to each block headquarters library for the officers to read and discuss in their study circles. The Ministry of Community Development will pay for this.
- (v) A forum should be provided in the journals of the Sarva Seva Sangh and in the 'Kurukshetra' for discussion on field problems of workers of both movements. Further, the weekly magazine in english and the regional languages of the Sarva Seva Sangh should be supplied to all block headquarters and to the training centres of the ministry, at the cost of the ministry.

26. To study and find suitable solutions to the problems arising out of gramdan such as cooperative credit, panchayats, changes necessary in relevant legislations, a meeting was convened on the 17th and 18th March, 1958 where representatives of Sarva Seva Sangh and of the concerned ministries and Planning Commission were present and two working groups were appointed to formulate proposals. The working groups which met from 6th to 8th May, 1957 made concrete proposals on some of the issues namely definition of gramdan, composition of gram sabha, organisation of cooperatives and gram sabha,

programme for the gramdan villages, resources etc. The objectives of the two movements and the various recommendations of the working groups were later considered and approved at the Annual Conference of Community Development held at Mount Abu from May 20 to 24, 1958.

27. Following these discussions, pilot projects were taken up in selected areas with a view to furthering the agro-industrial development of gramdan villages and the fulfilment of other social objectives. To review the working of the joint programme in these pilot projects from time to time, to pool the experience gained in different States and to suggest remedies to the problems that might arise in the course of the implementation of the joint programme, the Government of India in consultation with the Sangh and the state governments set up in April 1962 a National Advisory Committee for collaboration with the Sangh comprising representatives of the Sangh, the state governments and the Ministry of Community Development and Cooperation. (Chairman—the Minister for Community Development and Cooperation). The National Advisory Committee met on June 25, 1962 and reviewed the work done in the pilot projects. The question of reconstituting the committee is under consideration.

28. Similar Committees were set up in the states of Andhra Pradesh, Bihar, Orissa, Rajasthan and Uttar Pradesh for collaboration with the Akhil Bharat Sarva Seva Sangh.

DRAFT GRAMDAN BILL

29. Gramdan gave rise to complicated legal, organisational and administrative issues. In December, 1958, the Planning Commission constituted a working group including representatives of the Sarva Seva Sangh, the Ministries of Community Development, Food and Agriculture and Law and the Planning Commission to review these problems and suggest a suitable legislation which would provide a legal frame-work for the constitution and management of gramdan villages.

The following suggestions emerged from the deliberation of the working group :—

- (i) Any person who holds land directly under government might join gramdan. A tenant might join if he holds permanent rights. In either case the person joining the gramdan must donate his entire land. A landless adult person residing in the village might also join by making a declaration of his desire to participate in the gramdan community.

(ii) A village could be declared gramdan if the following conditions were satisfied :

- (a) Gramdan declarations must be confirmed in respect of 50 per cent of the total land held under private ownership in the village;
- (b) not less than 80 per cent of the total number of persons owning land and residing in the village must join; and
- (c) not less than 80 per cent of the adults residing in the village must also join.

30. In this connection, the question arose how "village" should be defined for the purposes of gramdan. In India, the familiar concept is that of a "revenue village" which is conceptually an administrative unit rather than a community. Such a village might include a number of hamlets or communities owning or cultivating lands comprised in it. It was felt that a hamlet or a habitation popularly known as *tola*, *para* or by such other name which constitutes a homogeneous, living community should be the unit for gramdan so that if the prescribed conditions in respect of such hamlet or community were satisfied, it should be declared as a gramdan village.

- (iii) The land donated in gramdan should be vested in the gram sabha which should be a corporate body representing the village community, consisting of all adult residents and the persons owning lands in the village.

31. An important point to be noted in this connection is that only such of the lands would be vested in the community as belonged to persons who joined gramdan by making voluntary donations. Any person who did not join would retain all his rights in the lands, and yet he would be entitled to participate fully in the deliberations and the management of lands and properties of the village community as a member of the gram sabha.

- (iv) The lands vested in the gram sabha might be cultivated directly by the sabha itself or might be allotted to the residents of the gramdan village, including those who had donated lands and other who were landless, either singly or jointly, on such terms and conditions as might be determined by the gram sabha. Where individual allotments were made, the allottees were not to have heritable or transferable interests in the lands so

allotted so that periodical re-distribution of lands on an equitable basis was not impeded.

(v) The gram sabha should, in addition to the management of the lands vested in it, also undertake development functions as well as administrative functions which were concurrently performed by the village panchayats of the area.

(vi) In the management of lands and village affairs, the decisions of the gram sabha should, as far as possible be based on unanimity or near-unanimity.

32. The above conclusions were incorporated in a draft Gramdan Bill which was forwarded to all state governments for adoption with suitable modifications with reference to local laws and tenures and in response to local conditions and needs

33. *Agricultural Credit*.—A difficulty which the gramdan Villages came to face was lack of timely and adequate supply of credit for production and other purposes. The normal source of credit, from money-lenders, traders and others was not available as the lands given in gramdan had ceased to be transferable and could not, therefore, be mortgaged or sold in the execution of decree for recovery of debt. For the same reasons the cooperative financing agencies were also not able to provide medium or long term loans. Even the short term crop loans by cooperatives became scarce in gramdan villages as the cooperatives were not prepared to take the risk without the land security. The gram sabhas in which the lands had vested could not raise loans either as there was no market for the gramdan lands. It was recognised, therefore, that ordinary rules of credit would not apply to gramdan villages and development of special institution would be necessary. It was felt that as an ultimate objective, the gram sabhas in gramdan villages should be enabled to act on behalf of the persons joining the gramdan as well as other people in the village who do not join, for providing short, medium and long term loans and for that purpose the gram sabhas should be linked up with other cooperative institutions and subjected to the procedures and discipline applicable to cooperative institutions; setting up two different institutions in the same village, a gram sabha on the one hand and a cooperative organisation on the other might lead to difficulties.

34. To meet the immediate requirements of gramdan villages, the Government of India have, in consultation with the Planning Commission, earmarked a sum of one crore of

rupees for gramdan village out of Rs. 8 crores allotted in the third plan for settlement schemes relating to landless labour. 80 per cent of the assistance is available in the form of loans and 20 per cent in the form of subsidies. The central government provides the entire amount to the state governments, except the expenditure on reclamation of lands which is shared equally between the state and the centre. The special scheme was communicated to the states on 4th February, 1963.

35. Financial assistance under the scheme is available for purposes that have a direct bearing on agricultural production, namely

- (a) short and medium term loans for implementation of the production programme;
- (b) where necessary, loans and subsidy, according to the pattern of settlement of landless labour, cooperative schemes etc. for the items mentioned below :
 - (i) land reclamation;
 - (ii) land improvements including lay out, contour bunding, fencing, construction of wells and improvement of irrigational facilities;
 - (iii) purchase of bullocks, carts, agricultural implements, seeds, fertilisers etc. essential for improved agricultural production;
 - (iv) construction of cattle sheds and godowns.

36. Assistance under this scheme is given to the state governments who are to work out suitable arrangements for utilisation of the assistance in consultation with the State Bhoodan Yagna Samiti or the State Level Advisory Committee for collaboration with Akhil Bharat Sarva Seva Sangh. Instructions issued by the Ministry of Community Development and Corporation are contained in *Annexure V* (pp. 56-65). The responsibility for their proper utilisation and recovery rests with the state governments. This fund is to be utilised for short and medium term loans for implementation of production programme and schemes of land improvement.

37. The assistance out of Rs. 1 crore is available to state governments over and above the plan ceiling. Rs. 21.14 lakh were utilised by 1963-64 by nine states (Rs. 14 lakhs through

cooperatives in gramdan villages and the rest through gram sabhas) as follows :—

State	Amount (Rs.lakhs)
1. Assam	4.00
2. Bihar	3.09
3. Gujarat	2.00
4. Madras	1.76
5. Maharashtra	2.00
6. Mysore	0.74
7. Orissa	1.60
8. Rajasthan	5.28
9. Uttar Pradesh	0.68
TOTAL	21.15

For the year 1964-65 a tentative provision of Rs. 25 lakhs has been made. The state-wise break-up is given in *Annexure VI* (p. 66).

38. Although it was generally agreed that special institutions would be necessary for gramdan villages for the provision of agricultural credit, it was recognised that any scheme of agricultural credit for gramdan villages would have to fit into the overall rural credit structure. There was also the problem of long term loans which could be given generally on the security of land only, necessitating hypothecation of lands vested in the community. There was also the question of providing necessary safeguards for recovery of loans. Besides, there was the problem of re-conciliation of old debts. With the vesting of ownership in gram sabhas, old debts were creating both an economic and a social problem.

SULABH GRAMDAN

39. The gramdan workers had to face another major difficulty in the matter of re-distribution of lands. A person who joined gramdan movement had to surrender not only the ownership of his lands but also the possession thereof to the gram sabha, which had the right to re-distribute lands equitably among all the participants, the large, medium and small holders and the landless alike with the object of achieving equality as far as possible. The participants though willing

to surrender ownership of their entire holdings and also to part with possession of a portion of their holdings were generally reluctant to accept at this stage that degree of equality which the re-distribution of the entire land would have involved. In practice, therefore, re-distribution on an equal basis took place hardly anywhere. In the course of years it was also found that though the gramdan movement was an experiment in non-violent socio-economic revolution, it had given a certain amount of fright to those who had larger holdings. It was felt that for the success of the movement it would be desirable to involve them and bring them into it and it became necessary, therefore, to allay their fears and to assure them that the movement was not aimed at their interest. In the circumstances the concept of gramdan had to be modified to bring it into accord with the realities of the situation. A new concept of *Sulabh Gramdan* was accordingly evolved. A distinction was made between 'ownership' and 'possession' of lands. It was felt that a person joining gramdan must surrender ownership in respect of his entire lands in the village. He might not, however, surrender the possession of the entire area. The minimum area to be surrendered was fixed at 1/20th of the total lands owned by him. The rights and liabilities of the donor joining gramdan in respect of the 19/20th of the lands of which he retains the possession had to be considered and defined.

40. Some other questions which needed further consideration related to (1) expeditious verification of gramdan and bhoodan donations, (2) greater coordination between the gramdan and the community development movement, (3) agro-industrial development of gramdan villages, (4) trained cadre of gramdan workers and (5) enactment of necessary legislation to provide a framework for the new concept of *Sulabh Gramdan*.

41. To consider these and other related matters, the Planning Commission convened a Gramdan Conference on November 2-3, 1963 in consultation with the Akhil Bharat Sarva Seva Sangh. The conference was presided over by Shri Shriman Narayan, Member (Agriculture), Planning Commission. Representatives of various central ministries and state governments concerned with related matters were also invited. Shri Jayaprakash Narayan also attended the conference as a special invitee. A summary of discussions at the conference is set out in the *Annexure VII* (pp. 67-94). The relevant conclusions and suggestions of the conference relating to gramdan and bhoodan were as follows:--

42. *Gramdan.* (i) Those states which have not yet enacted gramdan legislation may kindly do so at an early date. The legislation should include comprehensive provision for the verification and establishment of gramdan villages, the constitution of gram sabhas and their functions. It would be desirable to consult the Sarva Seva Sangh or the leading workers of the gramdan and bhoodan movement in the state before preparing the draft legislation. The legislation may either be in the form of a separate Act or in the form of amendment to the bhoodan legislation. The Planning Commission would get in touch with the chief ministers concerned for expediting the gramdan legislation particularly those states where a good number of gramdans have taken place.

(ii) Even where gramdan legislation has been passed, considerable time is taken in the verification and declaration of gramdan villages. The state governments are requested to expedite these procedures for enabling these villages to undertake developmental activities without loss of time.

(iii) Special attention should be given to the formation of cooperative joint farming societies in gramdan villages.

(iv) While implementing various plan schemes connected with intensive agriculture, cattle development, rural industries, rural works programme and the village volunteer force, special attention should be devottd to the gramdan areas which evince a spirit of self-reliance, community effort and mutual co-operation.

(v) In order to place the gramdan movement on a sound footing it is essential to train a large number of constructive workers who could guide a group of gramdan villages in their areas. While the training should be organised by the Sarva Seva Sangh and other non-official agencies, the government should be willing to extend the necessary financial assistance for the purpose.

(vi) A quick survey of the gramdan villages in different States should be conducted in order to give to the government and the people fuller information about the socio-economic conditions of these villages.

(vii) The Panchayati Raj institutions should take active interest in the promotion and development of the gramdan movement which contains immense potentialities for the solution of difficult problems relating to higher production, full employment and for ensuring minimum living standards to the weaker sections of the population.

(viii) It is essential to provide adequate credit facilities to the gramdan villages for developmental purposes. Wherever Gramdan Acts have been adopted, it would no longer be necessary for the gramdan villages to form separate cooperative societies for securing credit facilities including taccavi loans from the state governments. In other cases, the cooperative departments should take steps to register cooperative societies in gramdan areas expeditiously. Wherever necessary, additional staff may be appointed for the purpose.

(ix) In states where gram sabhas have not been constituted as statutory bodies under the relevant Act, financial assistance can be given through cooperative societies (which should be quickly registered and enrolled as members of cooperative banks).

(x) During the interim period, state governments should advance necessary funds (available from the centrally sponsored scheme of Rs. 1 crore) to the State Bhoodan Yagna Samiti (which is a statutory body) for meeting the needs of gram sabhas in cases where they are satisfied that the gram sabhas have been duly constituted and are able to function. The statutory liability for recovery of such loans and payment to government will, however, rest upon the State Bhoodan Yagna Samiti.

(xi) As regards the scaling down of old debts in the gramdan villages, it would be desirable to persuade the creditors on a voluntary basis to rationalise their accounts. The special gramdan funds which are being advanced by the centre to the state governments could also be used for the payment of their old loans by the gram sabhas. The gram sabhas would, in turn, recover the loans from the farmers and pay back to the government in due course.

(xii) Akhil Bharat Sarva Seva Sangh may consider the question of evolving suitable arrangements for debt conciliation on a voluntary basis. They may also consider whether it would be desirable to utilise Debt Conciliation Boards wherever they exist. The question would be examined further on receipt of the recommendations of the Sangh.

(xiii) Government lands in gramdan villages, should be handed over to the gram sabha instead of being distributed to individual landless workers on specified conditions.

(xiv) It would perhaps be desirable to select about a dozen districts in the country for the intensive development of the gramdan villages for a period of two years or so. The experience gained in these intensive areas could then be multiplied quickly in other districts.

(xv) In opening new tribal development blocks, preference should be given to gramdan villages.

(xvi) For ensuring adequate supplies of credit for gram sabhas through various channels such as taccavi, cooperative funds and special government aid, it is necessary to consider the sanctions which may be applied in cases where the persons to whom loans have been granted default payment. In this connection a suggestion was made that ultimately it might be necessary to make provisions for lands held in gramdan villages being hypothecated as security for loans. This question needs further examination in consultation with the Akhil Bharat Sarva Seva Sangh. On receipt of the recommendations of the Sangh, the question could be examined further in the Planning Commission.

(xvii) A suggestion was made that a Commission or a Corporation should be established at national level (on the lines of the Khadi and Village Industries Commission) which should be responsible for ensuring progress of gramdan villages and bhoodan lands and for making necessary provisions for supply of funds to them. This suggestion should be examined further in the Planning Commission in consultation with Sarva Seva Sangh and the ministries concerned.

43. *Bhoodan.* (i) Out of the total area of land donated in Bhoodan, about 17.5 lakh acres are still to be distributed among landless agricultural workers. It is essential to make a concerted effort for the distribution of this land during the remaining period of the third plan.

(ii) There has been delay in the verification of titles in spite of special provisions made in the Bhoodan Acts. It is desirable that state governments make special arrangements for speedy registration of bhoodan lands so that the work of distribution could be expedited. Action for registration of lands which have been re-distributed should also be expedited.

(iii) In the statements regarding donation of bhoodan lands and their disposal, the number of cases in which dan patras have not been submitted to revenue agencies for verification and/or the area of land involved may also be indicated. The statement should also show the area of lands involved in cases in which a dan patra was filed but was rejected by the revenue authorities concerned.

(iv) Zila Parishads and the Panchayat Samitis should assist the Bhoodan Boards in distributing the remaining bhoodan lands in their areas.

(v) Under the centrally sponsored scheme of Rs. 7 crores., preference should be given to families to whom bhoodan lands are distributed.

(vi) It is desirable to step up the bhoodan work side by side with the gramdan movement.

(vii) Bhoodan lands which are unfit for cultivation should be distributed to landless agricultural workers for house-sites with particular regard to the needs of those among them who belong to scheduled castes or tribes. Lands which are unfit for cultivation and which cannot be utilised as house sites, should be made over to the village community for community purposes such as pastures, etc.

44. *Agricultural Credit*.—The Gramdan Conference was followed by further discussions in the Planning Commission on November, 5, 1963 with the representatives of the Sarva Seva Sangh and the Ministry of Community Development and Cooperation. The meeting discussed matters relating to agricultural credit, cadre of trained workers and the appointment of a commission or board for gramdan development (*Annexure VIII* pp. 95–98). With regard to agricultural credit it was pointed out that even where cooperative societies were formed in gramdan villages, cooperative banks were reluctant to give credit to them. It was emphasised that the Ministry of Co-operation should take necessary steps to remove this difficulty and that the gramdan workers should help in this endeavour by creating necessary public opinion. A suggestion was also made that the possibility of recognising gram sabhas in gramdan villages as cooperative societies might also be examined. Instructions issued by the Ministry of Community Development and Cooperation are at *Annexure IX* (pp. 99–105) which contains the following decisions:

- (i) Assistance may be given to cooperative societies through the central cooperative banks where the banks were willing to accept the responsibility for recovery and for repayment of the loans;
- (ii) Where the cooperative banks were not willing to accept this responsibility, financial assistance might be given directly by the state governments to primary cooperative societies that may be formed in the gramdan villages;
- (iii) In states like Assam and Rajasthan where gramdan legislation had been enacted and gram sabhas constituted as corporate bodies financial assistance under the scheme might be given to gram sabhas.

without the necessity of forming cooperative societies. This assistance could be given to the gram sabhas directly by the state governments or through the block agencies of community development, or through the agriculture or revenue departments as might be found feasible by the state government;

- (iv) In gramdan villages where gramdan legislation had not been enacted or where the legislation had been enacted but gram sabhas had not been constituted under the legislation, as corporate bodies, assistance might be given through the statutory *Bhoodan Yagna Samitis* where such samitis were satisfied that the gram sabhas had been duly constituted and were able to function. In such cases, statutory liability for recovery of such loans and their payment to the state government would rest upon the Samitis.

45. It was felt that for a long range solution to the problem of agricultural credit in gramdan villages, a provision in the law would be necessary that gramdan lands might be hypothecated as security for raising loans; and if it was found that it was not desirable to permit sale of gramdan lands in cases of default, the law might provide that instead of sale, possession of land might be taken over for a specified period until the loan was recovered from the produce of the land over a course of years. The matter was further considered at Raipur in the Prabandh Samiti (executive committee) of the Sarva Seva Sangh and later in consultation with the State Sarvodaya Mandals and Nirman Samitis and finally it was agreed that a restricted right of hypothecation of lands for securing cooperative or government loans could be provided subject to the condition that if it became necessary to put up the land for sale in case of default, such sales could be effected among the persons who had joined gramdan. It was also agreed that persons joining gramdan might be permitted to transfer lands among themselves under intimation to the gram sabha. Provisions on the above lines have been made in the revised Model Gramdan Bill to which a reference has been made subsequently.

46. *Cadre of trained workers.*—The meeting of November 5, 1963 had emphasised the need for a cadre of trained whole-time workers for expediting the processes of verification and registration of bhoodan lands and gramdan villages, the distribution of lands etc. For this purpose, a training scheme has been formulated by the Akhil Bharat Sarva Seva Sangh.

The scheme envisages training of gramdan workers at three different levels (i) area organisers, (ii) village workers, and (iii) village artisans. About 20/25 area organisers who would be incharge of the work for specified areas and would receive 3 weeks training in the study of the problems, objectivity, laws, rules and regulation, relating to or bearing upon gramdan. About 100 village workers are to be given vocational training in agriculture and allied industries, community development, poultry, fisheries etc. About 1000 village artisans, at the rate of 50 per camp, are to be trained for a week in production techniques and activities like bunding, levelling, compost making etc. The Government of India have sanctioned a sum of Rs. 35,000/- for this purpose to Akhil Bharat Sarva Seva Sangh for the year 1964-65.

47. *Commission or Board for Gramdan Development.*— At the Gramdan conference of 2-3 November, 1963, a suggestion was made for the appointment of a high powered commission or board which should be responsible for the overall development of gramdan movement and for ensuring that necessary technical and financial assistance was provided. Some difficulties were felt in this regard. Such an organisation might have the effect of isolating gramdan villages from the existing institutional framework for development, such as *Panchayati Raj* institutions and cooperative institutions etc., the development of gramdan has to be organised on a comprehensive basis taking into consideration all the aspects of development; such as agricultural development, industrial development, provision for employment, education, medicine, health etc. and a commission or board might find it difficult to take the responsibility for all these items of development; expenditure on large staff would also become necessary; and it would be difficult to dovetail the commission's work with that of other institutions and agencies for development. It was, therefore, agreed that the question might be examined further; and that meanwhile a cell might be created in the Ministry of Community Development and Cooperation for gramdan development.

48. A suggestion was also made for making the National Advisory Board for collaboration between the Akhil Bharat Sarva Seva Sangh and the Ministry of Community Development and Cooperation more broad-based by including representatives of the Khadi and Village Industries Commission, the Gandhi Nidhi, Kasturba Nidhi etc. This proposal is under the active consideration of the Ministry of Community Development and Cooperation.

49. *Reconciliation of old debts.*—In view of its bearing on future agricultural credit, matters relating to the reconciliation of old debts of gramdan donors were further considered in the Planning Commission in consultation with the Ministry of Community Development and Cooperation. Two suggestions were made in this regard, namely,

- (i) the loans given out of the centrally sponsored scheme of Rs. one crore may be permitted to be utilised for the payment of the old debts also;
- (ii) a provision may be made in the gramdan legislation enabling the gram sabha to ask for the reconciliation of the past debts on behalf of its members where legislation exists for the redumption of debts.

These suggestions are now under examination in the Ministry of Community Development and Cooperation.

MODEL GRAMDAN BILL

50. Following these deliberations and consultation a Group was constituted comprising representatives of the Akhal Bharat Sarva Seva Sangh, the Ministry of Community Development and Cooperation, the Ministry of Law and the Planning Commission to prepare a Model Gramdan Bill providing for a legal framework incorporating the decisions taken on the above deliberations. The Model Gramdan Bill was accordingly prepared and circulated to all the state governments (*Annexure X*—pp. 105–134) for their consideration and the enactment of a suitable legislation with such modifications as might be considered necessary with reference to State laws and tenures to suit local conditions and needs. The main provisions of the Bill are as follows:—

- (i) The Gramdan Bill makes a distinction between ownership and possession for purposes of gramdan donation. Any owner of land may donate by way of gramdan all his land in a village subject to the condition that he shall hold not more than 19/20th of the extent of those lands to be specified by him, as gramdan kisan. Any land donated by him earlier by way of bhoodan would be included in computing the 19/20th to be retained by him. The owner joining gramdan will thus be required to surrender the ownership of the entire area and also the possession of 1/20th of the lands as a contribution for re-distribution among the landless people of the village.
- (ii) An owner of the land who voluntarily makes the gramdan donation will also undertake to join the

gramdan community of the village and to make a periodic contribution to the gram sabha of 1/40th of his produce.

- (iii) If a landowner has leased out land and the tenant has acquired permanent rights therein, it is the tenant who would be deemed to be the owner of land for purposes of gramdan.
- (iv) Any person who does not own any land might also join gramdan by marking a declaration to that effect and agreeing to make a periodical contribution of 1/30th of his income for community purposes.
- (v) Every gramdan declaration has to be verified by a prescribed authority.
- (vi) If in a village the extent of lands in respect of which declarations have been confirmed by the prescribed authority is not less than 51 per cent of the total extent of lands owned by the resident private owners in that village, the number of persons whose declarations have been confirmed is not less than 75 per cent of the total number of persons owning land and residing in the village, and the number of adult residents of the village in respect of whom declarations have been confirmed is not less than 75 per cent of the adults residing in the village, such a village shall be declared to be a gramdan village.
- (vii) The effect of declaration as a gramdan village will be as follows:—
 - (a) the landowner in respect of 19/20th of his land retained by him become a *gramdan kisan*. The remaining 5 per cent area vests in the gram sabha free of all encumbrances. In respect of lands retained by the owner as gramdan kisan, the discharge of all encumbrances created in respect of landlord prior to the date of the declaration becomes the liability of the gram sabha. The gram sabha can recover the encumbrances for which it becomes liable from the former owner. The gram sabha has also the option to refuse to accept the donation of any lands with excessive encumbrances attached.
 - (b) all common lands in the village other than lands that may be specified by the government shall be managed by the gram sabha.

- (c) The liability for the payment of land revenue, cesses, rates and taxes in respect of lands vesting in the gram sabha shall be devolved on the gram sabha. In respect of lands in the gramdan village, which have not been donated by way of gramdan and have, therefore, not vested in the gram sabha, land revenue, cesses etc. will be recoverable by the gram sabha from the persons liable to pay the same.

The rights of the non-donors in their lands, however, remain unaffected by the declaration of a gramdan village.

- (viii) For purposes of gramdan, a village need not necessarily be a revenue village. It might consist of a part of a revenue village called hamlet, tola or para or otherwise. To meet the peculiar situations obtaining in states like Kerala, where there is a large continuing village without its sub-divisions into hamlets, it has been provided that an area comprising 20 or more contiguous dwelling houses could be declared to be a village for this purpose. It has been further provided that such part of a village on being declared a gramdan village could also be constituted as a separate revenue village. Where this is done, the common lands would be divided by metes and bounds and apportioned between the village so constituted and the remaining part of the former revenue village.

- (ix) In every gramdan village a gram sabha is to be constituted consisting of all adults who reside in the village irrespective of the fact whether a person has joined gramdan or not or have donated land by way of gramdan. The gram sabha shall be a body corporate. The gram sabha shall constitute an executive committee to exercise and discharge such powers, duties and functions as the gram sabha may prescribe. The gram sabha can also constitute standing committees or *ad hoc* committees. The business of the gram sabha is to be conducted in the manner prescribed in the regulations to be made by the gram sabha. It is visualized that the state governments can formulate model regulation for adoption by gram sabhas with such modifications as may be necessary to suit local conditions and needs. The gram sabha is to manage the lands which are vested in including the lands

which have come under its management, under activities for the welfare of the community and the members thereof and to do all other ancillary thereto. In particular the gram sabha may undertake the following functions :—

- (a) take steps to inculcate and develop in the village community the spirit of collective responsibility, mutual aid and promote to undertake or participate in cooperative activities;
- (b) take steps to promote multi-sided and integrated development of the village community;
- (c) arrange for the maintenance of destitute children and old and infirm persons;
- (d) prepare and implement schemes for the improvement of agriculture in the village and the best utilisation of lands in the village;
- (e) set apart land for community purposes;
- (f) prepare and implement schemes for the general development of the village including promotion of small scale industries therein and the proper utilisation of local resources and man-power;
- (g) allot such lands as are available for the purpose to landless persons;
- (h) prepare and implement schemes for regional self-sufficiency in articles of food, clothing and other necessities of life and to that end secure the co-operation and the assistance of the government, and other institutions or agencies operating in the village or in its neighbourhood;
- (i) promote consolidation of holdings;
- (j) grant loans to any member of the gram sabha whether an allottee of land or not, for any purpose whether agricultural or not;
- (k) take measures for improvement of lands and reclamation of wastelands and introduce improved methods of cultivation;
- (l) promote the industrial development of the village;
- (m) facilitate the elimination of unemployment in the village;

- (n) raise voluntary contribution from the village for community purposes;
 - (o) maintain the accounts of the *gram nidhi*;
 - (p) prepare and maintain village records including register giving details of land holdings in the possession of persons under the gram sabha;
 - (q) raise a village peace force or *Shanti Dal* for the maintenance of peace in the village for peaceful means; and
 - (r) perform such other functions and duties and exercise such other powers as may from time to time be prescribed.
- (x) The gram sabha might also be empowered to function as a panchayat for the village and as such exercise all or any of the powers and discharge all or any of the functions of the panchayat as may be specified by the government in relation to the area within the jurisdiction of the gram sabha.
- (xi) The Government might also establish a *gram sabha adalat* in respect of gramdan village with powers to try and dispose of any dispute of a civil nature between the residents of the gramdan village which the parties have by a written agreement referred to the gram sabha adalat for decision. The gram sabha adalat may also try any criminal cases other than a case involving an offence which is not compoundable or which is compoundable only with the permission of the court.
- (xii) The rights and liabilities of the gramdan kisan have been set out in the Bill. In the lands retained by him, the gramdan kisan has permanent, heritable rights. His right of transfer is restricted. He can transfer his interest in the land or any part thereof to any other person who had joined gramdan. He may also hypothecate his interest in favour of the government or any other public institution for securing payment of any money borrowed from them. These transfers can be made under intimation to the gram sabha. The prior approval of the gram sabha is not necessary. He may also surrender his interest in the land to the gram sabha for consideration. Transfer of interest in any land to a person who has not joined gramdan is not permitted.

- (xiii) The gramdan kisan can be evicted for failure to pay his contribution or dues of the gram sabha, for making a transfer contrary to the above provisions or for failure to cultivate the land for two consecutive years. A gram sabha seeking to evict a gramdan kisan has to get permission from the prescribed authority.
- (xiv) The rights of the gramdan kisan in respect of lands retained by him cannot be modified without his agreement.
- (xv) A gram sabha is required to constitute a land pool consisting of all the lands donated by way of gramdan and of which possession has been transferred to the gram sabha (*i.e.* the 1/20th area) and all other lands donated by way of bhoodan. Out of the land pool the gram sabha may allot land to any person or a group of landless persons residing in the village for individual or joint cultivation as the allottees may voluntarily agree upon. The rights of the allottee in the land allotted to them are broadly the same as the rights of the gramdan kisan with this difference that an allottee can transfer his lands to the extent permitted to the gramdan kisan, with the prior approval of the gram sabha. Any dispute with regard to the allotment of lands has to be referred by the gram sabha for arbitration by a court consisting of one member nominated by the applicant, one member nominated by the gram sabha and one member nominated jointly by the gram sabha and the applicant and in case of disagreement, by the prescribed authority.
- (xvi) A gram sabha, has been empowered to apply for scaling down of debts under any law relating to the scaling down of debts applicable to the area.
- (xvii) A gram sabha may register itself as a co-operative society.
- (xviii) All dues payable to the gram sabha can on application to the Collector be recovered as arrears of land revenue.
- (xix) Every gram sabha will have its own funds called *gram nidhi* and may accept gifts, loans from the central or state governments. All amounts received by the gram sabha shall be credited to the gram nidhi and the gram sabha shall have the power to borrow on the security of the gram nidhi.

- (xx) Provision has been made for the supersession of a gram sabha by the government if it exceeds or abuses its powers or persistently makes faults in performing the duties assigned to it or is not functioning in a manner consistent with the provisions of the law.

51. On further consideration and in consultation with the leading gramdan workers, it was decided that a provision should also be made for constituting a statutory board to be known as the State Gramdan Board which should be responsible for:—

- (a) training of constructive workers to be assigned to gramdan villages;
- (b) speeding up of legal and other formalities connected with gramdan villages; and
- (c) study and general evaluation of experience in the gramdan villages. The Gramdan Board may consist of 5 to 9 members. As in the case of statutory Bhoodan Boards, the members of the Gramdan Board may also be appointed with the approval of Acharya Vinobaji.

These decisions were communicated to all state governments to be kept in view in formulating their proposals for Gramdan legislation (Annexure XI—pp. 135-36).

52. Gramdan legislation has been enacted in Assam and Rajasthan. In Bihar, the Bhoodan Act has been amended to enable allotment of lands in gramdan villages to the community as a whole and for the management of such lands. In Madras and Orissa, the Bhoodan Acts include provisions for declaration of gramdan villages and managements of lands vested in the panchayats. In Orissa, the government is also considering whether to enact a separate Gramdan Act or to include further provisions in the Bhoodan Act itself. In Andhra Pradesh, Maharashtra and West Bengal, Gramdan Bills have been introduced. In other states, proposals are under the active consideration of state governments.

53. Information regarding the action taken on other important recommendations of the Gramdan conference held on 2nd and 3rd November, 1963 is briefly indicated below:

- (a) The Conference had among other things recommended that in drawing up and implementing resettlement schemes preference should be given to families to whom bhoodan lands are distributed. The recommendations of the conference were forwarded to the chief ministers of all states by the Member, (Agriculture) Planning Commission for necessary action. (*Annexure XII*—p. 137).

In order to facilitate programmes for survey and categorisation of wastelands, reclamation of wastelands found suitable for cultivation and resettlement and colonisation projects, the pattern of assistance was made more liberal. (*Annexure XIII*—pp. 138—140).

- (b) The conference recommended that measures should be taken for the speedy implementation of the scheme for providing house-sites to landless agricultural workers. It was further suggested that priority should be given to the work in gramdan villages where the necessary land for house-sites cannot be found out of the land donated under gramdan. Minister of Works & Housing wrote to all Housing Minister for necessary action (*Annexure XIV*—pp. 141-42).

- (c) The Conference had recommended that while implementing various plan schemes, special attention should be devoted to the gramdan areas. Instructions on the subject have been issued by the Ministry of Food and Agriculture (*Annexure XV*—pp. 143-44).

- (d) Ministry of Community Development and Co-operation have issued instructions (*Annexure XVI*—pp. 145-46) that *Panchayati Raj* institutions should take active interest in the promotion and development of gramdan movement.

- (e) Ministry of Food and Agriculture have issued instructions that government lands in gramdan villages should be handed over to the gram sabhas (*Annexure XVII*—p. 147).

- (f) Ministry of Home Affairs have issued instructions that in opening new tribal development blocks preference should be given to gramdan villages (*Annexure XVIII*—pp. 148-49).

SOCIO-ECONOMIC DEVELOPMENT

54. It is essential to take up a comprehensive programme for socio-economic progress of a village as soon as it is donated in gramdan. If such programmes are not undertaken promptly or pursued speedily, the spirit of mutual help and the feeling of enthusiasm and cohesion among the village people generated by the gramdan movement would tend to become weak. It is important, therefore, that all officers concerned with development, the development commissioners, the district officers, block staff and other staff connected with agricultural and industrial development of the *Panchayati Raj* institution, should pay special attention and give high priority to the development of gramdan villages. The annual conference of Community Development and Panchayati Raj which was held in New Delhi from July 20–22, 1964 has, in this connection made the following suggestions :—

- (i) Gramdan villages with a good record of self-help may be given preference in the starting of co-operative farming schemes and in the allocation of normal developmental work.
- (ii) Where there is fair concentration of gramdan villages in a district, a new head of development "Development of Gramdan Villages" may be provided in that district plan. This head of development should provide only for such assistance as is not covered under other heads.
- (iii) In districts with a fair concentration of gramdan villages, pilot projects for intensive development may be undertaken.

WARDHA PILOT PROJECT

55. For commemorating Gandhiji's stay at Sewagram through a development project, an effort is at present under-way to formulate a detailed plan for the agro-industrial development of district Wardha (Maharashtra) based on the study of local resources and problems carried out by the Gokhale Institute of Economics and Politics, Poona. The District Plan for Wardha aims at evolving methods for planning and implementation at the district, block and village levels, which will serve as a guide for other districts in Maharashtra and elsewhere in India. A special feature of the Wardha Plan is that between the block and the village another unit is being adopted, namely, the *mandi* (market) area, comprising a group of 30 to 40 villages. The *mandi* area plan

will include plans for individual villages which fall within the mandi area. In the chain of these area plans, plans for the all-round development of 5 selected gramdan villages in the district have been taken up for which a sum of Rs. 2 lakhs has been sanctioned by the Government of India, out of the allotment of rupees one crore earmarked for gramdan villages. When more villages are taken up, additional funds can be provided. This fund will be in addition to the fund which will be available to the selected gramdan villages from the normal schemes of the State plan and Zila Parishad plan as well as from co-operative agency.

Assistance to Bhoodan
(by State Governments)

(In thousands of rupees)

State/Union Territory	1955-56	1956-57	1957-58	1958-59	1959-60	1960-61
1	2	3	4	5	6	7
Andhra Pradesh .	..	..	3.0	2.0	31.5	..
Bihar . . .	33.0	100.0	186.0	150.0	200.0	50.0
Maharashtra . .	..	..	20.0	20.0	15.0	20.0
Kerala . . .	..	..	6.9	28.0	..	..
Gujarat . . .	25.3	25.3	16.9	25.0	16.0	..
Madras . . .	..	..	..	1.0	13.8	..
Orissa . . .	35.4	3.6	335.0	20.0	15.0	355.2
Punjab . . .	..	..	5.0	5.0	..	..
Rajasthan . . .	10.0	25.0	30.0	5.0	15.0	10.0
Uttar Pradesh . .	..	..	..	50.0	50.0	50.0
Himachal Pradesh .	..	..	5.0	..	5.0	..
TOTAL .	103.7	153.9	607.8	306.0	361.3	485.2

ANNEXURE II

Second Plan Schemes

(i) Scheme for settlement of 250 families on bhoodan lands on cooperative basis at a cost of Rs. 2.5 lakhs, 75 per cent as subsidy and 25 per cent as loan. The 75 per cent subsidy is to be shared equally between the Government of India and the State Governments. Upto June 1963, 204 families have been settled on area of 841 acres at a cost of Rs. 2.2 lakhs.

(ii) Scheme for settlement of 10,000 families at a sanctioned cost of Rs. 30 lakhs, 75 per cent subsidy and 25 per cent loan. The scheme provided for an assistance of Rs. 300/- per family as below :—

	Rs.
Cost of one pair of bullocks	150
Cost of implements	20
Cost of seed	30
Maintenance for the family	100
TOTAL	300

Third Plan Schemes

1. Kerala

Settlement of 1000 families on Bhoodan land

(i) Total extent of land available	3000 acres
(ii) No. of families to be settled	1000
(iii) Unit of allotment	3 acres.
(iv) Estimated assistance per family	Rs. 500
(v) Purpose of assistance (per family)	
(a) Reclamation	Rs. 100
(b) Subsistence grant for 4 months at Rs. 50/-	Rs. 200
(c) Share capital loan	Rs. 100
(d) Loan for construction of homestead	Rs. 100
TOTAL	Rs. 500

Contd.

Financial implication for 1000 families

Rs. lakhs

(a) Reclamation grant	1.0
(b) Subsistence grant	2.0
(c) Share capital loan	1.0
(d) Loan for construction of homestead	1.0
TOTAL	5.0

2. Bihar

Settlement of 500 families on Bhoodan lands.

The scheme envisages execution of 20 pilot projects for the settlement of 500 families of landless workers at Rs. 1000/- per family. The total expenditure will be Rs. 5.0 lakhs out of which 3.75 lakhs will have to be borne by the Government of India and the balance by the State Government.

The details of expenditure are as below:

	(Rs.)
1. For reclamation of land at Rs. 125 per acre for 4 acres of land per family	500
2. Initial expenses for purchase of bullocks, seeds, manures, agri. implements and constructions of wells etc. at Rs. 500/ per family	500
TOTAL	1000

PLANNING COMMISSION

(Land Reforms Division)

Gramdan in Koraput (Orissa)

Agricultural conditions in Koraput.—Koraput is mostly a hilly area. The cultivators belong generally to one of the four tribal communities, namely, Parjas, Gonds, Kondh and Bhumias. To any visitor it is easily evident that they have more of community sense than the non-tribal. There is, however, no community ownership of land. Till recently, almost the entire district was comprised in the zamindari of the Raja of Jeypore. The cultivators had held lands as tenants of the Raja. Before the abolition of zamindari their rights were regulated under the Madras Estates Lands Act. After abolition, they now hold land directly from the State. Broadly speaking, there were four types of lands, namely, (i) lands under settled cultivation in which individual cultivators held a right of occupancy; (ii) lands under shifting (*Pedu*) cultivation; (iii) lands which were settled by the Raja with his revenue farmers in lieu of remuneration and in which the latter had only temporary rights—these lands have now vested in the Government; and (iv) unoccupied lands including forest lands which also vest in Government.

2. As the area had not been surveyed and settled previously, it is very difficult to know the extent of land comprised in each one of the four categories. The survey and settlement operations are now in progress. My impression is that the bulk of the area is held under settled cultivation and anything between 1/4th to 1/3rd of the cultivated area may be under shifting cultivation. Sometimes lands which are held by individual cultivators and are cultivated once in three, four or five years due to lack of fertility, are confused with lands under shifting cultivation. Two characteristics of shifting cultivation were mentioned, namely, (i) that in such lands there was no individual occupation or ownership, and (ii) they were not cultivated by ploughs and bullocks. They usually lie along sharp slopes near the tops of the hills and are often cultivated by drilling in small holes and putting seeds into them. The government policy now is to discourage or prohibit cultivation along sharp slopes.

3. In respect of lands under settled cultivation, a cultivator in Koraput has as much attachment as any cultivator in any other part of India. However, the pressure of population on land is not heavy. Over large areas the density of population is less than 100 per square mile. There is a considerable area under forests and the cultivators depend upon income from forests in varying degrees. The cattle population is poor both in quality and quantity. The lands are consequently not intensively cultivated. In some areas, on rice lands which as far as I could see were not unfertile, only one crop in two years was taken. The settlement officer whom I met at Jeypore, confirmed my impression. He also mentioned that this was partly due to inadequate draught cattle as well as labour force. Very few people are landless. That many holdings are small, is, however, a fact.

4. Except in a few villages where the cultivators belong to the *Mali* Community agriculture is extremely backwards, almost primitive.

5. The total number of villages given in gramdan throughout India was about 2,500 by the end of April, 1957. District Koraput accounts for nearly 1400 villages. In Koraput a revenue village frequently consists of more than one hamlet and not unoften of three, four or five hamlets. For purpose of gramdan each hamlet is regarded as a separate village. The number 1400 thus includes both hamlets and villages. Gramdan means that all the resident landholders of a village or a hamlet, as the case may be, have given away their entire land in bhoodan. A distinction is made between a resident owner and a non-resident owner. Every resident owner of a village or hamlet must donate his entire land and sign a *danpatra* to that effect before gramdan is completed; and it is not necessary that all the non-resident owners of a village or hamlet should donate their entire lands in gramdan. I was told that quite frequently the non-resident owners had kept out. I could not ascertain what portion of the total land of a village or hamlet was on an average held by non-resident owners. I was told that the area held by non-resident owners is not negligible.

6. **Confirmation of Donations.**—Each donation for Bhoodan or gramdan is to be confirmed under the Bhoodan Act before it can be regarded as a legally valid donation. Some of the gramdan donations are about 2 years old. No steps have yet been taken for their conformation in Koraput or elsewhere in Orissa. The Bhoodan Act was enacted in 1953. It was later amended in 1956. Rules were framed under the Act of 1956.

Some revision in the rules was called for due to subsequent amendment. But the revised rules have not yet been framed. The matter is still under consideration of the State Government. The Act authorises transfer of land by owners to the Bhoodan Yagna Samiti. For regularising transfers the Samiti is required to file the declarations (Danpatra) received by it before the revenue officer. I was told that these declarations could not be filed because the revenue officers had not been appointed for dealing with such declarations. It has been estimated that there are between 40,000 to 50,000 declarations (Danpatra) in the District of Koraput alone which account for about 2½ lakh acres. A number of revenue officers will have to be appointed to deal with this quantum of work. I mentioned this to the Chief Secretary. He said that this work would amount to a full scale survey and settlement operations. He felt, however, that it was not beyond the capacity of the State Government to deal with it expeditiously and said that there was the survey and settlement staff which was now engaged in survey and settlement operations in the districts. The whole of this settlement staff could, he said, be deputed to the verification of the declarations.

7. Two different procedures have been prescribed in the Bhoodan Act for the verification of bhoodan declarations. One relates to verification of donations made prior to the commencement of the Act of 1953 and the other to the declarations made after the commencement of the Act. The former procedure is contained in section 13 which provides for the preparation of a list of all donations made prior to the commencement of the Act and the publication of the list. Immediately on the publication of this list by the revenue officer, the interests of the donors in such lands shall be deemed to be transferred to and vest in the Samiti. Any aggrieved party could institute a suit in the civil court.

8. The procedure for the confirmation of donations made after the commencement of the Act, is laid down in sections 8 to 10. The Bhoodan Samiti is to present the bhoodan declarations along with a list giving the names and addresses of the person or persons to whom the land has been distributed in each case before the revenue officer. On receipt of the declarations, the revenue officer is to publish the same calling for objections. Any person whose interests are affected by the bhoodan declarations, may file objections before the revenue officer within 30 days of the publication of the declarations. If no objection is received within the period, the revenue officer is to make a summary enquiry as to the

right, title and interest of the donor and either confirm or supersede the declarations. If an objection is received, the revenue officer is to register it and hear it after due notice to the declarant and the objector. He will then proceed to investigate and dispose of the objections and then either confirm the declaration in whole or in part or supersede it.

9. Most of the bhoodan declarations were received after the commencement of the Act of 1953 and, therefore, the latter procedures would be necessary for their confirmation. The procedures in this case are quite elaborate and will involve considerable work load for the revenue officers. On the other hand, if the procedures prescribed for the verification of the declarations made before the commencement of the Act is to be made applicable to the declarations which have been filed so far, say, by the end of June, 1957 the verification could be carried out much more expeditiously. If this is to be done, however, an amendment of the Act would be called for, the Orissa Government may kindly consider whether they would prefer to apply the procedures contemplated in section 13 to all the declarations which have been filed with Bhoodan Samiti so as far and, if so, amend the Act accordingly.

10. Some of the gramdan donations were made about 2 years back. Will difficulties arise now in their confirmation? In this connection I tried to seek answers to the questions; what was the people's understanding of gramdan and what were the motivations which impelled them to join this movement and sign the dan patra donating their entire lands. To get answers to these questions I visited ten villages (or hamlets) which included a non-gramdan village. Eight out of the ten villages visited by me are comprised in the "Result Demonstration Centres" of the Serva Seva Sangh. I had also opportunities of holding discussions with several workers of the Serva Seva Sangh, at first individually and later with many of them together at a group conference. There was one limitation with me that I did not understand the language of the people. The tribals speak un-written languages of their own. They understand Oriya but I did not know that either. I had, therefore, to speak to the people through an interpreter. It is always difficult to know the state of mind of a people, more so if one is to speak through an interpreter. Moreover most of the villages visited by me were given in gramdan a year or two back. It would therefore, be all the more difficult to know what was the understanding of the the people when the donations were made. An average cultivator has great faith in Vinoba. He feels that Vinobaji had launched this movement for his good, the good of the rural poor and the landless. He

carries vaguely a feeling that in joining gramdan he is facilitating speedy development of agriculture and a better way of life. May be that he also thinks that the gramdan villages will get some preference in the schemes of development.

11. However, I am not quite sure if he made much distinction between bhoodan and gramdan or that the implications of signing the dan patra were fully understood by him. He knew that in signing a dan patra he was making an offer to part with a portion of his holding. Possibly he felt that he might be required to part with one-sixth of his land which Vinobaji had been asking for in bhoodan. After all an average cultivator does not hold a large area of land and he would not, therefore, be required to part with much. In practice, most cultivators holding less than the average availability of land were not required to give up any land at the time of redistribution. In fact some of them actually got some additional lands. I am doubtful if at the time of signing the dan patra he appreciated that he would suffer some curtailment in his rights in the lands which he would retain in the redistribution. Whatever may have been his understanding then, it is now becoming increasingly clear to him that he had lost whatever limited right of transfer he possessed (I was told that a tribal's right to transfer land to or mortgage it with non-tribal had been restricted by legislation).

12. There were certainly some, mostly among the larger owners who did understand the implications of gramdan well enough. It is possible that some of them joined it under pressure of public opinion and they thought it advisable to join in order to maintain their leadership in the society. They may have had some mental reservations. Perhaps they thought that the whole movement would blow over and they might not be required to part with large areas. Consequently difficulties have arisen in the equitable redistribution of land in the gramdan village. Efforts at redistribution of lands on the basis of per capita availability have been frequently resisted and not unoften compromises had to be made with them. Thus even after redistribution of lands considerable disparities continue some times as much as 1 to 5 or even more. It is possible, therefore, that some difficulties may arise at the time of confirmation of the donations. I was told that considerable controversy was aroused about the gramdan movement during the last general elections and that the attitude of the comparatively well-to-do landowners was not as favourable to the movement now as it was before. One should not be surprised, therefore, if at the time of verifications of the bhoodan declarations objections are raised, particularly by

the comparatively substantial landowners. All that the law contemplates is an enquiry at the time of verification into the title and interest of the donor. There is no provision for revocation of the donation on grounds of the donation having been made in ignorance or other-wise. I consulted Shri Anna Saheb whether they would insist on the donation being confirmed even where such a plea is made. He was of the opinion that if anybody would still like to revoke the donation, he should be completely free to do so.

13. *Re-distribution of Gramdan Lands.*—I may now refer to pattern of re-distribution of lands in gramdan villages. When the donations have been confirmed under the Bhoodan Act, the lands in gramdan villages will vest in the Bhoodan Samiti. The Act, however, authorises the Samiti to distribute the lands even before the donations have been confirmed. Land re-distribution has been completed in 600 out of 1400 gramdan villages or hamlets. In theory the entire land contributed by cultivators of a gramdan village forms one pool. In practice, however, the position is rather different. Per capita availability of land in a village is worked out. A family which holds less than the average availability of land generally retains the entire area. A family which holds more than the average availability of land is asked to indicate which lands it would surrender for purposes of re-distribution. Frequently, the cultivators do not agree to give up the entire land held in excess of what they would be entitled to retain on the basis of average availability. Not unoften some cultivators still continue to retain three to five times the average availability of land. Usually uplands or lands lying along sharp slopes are given for re-distribution and very little of paddy land or irrigated lands are given. The lands which are thus, made available for re-distribution are mostly poor lands scattered in bits all over the village. It appears that generally not much more than 10 per cent of the total cultivated area was made available for re-distribution.

14. Out of this re-distributable pool some land is kept aside for community purposes. This land is to be cultivated by the free labour given by the cultivators as *shramdan* and the income from this land is utilized for community purposes. These lands represent quite a small fraction of the total cultivated area. It is intended that these community plots should be worked as 'model farms'. In practice, however, they present frequently very poor standard of cultivation. It was mentioned that considerable difficulties were being experienced in the cultivation and management of these lands. At the peak-

agricultural seasons, individual cultivators ignore the community plots and concentrate on their own lands. This is but natural, particularly, in an area where labour force is not so plentiful, that their own farms should get their first attention. Cultivators may be expected to give *shramdan* only in off-season when they are comparatively free. Some of the bhoodan workers felt that in the circumstances, it would be better to lease out the community lands on crop-sharing basis. During the course of discussions, the community plots were frequently referred to as cooperative farms. I think, it would be wrong to regard these community plots as cooperative farms. Those who work on it contribute their labour free towards community benefit and they do not share immediately in its produce. It is natural, therefore, that they have very little incentive for working on it. Even if they were to share in the produce of community lands, it is hardly likely that they would give the right attention to these plots. The individual plots from which they will get the bulk of their income will continue to get their first attention.

15. The remaining re-distributable area is distributed among individuals. The landless get the first preference. Generally, every landless person in what-ever trade he might be engaged is given some land, if he wants to have it. The allotment of land is not restricted to those who are already engaged in cultivation as labourers. Any surplus land that may be left over is given to those who held less than the average availability. In the selection of the allottees, the donors are usually consulted and consequently relations of the donors get a preference. In Koraput, there is a class of attached workers who work on the farms of substantial farmers. Their services are secured by the farmers on payment of advances to be adjusted periodically against the services rendered by the attached workers. These adjustments take quite a long period. The annual adjustment amounts generally to Rs. 30/-. The attached worker is also provided two meals by the farmer and perhaps also some clothing. Till the total amount has been adjusted, the attached worker cannot leave the farmer. It was told that attempts for allotment of land out of the redistributable area to these attached workers, has sometimes been resisted by the substantial farmers. They fear that if the attached workers also get lands, they will not be available for work on their (substantial farmers') lands.

16. The Sarva Seva Sangh had distributed along with the lands, bullocks and implements also in some areas. Sometime cash loans had also been provided. It was mentioned that

there were cases, though not many, where lands had reverted to the original donors or had been left uncultivated. Some of the reasons mentioned for these developments were that the lands which were donated were generally of a poor quality; that the grantees did not have sufficient experience of cultivation or management; and that in some cases they did not have sufficient wherewithal of cultivation. I suggested that it might be an advantage if the redistributable pool of land including the community lands were settled with cooperatives of the proposed grantees for joint management and cultivation. The cultivators who retain their own plots, could also be encouraged to join on a purely voluntary basis. Shri Anna Saheb agreed that this could be tried out.

17. The present distribution of land is regarded as provisional and it is hoped that as the people's understanding improves, it will become possible to redistribute lands more equitably. The object which the sponsor of the gramdan movement have in view is that the ownership of the entire land in a gramdan village should vest in the village community. Under the law the Samiti is authorised to distribute lands vesting in it to the landless persons individually or jointly or to the village community or for any community purpose. The land can be granted to the village community only in cases where all agricultural lands situated within a village have been donated to the Samity. There are thus two conditions to be satisfied before the lands can be transferred to the village community, namely,

- (i) as the expression 'village' has not been defined in the Act, village would mean a revenue village and not a hamlet. In other words the entire agricultural lands comprised in a revenue village should be donated before it could be granted to the village community;
- (ii) the entire agricultural land of a revenue village should include lands held by absentee owners.

As mentioned earlier, for purposes of gramdan each hamlet has been treated as a separate village and in many cases lands in all the hamlets of a revenue village have not been given in gramdan. Besides, frequently non-resident owners have not donated their lands. Thus, under the law it would frequently not be possible to grant the gramdan lands to the village community. If the lands are given to individuals, they will immediately acquire permanent rights in the lands and will be liable to ejectment (a) for keeping the land fallow for two

consecutive years without any reasonable cause or (b) for failure, in the case of grant of waste lands to bring atleast half of it under cultivation within a period of three years. The sponsors of the movement feel that if permanent rights accrue to individuals at this stage, it will make the present distribution rigid and may make subsequent re-distribution of land on a more equitable basis difficult. To avoid accrual of permanent rights to individuals, there are two possible courses of action, namely, (1) the lands might be granted to the allottees jointly; or (2) the proposed allottees may be organised into a co-operative and the lands granted to the co-operative rather than to individual members. In the latter case the members of the co-operative will have in the lands only such rights as are given to them by the co-operative and no permanent rights to any individual would accrue. This could secure the objectives of the bhoodan movement without any modification of the law.

18. With regard to the pattern of cultivation of gramdan lands, Shri Anna Saheb had no set pattern in view. The lands could be cultivated in family holdings or in co-operatives. He seems to think that the right pattern of cultivation will have to be evolved in due course of time. If the cultivators could voluntarily form themselves into co-operatives for joint cultivation immediately, he would welcome it. He had suggested to Shri R. K. Patil to take up a pilot project for experiments in co-operative farming in selected gramdan villages and that he would be willing to spare any workers out of the available staff for the purpose. The matter is still under the consideration of Shri R. K. Patil. I had also an opportunity of a discussion with Shri Nab Krushna Chaudhry, ex-Chief Minister of Orissa, who is intimately associated with Gramdan work. My impression is that he was also favourably disposed to working out experiments on co-operative farming.

19. It would be wrong to expect that in Gramdan villages co-operative farming could be had just for the asking. The bulk of the agricultural land still continues to be in the possession of their owners whose attachment to their lands has hardly suffered appreciably. From whatever talks I had with the cultivators, it was quite apparent to me that they will need a considerable persuading before they can take to it. It is, of course, true that the bhoodan workers have considerable influence with the people and if they take up this work in right earnest, it would be comparatively easier for them to persuade people to take to co-operative farming. The younger element among the cultivators may perhaps take

it up more easily than others. As I suggested earlier, a beginning could perhaps be made with co-operative farming on the distributable pool of land. In the agricultural conditions obtaining in Koraput primitive character of its agriculture and the lack of adequate draught cattle and labour force, co-operative farming offers an opportunity for development at a much speedier rate than in most other parts of the country.

20. The gramdan workers work under the aegis of the Akhil Bharat Serva Seva Sangh. Broadly speaking, their organisation in the field consists of 2 parts, namely, (i) the Bhoodan workers who collect the donations of land and are also responsible for redistribution of land; and (ii) *Nirman Karya Karta* (Development Workers) who are responsible for work at the "Result Demonstration Centres". The incharge at each centre is usually assisted by one or more workers especially trained in agriculture. Most centres have women workers also. They were specially trained for work among women at a centre in Orissa. There are usually two such women at a centre so that they may get support from each other. There are 10 such centres in the District. Each centre includes all the gramdan villages within 5 miles radius. The workers-in-charge at these centres are drawn from various parts of the country. There was one from Gujarat, another from Mysore, two from Uttar Pradesh and some from Orissa. District Koraput is inhabited mostly by tribals—the Parjas, Gonds, Kondh and Bhumias. The Tribal Welfare Department is running a number of schools in the District. The level of literacy among the tribals is still, however, very low. Therefore, not one of these workers at the demonstration centres was from among the tribals. The Serva Seva Sangh has been very fortunate in getting a band of young, enthusiastic and intelligent workers. They were working under many handicaps. They did not know the local language. As mentioned earlier the tribals have unwritten languages of their own. They however, usually understand Oriya and some in the Rayagarh area, which is on the border of Andhra State, speak or understand Telugu. During the brief period of their stay these workers have already picked up the Oriya language and most of them could understand and talk in the Oriya language to the people. They had also acquired sufficient knowledge of the local conditions.

21. The principal activities at the 10 centres relate to agricultural development, soil conservation, panchayatgarh, consumers' stores and cottage industries—mostly spinning. The main emphasis is on development of agriculture and soil conservation. There is an engineering section at Jeypore

maintained by the Serva Seva Sangh to provide necessary technical guidance for the work at these centres. The development work in the 10 centres is financed out of grant sanctioned by the Ministry of Home Affairs and made available to the Serva Seva Sangh through the Orissa Government. As the people residing in the area are the tribals, the funds were found out of the provision allocated for tribal welfare. During 1956-57 a sum of Rs. 11.92 lakhs was made available. Another sum of Rs. 10 lakhs has been sanctioned for 1957-58. These grants have been given against a five-year scheme prepared by the Akhil Bharat Serva Seva Sangh at an estimated cost of Rs. 94.15 lakhs. This programme is co-extensive with the Second Five Year Plan of Orissa for backward classes. The Government of India's contribution to this scheme would be about Rs. 68 lakhs, the balance being met by the All India Khadi & Village Industries Commission, the Gandhi Samark Nidhi, the Akhil Bharat Serva Seva Sangh and other organisations.

22. The 10 demonstration centres include about 200 gramdan villages or hamlets. I was told that the Serva Seva Sangh did not propose to undertake development activities in other Gramdan villages. They feel and rightly so that their resources both in manpower and finances are limited, and they would like to concentrate on building up public opinion and a sound leadership. They propose, to undertake a training programme of village leaders on an extensive scale. They have taken up the development work in the 10 centres mainly with a view to carrying out experimentation in evolving suitable techniques of management and methodology for development in the special conditions and circumstances arising out of gramdan. The development work has, therefore to be taken up in other gramdan villages by the governmental agencies. It may be mentioned that the 1,400 gramdan villages are scattered all over the District. I was told that there was little co-ordination between the Serva Seva Sangh which was working in the gramdan villages of the District and the Community Projects and the National Extension Services. It was also mentioned that in some of the gramdan villages which formed part of the Community Projects or the NES Blocks, little developmental activity had been undertaken. The question of co-ordination between the Government and the Serva Seva Sangh in the development of gramdan villages in Koraput District came up for discussion between the Chief Secretary of Orissa Government and Shri Anna Saheb representing the Serva Seva Sangh on the 10th June, 1957 when I was at Koraput. It is hoped that there will now be better co-

ordination in the development work between the two agencies. It may be mentioned that the 1,400 gramdan villages cover about one-fifth of the area of the district.

23. One point may, however, be mentioned in this connection. The Chief Secretary observed during the discussions (referred to above) that as far as block programme is concerned, there should be no differentiation between a gramdan village and non-gramdan village and that schemes should be taken up and completed according to the policies laid down for blocks irrespective of the question of gramdan. It will be recalled that the question of gramdan and community development came up for discussion at the Sixth Development Commissioners' Conference held at Mussoorie from 26th to 30th April, 1957 and it was decided that the gramdan villages because of the special atmosphere generated there, should receive preference in the matter of opening of blocks and the starting of community development activities. There is no doubt that in gramdan villages there is a much better climate for community development work than elsewhere. It is, therefore, a matter for consideration of the Orissa Government whether in community development activities these villages should not get the first preference. There is another reason why the gramdan villages should immediately receive due attention from the government. As mentioned earlier, out of the 1,400 villages received in gramdan land distribution has been possible only in 600 villages and the other villages have not been reached even for purposes of land redistribution, leave aside the development by the Sarva Seva Sangh at 10 centres, which in due course would at best extend to 200 villages. An average cultivator who joined the movement would naturally expect that in joining the movement he was working for a better way of life. In practice, as was frequently mentioned to me during the visit, they were, on the other hand, feeling considerable hardship as they are no more able to get loans for financing agriculture or meeting other requirements of life on the security of their lands. Unless something is done in all the gramdan villages not only for the provision of necessary finance and supplies but also for a planned development of agriculture and agrarian economy in general, I am afraid the gramdan movement may suffer a set-back. The Sarva Seva Sangh is doing all that is possible within its limited resources to provide necessary finance and supplies. Their activities are, however, restricted to the 10 centres. As in other gramdan villages they have practically no staff. It is, necessary, therefore, that government should take a view in

the matter and take urgent steps to create the necessary organisation for planned development in as many gramdan villages as possible.

24. The need of the cultivators of gramdan villages for securing loans for purposes of financing their agriculture and meeting other requirements is altogether urgent. Under section 15 of the Bhoodan Act grantees of bhoodan land are not given the right to transfer land by way of sale, mortgage, exchange, gift or otherwise for a period of 10 years from the date of the grant. Nor is the land to be liable to attachment in execution of a decree or order passed by a civil court. Because of this provision the cultivators in the gramdan villages are not able to secure loans from private agencies on the security of their lands. The cultivators having donated their entire lands have no land to mortgage. This difficulty was frequently mentioned to me during my visit. In the Demonstration Centres, Sarva Seva Sangh was trying to provide short term loans without any security whatsoever. It appears to me that till donations have been confirmed, the lands continue to belong to the donors and in any case, their right to crops grown on the lands which continue to be in the possession of the donors, should be undisputed. In the situation arising from the absence of confirmation of donations, therefore, there should be no difficulty in advancing crop loans by the government, panchayats or the co-operative agencies on the security of the crop atleast to those who continue to be in possession of their lands. In respect of lands which have changed possession in the process of redistribution, the position is not quite clear. Possibly, the crop grown on these lands by the new allottees would belong to them and crop loans could, therefore, be made available to them also.

25. The medium and long term loans, however, present difficulties both immediately and ultimately. Under the law the grantees of land have usually no right to mortgage. Even if lands are settled with co-operatives, the co-operative will have no right of mortgage. In the interest of agricultural development it is necessary that a provision should be made in the law to enable the cultivators and co-operatives to obtain both medium and long term loans from co-operatives or governmental agencies for the development of land and such loans should become a charge on the lands in which they are invested.

26. Some difficulties were mentioned to me with regard to the co-operative credit structure in gramdan villages. The scheme which the Orissa Government have in view is something like this. The whole state has been divided into pan-

chayat circles and in each circle a panchayat has been set up or is in the process of being set up. Through these panchayats, the Orissa Government are at present distributing grains, seeds, manures, etc. They propose to set up for each panchayat circle one co-operative which will provide finance and supplies. This co-operative will deal with individual cultivators in the circle. It will be affiliated to the central banks. Shri Anna Saheb felt that in the gramdan villages it would neither be proper nor feasible for these co-operatives to deal with individuals. The matter was discussed with the Chief Secretary and it was agreed that primary co-operatives may be organised in gramdan villages or hamlets. There could be one co-operative for any two or more adjacent gramdan hamlets and or villages which were within the same panchayat circle. So far as gramdan villages are concerned, the co-operative for a panchayat circle will deal with these primary co-operatives which will be affiliated to it and not with individual cultivators. In other villages the panchayat circle co-operative will deal with individuals directly. Thus, the panchayat circle co-operatives will have two types of membership—one consisting of individual members enrolled from areas outside gramdan villages and the other of primary co-operatives in the gramdan villages. The latter will also be responsible for crop planning and where the members agree for joint management and cultivation as well besides provision of agricultural credit and similar requirements. It will secure credit for its members from the circle co-operatives. For purposes of marketing it would deal directly with the regional marketing society. Chief Secretary also mentioned that pending organisation of panchayat circle co-operatives, the Orissa Government would examine some alternative methods for financing gramdan village co-operatives. The details of the scheme would be finalised in consultation with the Registrar, Co-operative Societies.

ANNEXURE IV

Coordination of the Gramdan and the Community Development Movements (December, 15-19, 1957)

In pursuance of the conclusions reached in the Gramdan Conference held at Yelwel in September last that the closest cooperation was desirable, between the Community Development Movement and the Gramdan Movement, Minister for Community Development had had a preliminary discussion with Shri Jayaprakash Narayan on 17th and 18th November. Among the points that emerged in this discussion one was that there was need for a fuller understanding of the philosophy, objectives and methods of working of the Community Development Movement among the workers of the Gramdan Movement and those of the Gramdan Movement among the workers of the Community Development Movement. It was agreed that as a first step in this direction an informal discussion should be arranged in Delhi between the representatives of the Sarva Seva Sangh and the Ministry of Community Development, to which should also be called a few Development Commissioners. A draft paper could be prepared at this meeting which could be considered at a high level meeting presided over by the Prime Minister. In this paper should be indicated such basic objectives and methods of work and procedure as will secure the coordinated operation of the two Movements. These discussions have taken place and this paper is based on the results of these discussions.

Objectives.—The objective of the Community Development Programme is to promote the all-sided development of the village community, including their economic, political, social, cultural and moral developments; in particular,

- (a) to develop a spirit of community life among the people by promoting cooperation and mutual sharing, leading ultimately to voluntary community ownership of the basic means of production, such as land,
- (b) to make the village self-sufficient, in the primary needs of life, such as food, clothing and shelter, and
- (c) to develop self-reliance in the individual, and initiative in the Community so that the people are

able to manage and run their affairs themselves and make the village self-governing units of the larger Indian democracy.

Approach.—The programme of Community Development in the Gramdan villages should be an integrated one having in view the all round development of the village community. The Development Programme must, therefore, foster the spirit of community cohesion which is initially generated by Gramdan. Secondly, the programme should help in the development of collective initiative of the people so as to enable them progressively to manage their own affairs.

For this purpose the following points must be particularly borne in mind :—

- (a) Subject to the emphasis on the uplift of the most needy families, schemes which benefit the whole community should receive priority.
- (b) Credit should preferably be made available to the community as a whole.
- (c) Revenue should not be assessed individually but collectively for the whole village. The Gram Sabha will be authorised to collect revenue also from those who do not donate their lands to the common pool, and pay for the entire village community. Necessary adjustments in Tenancy laws and in the system of assessment and realisation of agricultural income-tax will have to be considered in the light of the pooling of the ownership in land.

Programme.—The programme of Community Development while it should be formulated and implemented primarily through the initiative of the people, should aim at securing a minimum increase in the standard of living within a reasonable period of time. The following items in the order in which they appear will indicate generally the priority that should be followed :

- (1) Provision of drinking water facilities;
- (2) Soil conservation, reclamation and irrigation;
- (3) Provision and encouragement of subsidiary occupations, such as Poultry, Bee-keeping, Fishery, etc.;
- (4) Agricultural demonstrations at convenient places in each block, preferably on community land;

- (5) The emphasis should be on introduction and development of dual purpose (*i.e.* draught and milk) breeds of cattle. In the backward areas this is particularly important as the economy of those areas cannot maintain two separate breads;
- (6) Organisation of work camps or *Bhoosena Corps*;
- (7) Self-sufficiency in cloth—In the promotion of handloom, the policy needs reorientation so as to ensure that it serves the interests of the community as a whole. This could be achieved by use of *Ambar* and hand-spun yarn;
- (8) Food processing industries and processing of other agricultural produce and raw materials—As far as possible maximum amount of processing of agricultural produce should be done at the village level. For this purpose, provision of warehouses at convenient places easily approachable from the villages and credit against stored goods will be necessary;
- (9) Housing for scheduled castes and scheduled tribes who have practically no houses—These houses have to be in keeping with the economic condition of the people. It may be useful to take up pilot schemes through Sarv Seva Sangh;
- (10) Sanitation, hygiene and habits of cleanliness;
- (11) Education—The whole programme should be carried out with an educational outlook. Schools should not be rigidly bound by the Educational Code in such matters as hours of study, times of vacations, etc., which should be changed to suit local conditions.

In the opening of new blocks priority should be given to areas where Gramdan has taken place.

An economic survey of the village should be carried out to facilitate preparation of family-wise economic plans. The Sarv Seva Sangh will suggest a proforma with necessary explanatory notes for such survey.

Arrangements should be made to ensure that any information from revenue and settlement records that may be required by the Block Staff should be speedily furnished to them.

In backward areas the need for giving legal assistance to the people to get advantage of protective Acts was recognised but it was felt that the whole question will require further detailed examination.

Credit.—Credit in the Gramdan villages is of fundamental importance and is likely to present considerable difficulties. Non-institutional sources of credit dry up almost completely as soon as individual ownership in land ceases due to Gramdan. It would be essential to give effect to the concept of credit for creditworthy purposes rather than to creditworthy persons. Such credit shall be supervised not only by the Extension Service but also by the Gram Sabha. The different aspects of this question will have to be examined carefully by a Working Group. Gramdan villages offer ideal conditions for the development of cooperative farming. How best cooperative farming can be developed would require detailed study by the Working Group.

Pilot Projects for Depressed Areas.—The Community Development Programme has so far not been very successful in its objective of economic advancement of the very backward sections of the rural population. It has been the experience of the workers of the Sarv Seva Sangh that this class of population particularly in the Adivasi areas, requires special assistance. Part of this assistance will have to be in the nature of rehabilitation grant to put these backward families in the position from where alone they can utilise with advantage the assistance which may be provided under the general development programme. For this purpose, assistance provided under the various schemes of Government, for instance, the Community Development Programme, schemes for the Adivasi areas and for Depressed classes will have to be pooled and be further strengthened where necessary.

It was agreed that it will be desirable to take up a few pilot areas within this Plan period where schemes for special assistance to the very backward families could be taken up on an intensive scale so as to ascertain more precisely the financial outlay involved and the magnitude of the problem. Such pilot schemes would give the best results if taken up in Gramdan villages. Efforts should, however, be made to distribute these projects all over the country. In the light of the experience that would be gathered through the working of these pilot projects, a general programme for the uplift of all

the depressed families over the entire country could be promoted in successive Five Year Plans.

Organisational Set up.—(1) Every Gramdan Unit should have a Gram Sabha consisting of the entire adult population to manage its affairs.

(2) This Gram Sabha should be recognised as the village cooperative. This arrangement will require certain changes in the Cooperative Laws for which a detailed examination by a Working Group is necessary. (The participants in Gramdan will be responsible for management of the pooled lands. But all members of the Gram Sabha will enjoy the full advantages of the Cooperative Society).

(3) Marketing and credit organisation should be built up from below.

The Gram Sabha should be made an integral part of a State's Panchayat Organisation. How this could be best done will have to be settled by each State Government in consultation with the Sarv Seva Sangh.

The Gramdan and Community Development Movements have among their objectives the creation of initiative and self-reliance among the members of a community. This can be achieved only by providing that the primary community will function as a direct democracy and not through representatives. The size of Gram Panchayats, therefore, becomes relevant. While considering this issue, however, the need for ensuring that Government's assistance is effectively taken to the communities has to be considered. In considering this latter issue account will have to be taken of the new Extension role of Government and the fact that when communities get organised the task of taking assistance to them is facilitated to a considerable extent.

The functions that will be entrusted to any community will have to be determined with reference to their capacity to manage these at their own level. For managing functions which may be the common concern of a number of primary communities living near each other, it may be possible to organise a union or an association of such communities (Gram Sabhas) without giving to them any statutory character. This can be an alternative to having a bigger statutory panchayat coming in between the Gram Sabha and the Block Samiti.

This whole question is both intricate and of fundamental importance and would therefore need more detailed consideration. Any pattern that is suggested will have to provide for

the different conditions and circumstances prevailing in different parts of the country.

Machinery for implementation of the programme.—As a general rule the implementation of the programme in the gramdan villages will be entrusted to the Extension Organisation being set up by Government at block and village levels. It would, however, be necessary to select specially suitable Block Development Officers and other Extension Officers for blocks with gramdan villages. It will also be necessary to give these officers a special orientation training before they are put in charge of the work.

The Extension Organisation will be fully assisted by the Sarv Seva Sangh with advice, through educational activities and particularly by creating the necessary atmosphere for the success of the programme.

In certain areas where the Sarv Seva Sangh have been working or would like to work through their workers, they will be fully assisted by the agencies of Government. These areas could serve as pilot projects from where it could be expected that new ideas and experience would be gathered for wider application.

Similarly, on the side of Government some model projects could be taken up where the people's response has been good and the atmosphere is favourable. In these areas the best workers of Government should be placed. They would be given special assistance by the Sarv Seva Sangh.

It was agreed that it should not be the concern of the Government organisation to secure Gramdan from the people, but the block staff should help in the distribution and allotment of Bhoodan and Gramdan lands.

The workers of community development programme could provide through study circles and group discussions in the villages a forum for the workers of the Gramdan movement to propagate the idea of Gramdan.

It was agreed that the Sarv Seva Sangh should have representatives at the Centre, State, District and Block levels who could associate themselves with policy makers and administrators for consultation as well as joint study of the problems and a study of the field implementation of the agreed common programme.

Common understanding on the programme.—It would be necessary to create in the workers of the community development programme a full understanding of the Gramdan movement and in the workers of the Gramdan movement a full understanding of the Community Development Programme. Both must also be given a full understanding of the decisions that may be taken to achieve coordination of the two movements. For this purpose the following steps are suggested:—

- (i) A special seminar should be arranged of the top-level workers of both the Movements.
- (ii) Sarv Seva Sangh workers would participate in seminars organised by the Ministry of Community Development and the State Government.
- (iii) All the key personnel working on the Community Development Programme should be given a special course of orientation training which should form a part of the syllabus of the Training Centres.
- (iv) A complete set of Bhoodan literature both in the local language and in English should be supplied to each Block Headquarters Library for the officers to read and discuss in their study circles. The Ministry of Community Development will pay for this.
- (v) A forum should be provided in the journals of the Sarv Seva Sangh and in the 'Kurukshetra' for discussion on field problems of workers of both Movements. Further, the weekly magazine in English and the regional language of the Sarv Seva Sangh should be supplied to all Block Headquarters and to the Training Centres of the Ministry, at the cost of the Ministry.

It was agreed that understanding and acceptance of the objectives of Gramdan should be obtained through persuasion, which will demand sympathy and patience on both sides. This point of view will have to be forcefully placed below the top-workers of Government as well as of the Gramdan Movement.

Literature: For the purpose of propagating the philosophy and objective of the Gramdan Movement among the people the following measures are suggested:—

- (a) A complete set of selected books suitable for village libraries should be sent to each library in areas where intensive work could be undertaken at the

cost of this Ministry. It was estimated that a set of these books would cost Rs. 10/-. To the other areas, a smaller collection of books could be sent which may not cost more than Rs. 2/8/- per set.

- (b) In those areas of the country where in the initial stages concentrated effort would be made to co-ordinate the Gramdan Movement and Community Development Programmes, the journals of the Sarv Seva Sangh should be supplied to all village libraries at the cost of this Ministry for the first year. To the village libraries in other areas this Ministry will suggest that they subscribe to these journals.

It was considered advisable to concentrate work in the beginning in the States of Bihar, Orissa, Andhra, Madras, Bombay, U.P. and Rajasthan where Gramdans have already been secured to an appreciable extent.

No. F. 13-3/61-CF

Government of India

MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION

(Department of Cooperation).

Krishi Bhavan,
New Delhi.

the 4th February, 1963.

- 15th Magh, 1884.

FROM

Shri M. R. Bhide,
Secretary to the Government of India,

To

The Secretaries in charge of Cooperation,
All State Governments.SUBJECT:—*Special scheme for financial assistance to cooperative
societies in gramdan and bhoodan areas.*

SIR,

As you are aware, lack of timely and adequate supply of credit for production and other purposes has been one of the important problems of gramdan villages and bhoodan areas. In these areas the normal sources of credit such as money lenders, traders and others are not available as the lands which vest either with the gram sabha or bhoodan yagna committee cannot be mortgaged or sold according to the laws obtaining in most of the states.

2. The cooperative financing agencies have also not been able to provide short and medium term loans due to the fact that the gram sabha has no power to alienate or transfer the land and therefore it is difficult for them to provide funds for these cooperative institutions.

3. For surmounting these difficulties, the Government of India have in consultation with the Planning Commission, decided that a sum of Rs. 1 crore may be earmarked for financing cooperatives in gramdan villages and bhoodan areas out of Rs. 8 crores allotted in the Third Plan for settlement of schemes relating to landless labour.

4. It has been further decided that this scheme should be a centrally sponsored scheme and assistance from it should be available to cooperative societies in gramdan villages and bhoodan areas for the following purposes:

- (a) Short and medium term loans for implementation of the production programmes;
- (b) Where necessary, loans and subsidies, according to the pattern of settlement of landless labour, co-operative scheme, etc. for the items mentioned below:
 - (i) Land reclamation;
 - (ii) Land improvement including layout, contour bunding, fencing, construction of wells, improvement of irrigational facilities;
 - (iii) Purchase of bullocks, carts, agricultural implements, seeds, fertilizers, etc. essential for improved agricultural production;
 - (iv) Construction of cattle-shed and godown.

5. The societies in the gramdan areas will also have to admit as member, persons residing in the area of operation who have not given the land in gramdan. Where bhoodan lands are available in compact blocks, and a separate society of beneficiaries of such lands can be organised as viable units financial assistance from this scheme may also be made available to them as in gramdan areas. Otherwise, the recipients of the bhoodan lands should join the service cooperatives functioning in or for their village.

6. The financial assistance under the scheme would be available for purposes that have a direct bearing on agricultural production. Cooperative societies in these areas would also be eligible for assistance under the schemes relating to Grow More Food, Cooperation, settlement of landless labourers, etc. provided they satisfy the criteria under these schemes. It is, therefore, necessary that care should be taken to see that there is no duplication of financial assistance to the cooperative societies in these areas.

7. The assistance under the scheme will be given by the Government of India to the State Governments, who should work out suitable arrangements for utilisation of the assistance in consultation with the State Bhoodan Yagna Samiti or State Level Advisory Committee for collaboration with Akhil Bharat Sarva Seva Sangh. As far as possible assistance may be given to the cooperative societies through the central cooperative banks in the district. The State Government would be responsible for making the recoveries and for ensuring proper utilisation of this assistance.

8. As regards the basis for sharing the expenditure between the centre and the states, the central government will provide the entire amount of the short and medium term loans for production and land improvement. The cost of land reclamation, if any, both loans as well as grants would be shared equally between the state and the central government subject to a ceiling of Rs. 150/- per acre. For the net expenditure involved in resettlement, if any, central assistance will be available to the extent of 100%—75% as grant and 25% as loan subject to a ceiling of Rs. 500/- per family. The overall ratio between loans and grants from the centre should be 80:20.

9. The central assistance will be over and above the plan ceiling. The state governments will have to find their share of the expenditure within their plan ceilings for reclamation referred to under paras 4 (b) above.

10. Assistance from the scheme will be available from the year 1962-63 with immediate effect. Action to provide the necessary funds at the centre for this purpose during 1962-63 has been initiated.

11. The state governments are requested to draw schemes of assistance to cooperative societies on the basis of the number of societies already organised in these areas in consultation with the Sarva Seva Sangh of the state. In states where cooperative societies have not been organised so far, proposals may be furnished on the basis of estimates of societies that are likely to be set up in these areas. On the basis of the information available with the Ministry a very tentative allotment of the amount of Rs. 21.00 lakhs is given which might serve as a basis for preparing the scheme for the current year.

12. It will be very much appreciated if the state governments formulate schemes for the current year urgently and forward the same to this Ministry at an early date not later than 25th February, 1963. The scheme for the year 1963-64 may be sent by 31st March, 1963.

Yours faithfully,

Sd/- M. R. Bhide,

Secretary to the Govt. of India.

No. F. 13-3/61-CF.

New Delhi, the 4th February, 1963.
15th Magha, 1883.

COPY TO:—

1. The Registrars, Cooperative Societies, all State Governments.
2. The Secretaries incharge of Revenue Deptt., all State Governments.
3. The Planning Commission, New Delhi.
4. Ministry of Finance, C.D. & C. Division, New Delhi.
5. Ministry of Food and Agri., Deptt. of Agri., New Delhi.
6. Akhil Bharat Sarva Seva Sangh, Rajghat, Varanasi.
7. Members of the National Advisory Committee for collaboration with Akhil Sarva Seva Sangh.
8. Department of C.D., Ministry of C.D. & C., New Delhi.
9. All members of the N.C.F.A. Board.
10. P. Ss. to Minister, C.D. & C., Deputy Minister, C.D., Deputy Minister, Coop. Secretary, Addl. Secretary.
11. All Sections in the Department of Cooperation/Panchayat, Agricultural and Budget Sections of the Deptt. of C.D.

Sd/- M. P. Bhargava,

Addl. Cooperation Commissioner.

ANNEXURE V—contd.

No. 13-16/63-C.F.

Government of India

**MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION**

(Department of Cooperation)

Krishi Bhavan,
New Delhi, 3rd July, 1963
12th Asadha, 1885

FROM

Shri M. R. Bhide.

Secretary to the Govt. of India.

TO

The Secretaries incharge of Cooperation

All State Governments.

SUBJECT:—*Financial assistance to cooperative societies in Gramdan and Bhoodan areas.*

SIR,

I am directed to refer to paragraphs 3 and 5 of this Ministry's letter No. 13-3/61-C.F. dated the 4th February, 1963 on the above subject wherein it was indicated that financial assistance under the scheme would be available only to such of the gramdan areas in which beneficiaries establish and join cooperative societies. At the primary level the people can organise either a service cooperative or a cooperative farming society, both of which will qualify for assistance under the scheme. I am to state that organisation of cooperative farming societies in gramdan areas, as everywhere else, is completely voluntary. Such societies should be organised with the consent of the people and no pressure (either direct or indirect) should be used. Formation of cooperative farming societies is not mandatory or a condition precedent to the giving of financial assistance. If people express a desire to form a service cooperative, it should be registered and help given to it according to instructions contained in the letter referred to above.

Yours faithfully,

Sd/- M. R. Bhide,

Secretary to the Government of India.

- (i) Copy forwarded to all Registrars, Cooperative Societies.
- (ii) Copy to Secy., Akhil Bhartiya Sarva Seva Sangh, Varanasi.

ANNEXURE V—contd.

No. 13-3/63-CF

Government of India

**MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION**

(Department of Cooperation)

Krishi Bhavan.

New Delhi, the 16th October, 1963

24th Asvina, 1885.

FROM

M. P. Bhargava,
Commissioner (Cooperation)

To

The Secretary incharge of Community Development.

All State Governments.

SUBJECT:—*Special Scheme for financial assistance to gramdan
villages.*

SIR,

In this Ministry's letter No. F-13-3/61-CF, dated 4-2-1963, details of a centrally sponsored scheme for financing cooperatives in gramdan villages and bhoodan areas were circulated to state government. In this Ministry's subsequent letter No. 13-16/63-CF, dated 3rd July, 1963, it was clarified that formation of cooperative farming societies is not mandatory or a condition precedent to giving of financial assistance to gramdan areas. It was further indicated in that letter that if people express a desire to form a service cooperative, it should be registered and help given to it according to the instructions contained in the earlier letter No. 13-3/61-CF, dated 4-2-1963.

2. The question of giving financial assistance to gram sabhas in gramdan areas through the state governments as an exception to the general policy of routing assistance only through cooperatives from out of the special fund of Rs. 1 crore earmarked for the purpose has been under the consideration of the Government of India for sometime. It has now been decided that in states like Assam and Rajasthan, where Gramdan Legislation has been enacted and the gram sabhas have been constituted as corporate bodies, funds out of the amount of Rs. 25 lakhs earmarked for the financial year 1963-64 under the centrally sponsored scheme may be given to the gram

sabhas directly without the necessity of their forming a co-operative farming society or a service cooperative for this purpose. In addition, it is suggested that the state governments should advance loans out of their normal tacavi provisions to the gram sabhas for giving short term and medium term loans to cultivators. Loans could be given by the gram sabhas both to the donors and to the non-donors on the security of the crop and other movable property. While the state governments might, as far as possible, route these loans to the gram sabhas through the block organisation, there should be no objection to their being given through the agricultural and revenue departments, wherever the state governments may consider this feasible. The liability of a non-donor cultivator in these villages could be limited to the extent of loan advanced to him.

3. The amount to be given to such gram sabhas out of the funds available under the centrally sponsored scheme will be placed at the disposal of the state governments concerned, who should work out suitable arrangements for utilisation of assistance in consultation with the State Bhoodan Yagna Samiti or State Level Advisory Committee for collaboration with the Akhil Bharatiya Serva Seva Sangh. The state governments would be responsible for making recoveries and for ensuring proper utilisation of this assistance. The terms and conditions of central assistance as indicated in this Ministry's letter No. F-13-3/61-CF, dated 4-2-1963, would apply, *mutatis mutandis*, to the present schemes or assisting gram sabhas directly.

4. States where gram sabhas have not been constituted as corporate bodies under the relevant Act, may consider amending their existing legislation suitably or introducing new legislation so as to extent the benefit of this scheme to the gram sabhas in their states. A model Gramdan Bill has already been circulated to all the state governments.

5. As regards the recovery of dues, provision exists, for instance, in the Assam Gramdan Act, 1961, for recovery of loans by the Collector as arrears of land revenue on a certificate being given by the Gram Sabha. It is suggested that similar provision may also be made in the relevant legislation of other state governments also.

6. State governments are requested to work out proposals for such assistance to gram sabhas directly and forward them to the Department of Community Development of this Ministry who will handle such cases in future.

7. Assistance under this scheme through cooperative societies will continue to be handled by the Department of Co-operation, as at present.

8. This letter issues with the concurrence of the Department of Community Development who will address a separate communication regarding the procedure to be adopted for submitting proposals etc.

9. The receipt of this letter may be acknowledged.

Yours faithfully,
Sd/- M. P. Bhargava,
Commissioner (Cooperation)

Copy forwarded to:—

1. Secretaries incharge of Cooperation (All State Governments),
2. Secretaries incharge of Revenue Departments (All State Govts.)
3. All Registrars of Cooperative Societies, (All State Govts.)
4. Planning Commission.
5. Ministry of Food & Agriculture (Deptt. of Agriculture).
6. Secretary, Akhil Bharatiya Serva Seva Sangh, Khadi Gram Udyog, Gram Swarajya Samiti, Rajghat, Varanasi-1.
7. Department of Community Development, Min. of C.D.&C.

Sd/- M. P. Bhargava,
Commissioner (Cooperation).

No. 5/6/63-P.R.

Government of India

MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION

(Department of Community Development)

Krishi Bhavan, New Delhi.

November 2, 1963.

To

The Secretaries incharge of
Community Development,
All State Governments.

SUBJECT:—*Special scheme for financial assistance to Gramdan villages.*

Sir,

In letter No. F.13-3-63-CF, dated 16th October, 1963, of the Department of Cooperation of this Ministry, the State Governments were informed of the decision to give financial assistance to Gram Sabhas directly, in States like Assam and Rajasthan, where Gramdan legislation has been enacted and Gram Sabhas have been constituted as corporate bodies, without the necessity of their forming Cooperative Farming Societies or Service Cooperatives for the purpose. It was also indicated in the letter that the terms and conditions for Central assistance as indicated in this Ministry's letter No. 13-3/61-CF, dated 4-2-63 would apply *mutatis mutandis* to the present scheme of assisting Gram Sabhas directly.

2. It is expected that assistance to the extent of about Rs. 5 lakhs during 1963-64, Rs. 15 lakhs during 1964-65 and Rs. 20 lakhs during 1965-66 would be available during the Third Plan period for such direct assistance to Gram Sabhas, out of the total provision of Rs. 1 crore available under the Centrally sponsored scheme.

3. The State Governments are requested to draw up schemes of assistance to Gram Sabhas and submit proposals to this Department as early as possible so that funds could be made available even during the current financial year. Assistance under this scheme would be available for the following purposes:

- (a) Short and medium term loans for implementation of the production programmes; and

(b) Where necessary, loans and subsidies according to the pattern for settlement of landless labour, etc. for items mentioned below:—

- (i) Land reclamation;
- (ii) Land improvement including lay out, contour bunding, fencing, construction of wells, improvement of irrigation facilities;
- (iii) Purchase of bullocks, carts, agricultural implements, seeds, fertilisers, etc. essential for improved agricultural production; and
- (iv) Construction of cattle sheds and godowns.

4. It is reiterated that the assistance under the scheme will be available only to Gramdan villages in those States where Gramdan legislation has been enacted and the Gram Sabhas have been constituted as corporate bodies. It is, therefore, requested that, while forwarding proposals, relevant extracts of the Gramdan legislation and the rules may also be sent along with one complete set of the legislation and the rules and regulations framed thereunder. The proposals should contain particulars of the villages for which assistance is proposed to be given with details regarding the number of families, the extent of land, the nature of schemes that are proposed to be taken up and the amount of funds that will be required for each type of scheme.

5. As already mentioned in the earlier letter of the Department of Cooperation No. 13-3-63-CF, dated 16th October, 1963, the amount of funds sanctioned for each State would be placed at its disposal. The State Government should work out suitable arrangements for utilisation of the assistance provided, in consultation with the State Bhoodan Yagna Samiti or State Level Advisory Committee for Collaboration with the Akhil Bharat Sarva Seva Sangh. The State Governments would be responsible for making recoveries and for ensuring proper utilisation of the assistance.

6. It will be appreciated if proposals of State Governments for financial assistance during 1963-64 are sent to this Department by the end of November, 1963. Estimates of requirement of funds for the year 1964-65 may also be sent so as to reach this Department not later than 31st of December, 1963.

7. The receipt of this letter may kindly be acknowledged.

Yours sincerely,
Sd./- Shiromani Sharma,
Under Secretary.

ANNEXURE VI

Tentative break-up of the assistance for 1964-65 under the special scheme for Gramdan and Bhoodan areas.

State	Total grant (Rs. in lakhs)
1. Andhra Pradesh	3.00
2. Assam	1.50
3. Bihar.	2.00 (1.75 lakhs sanctioned)
4. Gujarat	2.00
5. Jammu & Kashmir	..
6. Kerala	1.00
7. Madhya Pradesh	0.75
8. Madras.	1.50
9. Maharashtra.	4.00
10. Mysore	0.50
11. Orissa	3.00
12. Punjab	0.50
13. Rajasthan	4.00 (Already sanctioned)
14. Uttar Pradesh	1.00
15. West Bengal.	0.25
TOTAL	25.00

PLANNING COMMISSION

Summary record of the meeting on development of Gramdan villages and Bhoodan lands and problems relating to settlement of landless agricultural workers on 2nd and 3rd November, 1963 at Vigyan Bhavan.

AGENDA

1. Survey and Categorisation of Culturable Wastelands.
2. Progress of Schemes of Resettlement of Landless Agricultural Workers.
3. Implementation of Uppal Committee Recommendations and Colonisation Schemes.
4. Village Housing Projects Schemes.
5. Development of Bhoodan Lands.
6. Development of Gramdan Villages.

Saturday November 2nd, 1963 : 3.00 P.M.

The Deputy Chairman (Shri C. M. Trivedi) welcomed the guests and initiated discussion on the six items on the agenda. (A list of the persons present is at Appendix I.) Member (Agriculture) (Shri Shriman Narayan) who presided over the meeting, briefly indicated the background for discussion in his opening address (Appendix II). He said in spite of the great importance of the programme for resettlement of landless workers in the Third Five Year Plan, progress of schemes both for survey and for resettlement has been very slow. State Governments should, therefore, take vigorous steps for speeding up implementation. The Bhoodan movement had achieved substantial results through voluntary effort, and it is desirable that in implementing the centrally sponsored scheme for resettlement, preference should be given to agricultural workers who receive lands under the Bhoodan movement. The Gramdan movement has immense potentialities and could revolutionise our village life through the forces of community action and self-sacrifice and mutual aid. The Yelwel Conference held in September 1957 had expressed high appreciation of objectives of the movement. However, during all these years, the movement had not been able to make a visible impact on important

social and economic problems of the Indian villages. He pleaded for a concerted effort to intensify the movement, to begin with, in a few selected areas in different States in order to chalk out an effective way for solving the crucial problems of higher production and full employment.

2. *Shri J. P. Narayan* emphasised the need for a proper understanding and appreciation of the efforts made by Acharya Vinobha Bhave for a peaceful and voluntary social revolution through Bhoodan and Gramdan. Explaining the new concept of Sulabh Gramdan, he mentioned that the villagers donate 1/20th of their land for distribution to landless persons. The rest of the land remains in the possession of the owners, but the title is passed on to Gram Sabhas on condition that the land will not be given to any one, or transferred or hypothecated without their consent. In addition, 1/20th of the grain produced and 1/30th of the income from non-agricultural occupation are also donated to the village community for purposes of social security, i.e., for assistance to the sick, widows, orphans and other needy persons. One person from each family is a member of the Gram Sabha which is responsible for the development of the village and for the care of the sick and the needy. The four pillars of Gram Swaraj are thus— (1) the Gram Sabha which constitutes the village community, (2) an awakening of the sense of responsibility among the villagers for their less fortunate brethren, (3) donation of 1/20th of grain produced and 1/30th of other income for purposes of social security and (4) the right of ownership is donated to the Gram Sabha and 1/20th of land becomes available for redistribution.

3. *Shri J. P. Narayan* pointed out that the most crucial problem that arose as soon as a village was declared in favour of Gramdan related to credit, particularly in the backward areas where institutional credit did not exist. In some villages in Bihar private money-lenders charge interest varying from 37½% to 75% and even at that rate adequate credit was not available as land in the possession of cultivators could no longer be offered as security. In most States, Gramdan legislation has not yet been enacted. Even where the legislation exists, it takes a long time to form cooperative societies. After their registration, it is necessary for the cooperative societies to apply for membership to the Cooperative Banks, but admission to membership is often held up because the persons who are in a controlling position in the Banks fear that if the movement gathers strength, their interests might be adversely affected. Thus neither cooperative credit nor private credit is available. Even the Rupees One Crore set apart for the Gramdan areas by the Central Government has remained largely un-utilised.

4. *Shri S. K. Dey*, Minister for Community Development and Cooperation pointed out that in achieving the objectives of such a movement, a vigorous and sustained effort was necessary not only for obtaining Gramdan villages, but also for creating a strong public opinion for their development. This was necessary not only at the national or State levels, but also in the villages as the responsibility for gramdan development would rest ultimately with the panchayat institutions. It is not possible to work out a revolution unless there is a general national agreement about its objectives, an agreement not merely at personal levels, but among the people as a whole. Islands of ideology cannot be sustained, they should become integral parts of the mainstream of national development and linked up closely with its institutional framework.

5. *Shri J. P. Narayan* while agreeing with *Shri S. K. Dey* stated that he hoped that this meeting would help in the solution of problems of procedure and administration, and that he was considering the question of calling up another conference of leading workers representing the national parties which would help in the creation of a national consensus of opinion.

6. *Shri Tarlok Singh* stated that Bhoodan and Gramdan lands should be utilised to make the maximum contribution to rural development. Concrete solutions should, therefore, be found for each specific problem. The Bhoodan movement had slowed down and the land collected for the past several years had been more or less static. It is, however, for the Bhoodan workers to consider whether there is continuing need for Bhoodan. It is also necessary to expedite the process of verification and redistribution of lands and to give generous financial assistance to the families settled on donated lands. As regards Gramdan, adequate information was not available about the efforts made for development of the villages and the day-to-day problems thrown up. It is, therefore, necessary to make an intensive survey in at least a few villages to establish the nature of the problems that have to be dealt with. The development of these villages should be the responsibility of the Zila Parishads in cooperation with the Sarva Seva Sangh through a core of trained workers. The Sarva Seva Sangh should, therefore, consider the establishment of a team of whole-time workers and their training. He further suggested that the necessary legislation should be speedily enacted; comprehensive provisions for Gramdan could be included in the existing Bhoodan Acts.

7. *Shri T. N. Singh* was of the view that the Gramdan and Bhoodan movements should be free from the interference of the official agency and should retain the initiative in their own

hands. While problems of legislation and rule-making need immediate attention, there should be no obstacle in a democratic society to people pursuing a way of life that they wish to adopt. Socio-economic plan for each village should, therefore, be drawn up without waiting for legislation.

8. *Prof. Dandekar* suggested that the Bhoodan lands as well as Government lands available for cultivation should be identified first and clear titles should be established so that the lands could be distributed speedily.

9. *Shri K. Pandey, M.P.* said that there was no enthusiasm for cooperative joint farming in the villages largely on account of propaganda from parties other than the Congress and it is necessary to create a better atmosphere for the development of this movement. He pointed out that there should be no rigidity in regard to the details of the schemes as conditions varied from district to district.

Sunday—November 3, 1963: 9-30 A.M.

10. The first three items on the agenda were then taken up for discussion.

11. *Shri Ameer Raza* stated that the scheme relating to survey and categorisation of wastelands had been taken up only in 163 districts of the country and there was no detailed information in regard to the progress made. The cost per district worked out by some State Governments was very high as against Rs. 23,000/- provided by the Centre. He suggested that the expenditure incurred for survey should be examined and attempts should be made to complete the work as quickly as possible.

12. *Andhra Pradesh:* *Shri K. G. Dasikan* stated that there was a considerable extent of wastelands available in irrigation projects for which there was a great demand; about 85,000 applications had already been received. Other areas are not suitable for settlement as they lack irrigation facilities. Up to June 1962, 19 lakh acres had been distributed, but on account of the declaration of emergency, there is now a total ban on all assignments. Lands available to the tune of about 6 lakh acres have been reserved for defence personnel. The lands in wet areas are being surveyed and for dry areas, no survey is necessary. No assistance from the Centre is needed for the survey schemes.

13. *Assam*: Shri Bhatnagar stated that a Special Committee was appointed to locate the cultivable wastelands available in the State. The report could not be accepted as the information was not realistic. Recently another Committee with the Director of Land Records has been appointed to examine this problem. A scheme to settle 300 families has been drawn up by the State Government.

14. *Bihar*: Shri K. Raman stated that the survey of wastelands would be taken up in all the districts. The provision of Rs. 23,000 per district is not adequate in Bihar. As regards settlement, 1:7 lakh acres of Government land and 2:7 lakh acres of Bhoodan have been assigned to landless families.

15. *Gujarat*: Shri Desai stated that survey had been taken up in one district but it was not possible to take it up in other districts for lack of technical staff. All the lands have been allotted to Cooperative Societies. So far 5000 families have been settled on an area of 56,000 acres.

16. *Jammu and Kashmir*: Shri Bariwali stated that on account of the emergency no survey was undertaken. The work would, however, be completed by June, 1964. The allotment of 600 acres of land located by the Uppal Committee would be completed in a year or so.

17. *Kerala*: Shri Gopalaswamy stated that in Malabar area about 1.88 lakh acres were located, out of which 40,000 acres were allotted. In Cannanore district about 35,000 acres were located out of which 8,000 acres are proposed to be settled with landless families. As the lands are very poor, the pattern of assistance contemplated for resettlement is not sufficient; however, the estimate of the cost of survey at an average of Rs. 23,000 per district is all right. In view of the extremely heavy pressure of population and the scarcity of land in Kerala, the State Government are very anxious that arrangements should be made for settlement of people in other States where land is available. A request for this had been made at a very high level, but so far there was no response from other States.

18. *Madhya Pradesh*: Shri Aole stated that survey in 8 districts had been completed. The other districts would be completed by the end of third plan period. Considering the conditions in Madhya Pradesh, the cost of Rs. 23,000 per district is not sufficient.

19. *Madras*: Shri Ananthapadhbhanathan stated that survey work had been completed in ten districts of the State at a cost of Rs. 2 lakhs. About 80,000 families have been settled on

one lakh acres during the years 1961-62 and 1962-63. He suggested that a Committee which would take into account all India requirements might be appointed to examine the problem of agricultural production and settlement of landless families in a coordinated manner.

20. *The Chairman* pointed out that except in Bihar, U.P., West Bengal and Maharashtra, Committees at State level (on the lines of the Central Advisory Committee on Agricultural Labour) had not been set up. He suggested that similar Committees should be formed in collaboration with non-official organisations in the other States as early as possible.

21. *Maharashtra*: Shri Abyankar stated that survey and categorisation of wastelands had been completed and about 4.3 lakh acres had been distributed. Further work for survey or categorisation of lands was not necessary. About 1.72 lakh acres of forest land which have been demarcated into plots are to be distributed to landless families, preference being given to unemployed goldsmiths and defence personnel.

22. *Orissa*: Shri P. Misra stated that survey of wastelands in blocks of less than 250 acres in three districts had been completed and about 22,000 acres were located. The work had been taken up in other 10 districts. The cost of survey at Rs. 23,000 per district is not sufficient particularly in cadastrally un-surveyed areas.

23. *Punjab*: Shri R. S. Randhawa stated that survey in five districts had been completed and another four districts had been taken in hand. All the Government lands to the tune of about 15,000 acres have been allotted to 1200 landless families.

24. *Rajasthan*: Shri N. C. Bhatnagar stated that about 13 lakh acres had been distributed between 1953 to 1962 to 3 lakh families. Another 64 lakh acres are available for distribution. As most of the lands are marginal the pattern of financial assistance for the resettled families should be generous. A medium term loan of Rs. 500 for the purchase of bullocks should be considered.

25. *Uttar Pradesh*: Shri S. R. Singh stated that since 1952, 7 lakh acres had been distributed. There are still 15 lakh acres available for distribution which need survey. The cost of survey per district comes to about Rs. 62,000 based on the survey of two districts.

26. *West Bengal*: Shri Raychaudhri stated that the scheme of survey and categorisation of wastelands had been sanctioned and was being taken up. A State Advisory Committee has been

formed for the settlement of landless families. Blocks of wastelands exceeding 250 acres which had been located by the Uppal Committee would be put under forests. As regards settlement schemes, importance is being given to the settlement of refugees.

27. *The Chairman* stated that the settlement schemes should be viewed with a sense of urgency by all State Governments and completed as early as possible with the cooperation of official and non-official organisations.

28. *Shri Man Mohan Chaudhry* stated that States like Punjab and Orissa charged some sort of salami in settling landless people on land. The land should be distributed free of any charge and the families should be assisted financially for the purchase of bullocks, seeds, etc.

29. *Prof. V. K. R. V. Rao* suggested that care should be taken in the distribution of lands. Considering that land is a scarce commodity and there is an enormous number of claimants, procedures should be devised to eliminate opportunities for corruption or nepotism.

30. *Shri Annasaheb Sahasrabuddhe* was of the view that since marginal lands were being distributed, the settled families should be assured of some other source of income by providing milch cow, poultry etc.

31. *Shri J. P. Narayan* explained the procedure adopted in distribution of Bhoodan lands. The workers prepare a list of the available lands and the persons who are eligible, i.e. landless persons who are prepared to cultivate the land themselves, of these, at least one-third should belong to scheduled castes. In actual practice the proportion of persons belonging to scheduled castes is larger. A meeting of the village is then held and an appeal is made to the eligible families to agree among themselves about the persons to whom the land should be given. In many cases the appeal has a great effect and agreement is reached. However, where there is no agreement, lots are drawn.

32. *The Chairman* referred to the recommendations of the Patil Committee on the subject. The Committee had suggested that where the number of eligible claimants exceeds the land available, lots should be drawn.

33. In summarising the discussions, the Chairman referred to the points on which there was general agreement. The recommendations of the Conference are contained in Appendix III.

34. An Official Group consisting of State representatives and Shri Ameer Raza was asked to examine the questions relating to the pattern of assistance for survey, resettlement and colonisation schemes and to report their suggestions for consideration in the afternoon session of the Conference.

Sunday—November 3, 1963 : 4.00 P.M.

Village Housing Project Scheme

35. *Shri A. A. Khwaja* (W. H. & S. Ministry) stated that a sum of Rs. 16 lakhs has been allocated for the year 1963-64 for providing house-sites to landless agricultural labourers. No State has sent any proposal so far.

36. *Shri J. P. Narayan* suggested that granting of house-sites was more important than giving loans for housing.

37. *Shri S. K. Dey* suggested that the Ministry of Works, Housing and Supply may examine the question of rural housing with the counterpart departments in the States and take measures necessary for effective implementation of the scheme.

Pattern of Assistance

38. Shri Ameer Raza reported the suggestions of the Official Group with regard to the pattern of assistance :

- (i) In regard to survey scheme, the cost per district for which there was a ceiling of Rs. 23,000 should be raised to Rs. 50,000. In several States land records are not available; or detailed soil analyses have to be made. However, the amount need not be raised in respect of States which are already carrying out the work within the average limit of Rs. 23,000 per district.
- (ii) In the case of settlement schemes, the provisions of the maximum amount of Rs. 500/- per family as assistance would be raised to Rs. 750/- per family.
- (iii) Regarding colonisation schemes, the cost per acre of reclamation would continue to be Rs. 150/- per acre except in those cases where the Uppal Committee had recommended a higher cost or where the State Government suggested a higher cost. In the latter case, each scheme would be examined on merits. In addition, Rs. 750/- should be provided for the purchase of feeds, agricultural implements, seeds, etc. Rs. 1000/- should be given for housing ar'

an average of Rs. 1200/- for civic amenities. The total cost per family should not exceed Rs. 4,000/-. It was agreed that the suggestions may be examined in the Planning Commission.

Bhoodan

39. *The Chairman* mentioned that about 17 lakh acres of bhoodan land remained undistributed due to delay in the verification of titles. The State Governments were requested to expedite the progress. The Zila Parishad and the Panchayat Samiti should assist the Bhoodan Board in distributing the remaining bhoodan lands. In drawing up and implementing schemes for land resettlement under the centrally sponsored scheme of Rs. 7 crores, preference should be given to families to whom bhoodan lands are distributed. The work should be entrusted to Bhoodan Yagna Samitis wherever possible. A number of other recommendations were also made by the Conference which are contained in Appendix III.

Gramdan

40. *The Chairman* suggested that States should enact at an early date comprehensive Gramdan legislation on the lines of Assam and Rajasthan in consultation with the Sarva Seva Sangh workers and the Planning Commission would get in touch with the Chief Ministers concerned for expediting the enactment of Gramdan legislation. As regards credit in Gramdan villages, the Chairman explained that wherever Gramdan legislation had been enacted, the Gram Sabha could receive assistance out of Central fund of Rs. 1 crore without having to form cooperative societies. In other cases, the Cooperative Societies have to be formed to become eligible for assistance from the Central fund. He further pointed out that since Central funds were limited, there should be a flow of normal credit through the normal channels into Gramdan villages.

41. *Shri B. S. Murthi*, Deputy Minister, Ministry of Community Development and Cooperation referred to the earnest efforts made by the Government and its official agencies to help in the development of Gramdan villages. However, there were still a number of difficulties for solving which a joint effort would have to be made by official and non-official workers. There have been delays and difficulties in the verification of Bhoodan lands, their distribution to landless workers and financial assistance to the allottees. Attempts have been made to overcome the difficulties in giving financial assistance to Gramdan villages out of the Centrally sponsored scheme of Rs. 1 crore. The resources of the Gramdan villages and

Bhoodan Samitis are very meagre and a provision of Rs. 1 crore will not go far towards solving their problems. It is necessary to make arrangements for the flow of financial assistance from a variety of developmental programmes. Technical assistance and supplies have also to be provided in an abundant measure. In the circumstances, he was strongly of the view that it was necessary immediately to set up a Commission which should include leading official and non-official workers and should be responsible for the development of Gramdan and Bhoodan lands on a comprehensive basis.

42. *The Chairman* suggested that this proposal should be examined in detail in the Ministry of Community Development and Cooperation and the proposal could then be discussed in the Planning Commission.

43. *Prof. V. K. R. V. Rao* pointed out that the basic problem was the provision of necessary sanctions to ensure the recovery of loan given for the development of Gramdan villages. Whatever procedure is adopted for the issue of loans (*i.e.* whether it is given through Government agencies or through cooperative organisations or the Bhoodan Yagna Samitis) it would still be necessary to provide adequate measures for recovery in case of default. Ultimately the lending authority should be satisfied that the loans advanced by it would be recovered. Prof. Rao, further pointed out that a large number of Gramdan villages had not been verified and immediate action should be taken for the purpose; the longer it is delayed, the more difficult it will become. He also suggested that since a large number of the Gramdan villages were in the tribal areas, the new tribal development blocks should be located in the Gramdan areas. The scheme should be worked out in consultation with the Ministries of Home Affairs and Community Development.

44. *President, Sarva Seva Sangh (Shri Man Mohan Chaudhry)* agreed that the question of recovery of arrears would need careful examination. However, he pointed out that a provision could be made enabling the Gram Sabha to take over possession of part of the land of the defaulter for a specific period.

45. *Shri J. P. Narayan* suggested that if non-official workers devoted part of their time for the development of Gramdan, the movement would make rapid strides in the near future. He said that the scheme of Gramdan did not exclude the co-operative movement, but was on the other hand a strong ally making joint farming possible. The Gramdan idea and the co-operative farming idea could be combined to produce the best

results for the community. In conclusion he observed that Gramdan as he had described it contributes to, and aims at, the growth of rural community, *i.e.*, the growth of the spirit of the community, cooperative farming, by itself, does not necessarily achieve that result, or is even intended to do so.

46. In his concluding remarks, the Chirman referred briefly to the various points on which there was general agreement. The resolutions of the Conference are contained in Appendix III. The Chairman observed that a number of programmes had been taken up for improving the conditions of the weakest sections of the rural community. It is necessary to coordinate these programmes so that we may achieve our objective of establishing a society in which the bulk of the people enjoy at least the minimum living standards. The various schemes which have been discussed are essential parts of a wider perspective and should not be viewed in isolation from one another. Bhoodan and Gramdan movements are of help in achieving these objectives on a peaceful and voluntary basis. Every effort should, therefore, be made for their development.

47. The meeting terminated with a vote of thanks to the Chair.

APPENDIX I

Meeting held on November 2 & 3, 1963

[A list of persons present at the meeting on Development of Gramdar villages and Bhoodan lands and resettlement of landless agricultural workers.]

Shri Shriman Narayan—*Chairman*

Planning Commission

Shri C. M. Trivedi, Dy. Chairman

Shri T. N. Singh, Member

Shri Tarlok Singh, Member

Prof. V.K.R.V. Rao, Member

Shri C. R. Pattabhi Raman,

Dy. Minister (Planning)

Ministry of C. D. & C.

Shri S. K. Dey, Minister

Shri B. S. Murthy, Dy. Minister (CD).

Special Invitees.

Shri Jayaprakah Narayan

Shri Man Mohan Chaudhury

Shri V. C. Kesava Rao, MP.

Shri K. Ramaswamy Naidu

Shri Prabhakarji

Shri Annasaheb Sahasrabudhe

Shri Dayabhai Nayak

Shri Poorna Chandra Jain

Shri Kashi Nath Pandey, M.P.

Prof. V. N. Dandekar.

Shri Radhakrishna

Shri L. M. Shrikant

Shri S. Jagannathan

Shri Suresh Ranbhai

Shri Baidya Nath Choudhry

Shri Dal Singh Tyagi

Shri P. K. Kapadia

Shri Dharma Dev Shashtri

1. Central Government Officials.

Ministry of Comm. Dev. & Coop.

Shri M. R. Bhide, Secretary.
 Shri S. Chakravarty, Addl. Secy.
 Shri M. P. Bhargava, Coop. Commr.
 Shri V. Dayal, Under Secretary.
 Shri S. Sharma, Under Secretary.

Ministry of Food & Agriculture

Shri G. R. Kamat, Secretary
 Shri I. P. Mathur, Dy. Secretary.
 Shri A. C. Jain, Under Secretary.

Ministry of Home Affairs.

Shri O. K. Murty, Officer on Special Duty.

Ministry of Labour & Employment.

Shri R. M. Diphode, Dy. Secretary.

Ministry of W. H. & R.

Shri A. A. Khawaja, Under Secretary.

Planning Commission.

Dr. S. R. Sen, Adviser (Prog. Admn.)
 Shri D. P. Singh, Jt. Secretary.
 Shri Ameer Raza, Jt. Secretary.

Reserve Bank of India.

Shri A. N. Vij, Deputy Chief Officer.

2. State Government Officials

Andhra Pradesh.

Shri K. C. Desikan, Deputy Secretary, Revenue.

Assam

Shri S. M. L. Bhatnagar, Revenue Secretary.
 Shri S. D. Phene, Deputy Secretary, Agri.

Bihar.

Shri K. Raman, Land Reform Commissioner.
 Shri U. Prasad, Deputy Secretary, Revenue.

Gujarat

Shri N. V. Desai,
 Land Reforms Implementation Officer.

Jammu and Kashmir.

Shri G. M. Bariwali.

Kerala

Shri R. Gopalaswamy,
Revenue Secretary.

Madhya Pradesh.

Shri S. H. Aole,
Director, Land Records.

Madras

Shri N. Anathapadmanathan
Addl. Secretary, Revenue.
Shri K. M. L. Chhabra,
Special Officer, Revenue.

Maharashtra

Shri P. H. Abhyankar,
Deputy Secretary, Revenue.

Orissa

Shri P. Misra,
Deputy Secretary (Agri.)

Punjab

Shri R. S. Randhawa,
Commissioner for Agrarian Reform.

Rajasthan

Shri Narayan Chand Bhatnagar,
Colonisation Commissioner.
Shri Mohanlal,
Deputy Secretary, Revenue

Uttar Pradesh.

Shri Kishan Chand,
Development Commissioner.
Shri Shiv Ram Singh, Revenue Secretary.

West Bengal.

Shri N. Raychaudhri,
Member, Board of Revenue.
Shri S. K. Mukerjee,
Joint Director of Agri.
Shri A. Dass Gupta,
Special Officer.

APPENDIX II

Opening remarks of Shri Shriman Narayan, Member, Planning Commission, presiding at the meeting on development of Gramdan villages and Bhoodan lands and problems relating to settlement of landless agricultural workers on 2nd November 1963 at 3.00 P.M. at Vigyan Bhavan, New Delhi.

The Third Five Year Plan had laid great stress on schemes for the settlement of landless agricultural workers on lands newly reclaimed by the Government or declared surplus after the imposition of ceilings, and on bhoodan and Gramdan lands. As a first step, it was essential to make a general survey of culturable lands and demarcate areas suitable for resettlement. A Committee was appointed by the Government of India to make a rapid survey of large areas of wastelands, constituting blocks of 250 acres or more and to recommend suitable measures for reclamation and resettlement of land which was fit for cultivation. This Committee has submitted reports in respect of 12 States and has recommended the reclamation of about 10.8 lakh acres at an estimated cost of Rs. 16.8 crores. With a view to supplementing the work of this Committee, the Third Plan had made provision for Rs. 69 lakhs for a quick survey of smaller areas of land below 250 acres. This work has already been taken up in 13 States covering about 150 districts.

Programmes for reclamation and resettlement of agricultural workers have been sanctioned in 12 States. So far, schemes for the resettlement of about 85,000 landless families have been finalised. During 1963-64, Rs. 12 lakhs have been provided as Central assistance for such schemes. It must, however, be conceded frankly that the progress of schemes both for survey and resettlement has been very slow. In view of the vital importance of these programmes, it is essential that the State Governments take vigorous step for speeding up their implementation.

The Bhoodan movement initiated by Acharya Vinoba Bhave has been able to achieve substantial results entirely through

voluntary efforts. About 10 lakh acres of land received under Bhoodan have already been distributed to landless labour. On the other hand, land legislation and its implementation in the States has lagged behind and it is difficult to assess in exact terms the acreage of land that would be ultimately available to the Government for redistribution among landless workers. The Government of India have earmarked a sum of Rs. 7 crores for reclaiming wastelands for resettlement of landless labour at the rate of Rs. 150 per acre, and for meeting initial expenses involved in resettlement at the rate of Rs. 500 per family. It would be desirable that while sanctioning financial assistance under these Centrally sponsored schemes, preference is given to agricultural workers who receive lands under the bhoodan movement.

Under the inspiration of Acharya Vinoba the Gramdan movement has been making steady progress both in numbers as well as in quality. The total number of gramdan villages is now of the order of 5,800 and this number includes not only villages located in tribal areas of different States but villages which possess rich land and are inhabited by progressive farmers. This is, indeed, a happy sign and an indication that the Gramdan movement is taking roots and beginning to make an impact on the problems of reconstruction in the Indian countryside.

The Gramdan Conference at Yelwel was held in September 1957 and was attended by the President, the Prime Minister, important Members of the Union Cabinet, some Chief Ministers, representatives of important political parties and of the Sarva Seva Sangh. The Conference had welcomed the Gramdan movement and "expressed their high appreciation of the objectives underlying it." It was agreed that the movement would "lead to a fuller development of co-operative life and effort in the villages concerned and would also result in the economic betterment of the people of those villages and all round progress and development". The essential feature of the Gramdan movement was the non-violent technique adopted and its voluntary character. The Yelwel Conference particularly stressed the "ethical approach which was combined with practical economic advantages and the development of a social order based on co-operation and self-help." The Conference stated that such a movement deserved "every kind of help and encouragement". It was further pointed out that closest co-operation was desirable between the Community Development movement and the Gramdan movement.

More than six years have elapsed since the Yelwel Conference. The Ministry of Community Development and Co-operation has been trying to encourage the Gramdan movement in some ways with the help of the representatives of the Sarva Seva Sangh. The Planning Commission has earmarked a sum of Rs. one crore for extending special financial assistance in the form of loans to the Gramdan areas. A model legislation was also prepared by the Commission and forwarded to the State Governments for adoption with suitable changes in accordance with local conditions. So far, only three States have enacted Gramdan legislation, and it is necessary that other States, where sizable number of villages have been donated under the Gramdan movement, also adopt such legislation at an early date. This should be regarded as the minimum assistance which the State Governments should willingly extend to this movement of great significance.

It is obvious that during all these years, the Gramdan movement has not yet been able to make a visible impact on important social and economic problems of the Indian villages. It is no use blaming one another for this slow growth of the movement. Perhaps, in the initial years, it was desirable to lay greater emphasis on quality rather than on numbers. Nevertheless, it is now high time that the great potentialities of the Gramdan movement are fully recognized by all of us and a concerted effort is made to consolidate and intensify the movement in order to chalk out a new and more effective way for solving the crucial problems.

The mid-term appraisal of the Third Plan clearly indicates that despite our efforts to increase agricultural production in the country and to ameliorate the social and economic conditions of the weaker sections of the population, it has not been possible to achieve marked success in this direction. The condition of the landless labour continues to cause anxiety and institutional changes in our countryside through Panchayats and Co-operatives have not been able to meet the requirements of a speedier rate of economic growth. The Panchayati Raj was intended to actively involve millions of our rural population into this national adventure of quickening the pace of economic progress through higher production. While these village institutions have helped in introducing a new consciousness and a sense of responsibility among the villagers, electoral conflicts in many places have tended to disrupt the unity of rural communities by engendering mutual jealousies and rivalries, and have distracted their attention from the essential schemes. It has also been difficult to

mobilize the necessary resources for rural development either through taxation or borrowings and small savings. The Co-operative movement, including co-operative farming, has not yet been able to make much headway in helping smaller farmers to pool their meagre resources for a more scientific system of agriculture. The basic problems of unemployment and under-employment continue to stare us in the face, and a satisfactory solution is not in sight.

The Gramdan movement, on the other hand, has shown that the masses could generate a new sense of self-help and self-reliance by voluntarily pooling their land and capital resources for the good of the community. In Gramdan villages, a majority of the cultivators agree to surrender their lands to the village community so that the Gramsabha could prepare a production plan for the village as a whole on a more equitable and scientific basis. The Gramsabha is expected to shoulder the responsibility of providing land to the landless workers and ensuring employment to the people. The villagers also agree to donate a portion of their annual produce to the Gramsabha for creating a nucleus of funds for setting up rural industries, milk schemes and other economic enterprises. The Gramsabha consists of all the adults of the village, electing an Executive Committee on the basis of unanimity. This arrangement avoids unhealthy bitterness which is created out of electoral contests. The village communities under Gramdan, thus, try to pool their limited resources and help the weaker sections through their own efforts, without depending unduly on the Government. The type of co-operative endeavour that is generated in the Gramdan villages is, doubtless, of a higher order as compared with the existing co-operative agencies.

It is, therefore, quite evident that the Gramdan movement, if properly encouraged and strengthened, could strike a new path towards a more rapid socio-economic progress of the Indian countryside, and help in establishing Panchayati Raj on more stable and broad based foundations, and ensure minimum levels of living to the weaker segments of the population, through self-help and co-operative effort. I have no doubt that this movement has immense potentialities which must now be utilised to the fullest advantage. It could revolutionize our village life through the forces of community action and self-sacrifice and mutual aid. It is, undoubtedly, a superior movement as compared with the regimented organisation of Communes in China. Vinobaji had termed Gramdan as a "defence measure" even at the Yelwel Conference six years ago, at a time when nobody could have visualised Chinese

attack on our borders. He continues to repeat day after day that the Gramdan movement, if pursued with a sense of urgency by the people and the Government, would bring about a cohesive and egalitarian society which alone could strengthen our defensive capacity in the real sense of the term.

In modern times wars are not fought on the frontiers along; they have to be fought on the social and economic fronts within the country and in every village. The Prime Minister has also emphasised time and again that our real battle is against hunger, poverty and unemployment. It should be a comparatively easy matter to defend our borders against the Chinese aggression. But our real and lasting success would depend on establishing a socialist and equitable society in which every citizen is enabled to secure minimum standards of living with a sense of dignity, mutual help and self-respect. From this standpoint, it should be our earnest endeavour to extend fullest support and active assistance to the Gramdan movement in every possible manner. We can no longer afford to view this movement from a distance, expressing appreciation and sympathy and making some provision for financial assistance. In my view, the essential principles underlying the Gramdan movement should become an integral part of our developmental plans for higher agricultural production, community development, panchayati raj, co-operative effort, resettlement of landless labour, liquidation of unemployment and under-employment, and ensuring minimum living standards. I would invite the participants in this meeting to suggest specific measures for achieving this objective in a systematic and planned fashion. While we should not do anything to lessen the non-official and voluntary character of the Gramdan movement and dilute the spirit of self-help and self-reliance among the villagers, a series of steps will have to be taken by the Government as well as the voluntary organisations to intensify the Gramdan movement, perhaps, to begin with, in a few selected areas in different States. I am confident that this meeting will be able to draw out a concrete programme which could be implemented at an early date with the co-operation and goodwill of all concerned.

RECOMMENDATIONS

ITEM 1.—*Survey and Categorisation of Wastelands:*

(1) The Work of survey and categorisation of Wastelands in blocks of less than 250 acres needs urgent attention of the State Governments. It is suggested that the survey may be completed by the end of 1964-65.

(Action—State Governments)

(2) The official group has recommended that the average cost of survey per district which had been placed at Rs. 23,000/- should be raised to Rs. 50,000/-. In several States land records are not available or detailed soil analyses have yet to be made. However, the amount need not be raised in respect of States which are already carrying out the work within the average limit of Rs. 23,000/- per district.

This recommendation may be examined in the Planning Commission.

(Action—Planning Commission)

(3) In each State there should be an officer at the State level responsible for coordinating the work, reviewing progress and ensuring that the scheme is implemented speedily.

(Action—State Governments)

ITEM 2.—*Schemes for resettlement of landless agricultural workers :*

(4) It was noted that the Centrally sponsored scheme of Rs. 7 crores for the resettlement of landless agricultural workers has made very slow progress. However, considerable areas of land have been allotted to landless agricultural workers in the course of day-to-day administration in the villages. In this connection the State Governments, which have not already furnished the information requested for by the Planning Commission (*vide* circular letter No. 19/63-LR dated 30th September, 1963) were requested to kindly expedite the supply of the information.

(Action—State Governments)

(5) Land should be distributed to the poor section of the community particularly to the Harijans and the Tribals, free of charge.

(Action—State Governments)

(6) The allottees should not have the right to sell or mortgage the lands within a period of 10 years from the date of allotment. They should, however, be enabled to mortgage their lands as security for cooperative or taccavi loans.

(Action—State Governments)

(7) Where the number of eligible claimants exceeds the number of units of land which could be distributed, attempts to be made to arrive at an agreement among the persons eligible, failing which lots may be drawn.

(Action—State Governments)

(8) State Governments may kindly furnish detailed information on the distribution procedures, order of priorities and nature of tenures at an early date. They may also consider making suitable changes as suggested above. In this connection attention is invited also to the recommendations made by the Patil Committee.

(Action—State Governments)

(9) The attention of the State Governments is drawn to the urgent need for taking up the implementation of the Centrally sponsored scheme effectively and for making adequate administrative and financial arrangements for the purpose.

(Action—State Governments)

(10) There is urgent need for setting up State level Advisory Committees which may include representatives of non-official organisations. It is suggested that action in this regard may kindly be taken speedily in States where such Committees have not already been set up.

(Action—State Governments)

(11) There should be an officer at the State level, responsible for coordination of schemes for resettlement and for ensuring speedy implementation. Arrangements are also necessary for coordination and for review of progress at the district level. Representatives of non-official organisations such as Bhoodan and Gramdan workers and Panchayats and cooperative institutions may be associated with the work at the State and district levels.

(Action—State Governments)

(12) In drawing up and implementing resettlement schemes under the centrally sponsored scheme of Rs. 7 crores, preference should be given to families to whom Bhoodan lands are distributed. Wherever possible, the work may be entrusted to the Bhoodan Yagna Samitis which have been set up in the States.

(Action—State Governments)

(13) The official group has recommended that the provision of maximum amount of Rs. 500/- per family made under the centrally sponsored scheme should be raised to Rs. 750/- per family. This proposal may be examined in the Planning Commission.

(Action—Planning Commission)

ITEM 3.—Implementation of Uppal Committee recommendations and Colonisation Schemes :

(14) It was noted that little progress has so far been made in the reclamation of lands suggested by the Uppal Committee. In West Bengal, it has been decided that on account of the pressing need for larger areas under forest, the lands would be utilised for afforestation and not for cultivation. However, in other States, where considerable areas still need to be reclaimed, urgent attention should be given to this work and steps taken to ensure that the lands are reclaimed as early as possible. Where the lands belong to Government, steps may kindly be taken for drawing up and implementing colonisation schemes speedily.

(Action—State Governments)

(15) The implementation of the Uppal Committee recommendations may be reviewed by the State and district level Committees suggested earlier. There should be an Officer at the State level responsible for coordinating the work and for ensuring speedy and effective implementation.

(Action—State Governments)

(16) In cases where a further detailed survey or categorisation of lands recommended by the Uppal Committee is necessary, schemes for survey may kindly be drawn up speedily.

(Action—State Governments)

(17) Such schemes should also be eligible for Central assistance under the centrally sponsored scheme for survey.

(Action—Ministry of Food & Agri.)

(18) The State Governments may kindly examine the extent to which reclamation can be carried out through manual labour and the extent to which use of tractors and other machines may be involved.

(Action—State Governments)

(19) The official group has recommended that with regard to colonisation schemes, the maximum cost per acre of reclamation may continue to be Rs. 150/- per acre except in those cases where the Uppal Committee has itself recommended a higher cost. However, where the Uppal Committee has not recommended a higher cost and the State Government feels that the reclamation cannot be carried out within the limit of Rs. 150/- per acre, specific proposals may be forwarded to the Ministry of Food and Agriculture for consideration. In addition to the assistance of Rs. 750/- per family for purchase of foods, agricultural implements, seeds, etc. which is proposed under the resettlement scheme, Rs. 1,000/- should be provided for housing and an average expenditure of Rs. 1,200/- per family for civic amenities such as road, drinking water supply, Panchayat Ghars, etc. The total cost per family in a colonisation scheme should not exceed Rs. 4,000/- per family.

This recommendation may be examined in the Planning Commission.

(Action—Planning Commission)

(20) In the allotment of land in colonisation projects, the suggestions made under Item 2 may be kept in view.

(Action—State Governments)

ITEM 4.—*Village Housing Scheme :*

(21) The Ministry of Works and Housing may, in consultation with concerned Departments of State Governments, take necessary measures for implementing speedily the scheme of Rs. 5 crores for provision of house-sites to landless agricultural workers.

(Action—Ministry of Works and Housing)

ITEM 5.—*Bhoodan.*

(22) Out of the total area of land donated in Bhoodan, about 17.5 lakh acres are still to be distributed among landless agricultural workers. It is essential to make a concerted effort for the distribution of this land during the remaining period of the Third Plan.

(Action—State Governments/Sarva Seva Sangh)

(23) There has been a delay in the verification of titles in spite of special provisions made in the Bhoodan Acts. It is desirable that State Governments make special arrangements for speedy registration of Bhoodan lands so that the work of distribution could be expedited. Action for registration of lands which have been re-distributed should also be expedited.

(Action—State Governments)

(24) In the statements regarding donation of Bhoodan lands and their disposal, the number of cases in which Dan Patras have not been submitted to revenue agencies for verification and/or the area of land involved may also be indicated. The statement should also show the area of lands involved in cases in which a Dan Patra was filed but was rejected by the revenue authorities concerned.

(Action—Sarva Sava Sangh)

(25) The Zila Parishads and the Panchayat Samitis should assist the Bhoodan Boards in distributing the remaining Bhoodan lands in their areas.

(Action—Ministry of Community Development and Cooperation)

(26) Under the centrally sponsored scheme of Rs. 7 crores, preference should be given to families to whom Bhoodan lands are distributed.

(Action—State Governments)

(27) It is desirable to step up the Bhoodan work side by side with the Gramdan Movement.

(Action—Sarva Sava Sangh)

(28) Bhoodan lands which are unfit for cultivation should be distributed to landless agricultural workers for house-sites with particular regard to the needs of those among them who belong to scheduled castes or tribes. Lands which are unfit for cultivation and which cannot be utilised as house-sites, should be made over to the village community for community purpose such as pastures etc.

(Action—Sarva Seva Sangh)

ITEM 6.—Gramdan:

(29) Those States which have not yet enacted Gramdan legislation may kindly do so at an early date. The legislation should include comprehensive provision for the verification and establishment of Gramdan villages, the constitution of Gram Sabhas and their functions. It would be desirable to consult

the Sarva Seva Sangh or the leading workers of the Gramdan and Bhoodan movements in the State before preparing the draft legislation. The legislation may either be in form of a separate Act or in the form of amendment to the Bhoodan legislation. The Planning Commission would get in touch with the Chief Ministers concerned for expediting the Gramdan legislation particularly, those States where a good number of Gramdans have taken place.

(Action—Planning Commission and State Governments)

(30) Even where Gramdan legislation has been passed, considerable time is taken in the verification and declaration of Gramdan villages. The State Governments are requested to expedite these procedures for enabling these villages to undertake developmental activities without loss of time.

(Action—State Governments)

(31) Special attention should be given to the formation of Cooperative joint farming societies in Gramdan villages.

(Action—Ministry of Community Development and Cooperation)

(32) While implementing various plan schemes connected with intensive agriculture, cattle development, rural industries, rural work programme and the village volunteer force, special attention should be devoted to the Gramdan areas which evince a spirit of self-reliance, community effort and mutual co-operation.

(Action—Planning Commission and the Ministries concerned)

(33) In order to place the Gramdan movement on a sound footing it is essential to train a large number of constructive workers who could guide a group of Gramdan villages in their areas. While the training should be organised by the Sarva Seva Sangh and other non-official agencies, the Government should be willing to extend the necessary financial assistance for the purpose.

(Action—Sarva Seva Sangh)

(34) A quick survey of the Gramdan villages in different States should be conducted in order to give to the Government and the people fuller information about the socio-economic conditions of these villages.

(Action—Sarva Seva Sangh)

(35) The Panchayati Raj institutions should take active interest in the promotion and development of the Gramdan movement which contains immense potentialities for the solution of difficult problems relating to higher production, full employment and for ensuring minimum living standards to the weaker sections of the population.

(Action—Ministry of Community Development and Cooperation)

(36) It is essential to provide adequate credit facilities to the Gramdan villages for developmental purposes. Wherever Gramdan Acts have been adopted, it would no longer be necessary for the Gramdan villages to form separate cooperative societies for securing credit facilities including taccavi loans from the State Governments. In other cases, the cooperative departments should take steps to register cooperative societies in Gramdan areas expeditiously. Wherever necessary, additional staff may be appointed for the purpose.

(Action—Ministry of Community Development and Cooperation)

(37) In States where Gram Sabhas have not been constituted as statutory bodies under the relevant Act, financial assistance can be given through cooperative societies (which should be quickly registered and enrolled as members of cooperative banks).

(Action—Ministry of Community Development and Cooperation)

(38) During the interim period, State Governments should advance necessary funds (available from the Centrally sponsored scheme of Rs. 1 crore) to the State Bhoodan Yagna Samiti (which is a statutory body) for meeting the needs of Gram Sabhas in cases where they are satisfied that the Gram Sabhas have been duly constituted and are able to function. The statutory liability for recovery of such loans and payment to Government will, however, rest upon the State Bhoodan Yagna Samiti.

(Action—Ministry of Community Development and Cooperation)

(39) As regards the scaling down of old debts in the Gramdan Villages, it would be desirable to persuade the creditors on a voluntary basis to rationalise their accounts. The special Gramdan funds which are being advanced by the Centre to the State Governments could also be used for the payment of their old loans by the Gram Sabhas. The Gram Sabhas would, in

turn, recover the loans from the farmers and pay back to the Government in due course.

(Action—Ministry of Community Development and Cooperation)

(40) Akhil Bharat Sarva Seva Sangh may consider the question of evolving suitable arrangements for debt conciliation on a voluntary basis. They may also consider whether it would be desirable to utilise Debt Conciliation Boards wherever they exist. The question would be examined further on receipt of the recommendations of the Akhil Bharat Sarva Seva Sangh.

(Action—Akhil Bharat Sarva Seva Sangh)

(41) Government lands in Gramdan villages, should be handed over to the Gram Sabhas instead of being distributed to individual landless workers, on specified conditions.

(Action—Ministry of Food & Agri.)

(42) It would perhaps be desirable to select about a dozen districts in the country for the intensive development of the Gramdan villages for a period of two years or so. The experience gained in these intensive areas could then be multiplied quickly in other districts.

(Action—Sarva Seva Sangh)

(43) In opening new tribal development blocks, preference should be given to Gramdan villages.

(Action—Ministry of Home Affairs)

(44) For ensuring adequate supplies of credit for Gramsabhas through various channels such as taccavi, cooperative funds and special Government aid, it is necessary to consider the sanctions which may be applied in cases where the persons to whom loans have been granted default payment. In this connection a suggestion was made that ultimately it might be necessary to make provisions for lands held in Gramdan villages being hypothecated as security for loans. This question needs further examination in consultation with the Akhil Bharat Sarva Seva Sangh. On receipt of the recommendations of the Sangh, the question could be examined further in the Planning Commission.

(Action—Sarva Seva Sangh)

(45) A suggestion was made that a Commission or a Corporation should be established at national level (on the lines of the Khadi and Village Industries Commission) which should be responsible for ensuring progress of Gramdan villages and Bhoodan lands and for making necessary provisions for supply of funds to them. This suggestion should be examined further in the Planning Commission in consultation with Sarva Seva Sangh and the Ministries concerned.

(Action—Planning Commission)

Summary Record of the meeting held on 5-11-63 to consider certain matters arising from the Gramdan Conference of 2-3 Nov. 1963

The following were present:

Planning Commission:

1. Member (Agriculture) (Shri Shriman Narayan).
2. Member (A & T) (Shri Tarlok Singh).
3. Joint Secretary (Shri D. P. Singh).
4. Joint Secretary (Shri Ameer Raza).
5. Assistant Chief (Shri A. N. Seth).

Ministry of Community Development & Cooperation.

1. Shri B. S. Murthi, Deputy Minister.
2. Shri M. R. Bhide, Secretary.

Sarva Seva Sangh:

1. Shri Annasaheb Sahasrabudhe.
2. Shri Man Mohan Chaudhry.
3. Shri Radhakrishna.
4. Shri R. K. Patil.

Credit for Gramdan Villages:

It was pointed out that in actual practice Cooperative Banks are reluctant to give credit to cooperative societies even when such societies have been formed in Gramdan Villages.

It was suggested that the Ministry of Cooperation may take necessary steps to remove this difficulty. Gramdan workers may help in this endeavour by creating public opinion and educating the people.

(Action—Ministry of C.D. & C. and Sarva Seva Sangh)

The possibility of a legislation (either by amendment of the Bhoodan or Gramdan Acts or by an amendment of the Cooperative Law) recognising the Gram Sabhas as cooperative societies and including them in the framework of cooperative

institutions, should be examined. If this step is taken, the Gram Sabhas would be in a position to advance cooperative loans to their members directly, but they would be subject to the conditions and discipline of cooperative societies.

It was agreed that this question should be examined further in consultation with the Sarva Seva Sangh, Planning Commission and the Ministry of Cooperation.

(Action—Sarva Seva Sangh)

In the Gramdan Conference, the need for providing appropriate sanctions for recovery of loans in cases of default was emphasised. Short term and medium term loans are to be given on the security of crops. However, in actual practice such loans are sometimes given only on the security of land and the problem still remains. Further, long term loans cannot be given except on the security of land. It was pointed out that this difficulty could be met if the Gramdan land can be mortgaged as security for loans (in which case it could be sold in case of default). However, it was doubtful whether such a legal provision would be acceptable to the Sarva Seva Sangh and even if it is acceptable a practical difficulty still remains as the lands of a whole village cannot be sold off. There could be cases where the Gram Sabha as a whole is unwilling to repay the loans and takes a stand against their recovery. In such cases, it would not be a practicable proposition to sell lands for default of payment as no one would be willing to buy such lands.

As an alternative it was suggested that a legislation could be made providing that Gramdan land could be hypothecated as security. But in case of default it would not be put up for sale, instead possession could be taken over for a specified period until the loan was recovered from the produce of the land over a course of years.

It was agreed that the question should be examined further by the Sarva Seva Sangh and when the views of the Sarva Seva Sangh have been received decisions could be taken by the Planning Commission and the Ministry of Cooperation.

(Action—Sarva Seva Sangh)

Cadre of trained workers

There is need for a cadre of trained whole-time workers for expediting the process of registration of Bhoodan lands and Gramdan villages and their re-distribution and also for

detailed work in drawing up and executing plans of development. It would be desirable to organise training of such workers and since they would have to work whole-time or at least to devote most of their time to the movement, some small allowance for the maintenance of the workers and their families may also be necessary.

It was mentioned that Acharya Vinobha Bhave's view is that the Sarva Seva Sangh workers should concentrate their attention upon educating the people and obtaining Gramdan and that the work of development should be carried out by other agencies.

It was pointed out that the development of Gramdan villages and Bhoodan lands should be deemed to be an essential part of the movement. If this is not done, the movement may itself suffer a set-back.

It was pointed out that at present the Zila Parishads do not accept responsibility for development of Gramdan villages and as some of the landlords and money-lenders are not sympathetic, a number of difficulties arise.

It was felt that there is need for strengthening the Sarva Seva Sangh organisation in order, particularly, to promote Gramdan development and that, for the present a scheme for a cadre of 1000 workers should be drawn up. These workers would provide the necessary local leadership in the village without which development activities cannot make headway.

It was agreed that this question may be examined further by the Sarva Seva Sangh.

(Action—Sarva Seva Sangh)

Appointment of a Commission or Board for Gramdan development

It was suggested that it is necessary to appoint a High-Powered Commission or Board which would be responsible for the overall development of Gramdan lands and for ensuring that the necessary technical and financial assistance are provided. Some difficulties in this regard were noted. Such an organisation may have the effect of isolating Gramdan villages from the existing institutional frame-work for development, such as Panchayat Institutions, cooperative institutions, etc. Difficulties of coordination have been experienced even in connection with the work of Khadi and Village Industries Commission and a number of other Bodies such as Rural Industries Planning Committee, Small Industries Board, Handloom Board,

etc. had to be set up to coordinate the work. The development of Gramdan has to be organised on a comprehensive basis and would take all the aspects of development such as agricultural development, industrial development, provision for employment, education, medicine, health, etc. into account. In the circumstances, a Commission or Board may find it difficult to take the responsibility for all these items of development. Expenditure on large staff would also become necessary. It would also be difficult to dovetail the Commission's work with other institutions and agencies for development.

It was agreed that the question may be examined further in the Ministry of Community Development and Cooperation and if they sponsor a proposal to this effect, the question could be examined further in consultation with the Planning Commission. Meanwhile, it was suggested that a Cell may be created in that Ministry for Gramdan development and they may also consider making the National Advisory Board for cooperation of the Sarva Seva Sangh more broad-based by including representatives of the Khadi and Village Industries Commission, Gandhi Nidi, Kasturba Nidhi etc.

(Action—Ministry of C. D. & C.)

It was agreed that the Sarva Seva Sangh would also consider the question of strengthening its own organisation.

(Action—Sarva Seva Sangh)

No. 5/6/63-P.R.

MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION

(Department of Community Development)

New Delhi, December 20, 1963

To

The Secretaries in-charge of
Community Development/Cooperation,
all State Governments.

SUBJECT:—*Special scheme for financial assistance to Gramdan
villages.*

Sir,

I am directed to refer to this Ministry's letter No. 13-3/63-CF dated 16th October, 1963, of the Department of Cooperation and the subsequent letter of the Department of Community Development issued under No. 5/6/63-PR dated 2nd November, 1963 wherein the agencies and the procedure for issue of financial assistance under the special scheme were indicated.

The problems of development of Gramdan villages and Bhoodan areas were discussed recently in the conference held at Delhi which was attended by the representatives of Sarva Seva Sangh, State Governments and the Ministries of the Government of India. The Conference suggested that as statutory Gram Sabhas have been constituted only in a few States, assistance may also be provided through Bhoodan Yagna Samitis wherever they are statutory bodies. This recommendation of the Conference has been accepted by the Government of India. It has been decided that the State Governments may also utilise the agency of the statutory Bhoodan Yagna Samitis for providing financial assistance under the special scheme.

2. As a result of the decision in the para 1 above, depending upon their local circumstances the State Governments can

provide financial assistance under the scheme through one or more of the following agencies :—

- (i) Assistance may be given to Cooperative Societies (service societies and cooperative farming societies) through the Central Cooperative Banks where the banks are willing to take the responsibility for recoveries and for repayment of the loans;
- (ii) where the cooperative banks are not willing to accept this responsibility financial assistance may be given directly by the State Governments to the primary Cooperative Societies;
- (iii) in States like Assam and Rajasthan where Gramdan legislation has been enacted and Gram Sabhas have been constituted as corporate bodies financial assistance under the special scheme may be given to Gram Sabhas directly without the necessity of their forming a Cooperative Society. This assistance may be given to Gram Sabhas directly by the State Governments or through the Block agencies of the Community Development Blocks. The assistance can also be given through the Agricultural and Revenue Departments wherever the State Government may consider this feasible; and
- (iv) pending legislation constituting Gram Sabhas in Gramdan villages as corporate bodies, assistance may be given to Bhoodan Yagna Samitis wherever they are statutorily constituted for meeting the needs of Gram Sabhas in cases where they are satisfied that Gram Sabhas have been duly constituted and are able to function. The statutory liability for recovery of such loans and payment to Government will, however, rest upon the State Bhoodan Yagna Samiti.

3. The terms and conditions of financial assistance as indicated in this Ministry's letter No. F-13/3/CF dated 4th February, 1963 would apply *mutatis mutandis* to all the loans issued under the scheme irrespective of the agency through which the assistance is routed.

4. The proposals for financial assistance relating to Cooperative Societies [paras 2 (i) and (ii)] should be forwarded to the Department of Cooperation while the proposals in respect of other agencies [paras 2 (iii) and (iv)] should be sent to the Department of Community Development.

5. This letter issues with the concurrence of the Department of Cooperation.

Yours faithfully,
Sd./- T. S. Sankaran,
Deputy Secretary to the Government of India.

ANNEXURE IX—(contd.)

No. 5/6/63-P.R.

MINISTRY OF COMMUNITY DEVELOPMENT AND COOPERATION

(Department of Community Development)

New Delhi, February 22, 1964.

To

The Secretaries in-charge of
Community Development/Cooperation,
all State Governments.

SUBJECT:—*Special scheme for financial assistance to Gramdan
villages.*

Sir,

I am directed to refer to this Ministry's letter of even number dated 20th December, 1963 and to say that certain doubts have been raised regarding the scope of para 2 (iv), particularly with reference to availability of financial assistance in cases where Gramdan legislation has been enacted but where the Gramdan village has not been duly registered under the law. It is clarified that even in cases where the Gramdan legislation has been enacted in the State but in which Gramdan villages have not been constituted as corporate bodies, assistance may be given to Gram Sabhas in Gramdan villages through the statutory Bhoodan Yagna Samities, in cases where the Yagna Samitis are satisfied that Gram Sabhas have been duly constituted and are able to function. The statutory liability for recovery of such loans and payment to Government will rest upon the State Bhoodan Yagna Samiti, as already indicated in the Ministry's letter referred to above.

Yours faithfully,

Sd./- T. S. Sankaran,

Deputy Secretary to the Government of India.

ANNEXURE IX—(contd.)

No. 134/64-CF

MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION

(Department of Co-operation)

New Delhi, the 13th May, 1964.

To

1. The Secretaries incharge of Cooperation,
(All State Governments)
2. The Secretaries incharge of Revenue Departments,
(All State Governments)

SUBJECT :—*Special scheme for financial assistance to Gramdan and Bhoodan areas.*

Sir,

As you are aware, the Government of India formulated a special scheme on the above subject in February 1963 for removing the difficulties experienced in Gramdan and Bhoodan areas in securing finance from the cooperative and other channels. A review of the utilisation of funds made so far on the above scheme indicates that out of Rs. 1 crore allotted for the Third Plan, only a sum of Rs. 15 lakhs had been utilised by eight States by the end of March, 1964. Consequently the development of Gramdan villages and Bhoodan areas continue to suffer. In this context it may also be mentioned that the conference on development of bhoodan and gramdan areas held in November 1963 at New Delhi laid considerable emphasis on the need for providing adequate credit for the development of these areas. In order to facilitate flow of finance to Gramdan villages and Bhoodan areas, the Government of India have also agreed that where it is not possible to organise separate cooperative societies the funds under the scheme may be provided through the statutory Bhoodan Yagna Samitis or through the Gram Sabhas duly constituted under the Gramdan Act. In this connection, attention is invited to this Ministry's letter of December 20, 1963 wherein the various agencies through which funds could be provided has been indicated.

2. It is requested that the State Governments may formulate their proposals and forward the same to this Ministry at an early date so as to ensure fuller utilisation of the funds in the remaining two years of the Third Plan. The State Governments which have already availed of financial assistance under the scheme may furnish proposals for additional financial assistance along with the necessary details. In this connection it may be stated that the entire assistance (except for item relating to reclamation) is available to the States outside the State Plan ceilings, as a Centrally sponsored scheme.

3. As indicated earlier, the proposals for financial assistance relating to cooperative societies may be forwarded to the Department of Cooperation while the proposals in respect of other agencies should be sent to the Department of Community Development.

Yours faithfully,

Sd./-

Commissioner (Cooperation).

MODEL GRAMDAN BILL

A

BILL

to provide for the establishment of Gramdan villages and for matters connected therewith

WHEREAS it is expedient to provide for the establishment of Gramdan villages in pursuance of the Gramdan Movement initiated by Acharya Vinoba Bhave and for matters connected therewith;

BE it enacted by the in the Year of the Republic of India as follows :

CHAPTER I

PRELIMINARY

1. *Short title, extent and commencement.*—(1) This Act may be called the Gramdan Act, 196.....

(2) It extends to the whole of the State of.....

(3) It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.

2. *Definitions.*—In this Act, unless the context otherwise requires—

- (a) “adult” means a person who has completed twenty-one years of age;
- (b) “allottee” means a person or group of persons to whom land has been allotted under section 21 and includes the heirs and successors-in-interest of such person or persons.
- (c) “common land” in relation to a village means the waste land in that village and includes land used or reserved for use for the common purposes of that village;
- (d) “Ghoshna Patra” means the joint declaration referred to in section 6;

- (e) "Government" means the State Government;
- (f) "Gramdan" means a voluntary donation of land in a village for the purposes of this Act and in accordance with the provisions thereof;
- (g) "Gramdan kisan" means a person who holds land as such under this Act and includes his heirs and successors-in-interest;
- (h) "Gramdan village" means a village declared to be a Gramdan village under section 7;
- (i) "Gram Sabha" means a Gram Sabha established under section 10;
- (j) "owner" means—
 - (i) in relation to any land held by a tenant with permanent rights, the tenant;
 - (ii) in relation to any land held under a grant, lease or assignment from Government, the holder thereof; and
 - (iii) in relation to any other land, the person to whom the land belongs;
- (k) "Panchayat" means the panchayat established under the Panchayat Act
- (l) "Panchayati Adalat" means a Panchayati Adalat established under section of the Panchayat Act,
- (m) "person interested" in relation to any land, means any person claiming right, title or interest in the land and includes a person having a right of easement over such land;
- (n) "prescribed" except where the words "prescribed by regulations" are used, means prescribed by rules under this Act;
- (o) "regulation" means a regulation made by a Gram Sabha under section 46; a person shall be deemed to be "resident" in a village, if he is ordinarily resident in such village and the expression "reside" shall be construed accordingly;

(q) "village" means a revenue village registered as such in the revenue records and includes—

- (i) a part of a revenue village whether called a hamlet, tola, para or otherwise; and
- (ii) an area comprising twenty or more contiguous dwelling houses which the Government may, by notification in the official Gazette, declare to be a village for the purposes of this Act;

3. *Act to have overriding effect.*—The provisions of this Act shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force.

CHAPTER II

Gramdan Village

4. *Donation by way of Gramdan.*—(1) Any owner of land, not being a minor, may donate by way of Gramdan all his lands in a village subject to the condition that he shall hold not more than nineteen-twentieth of the extent of those lands to be specified by him as Gramdan kisan subject to the provisions of this Act, by filing a declaration to that effect in such form and manner and before such authority as may be prescribed;

Provided that where any such owner has donated any of his lands in the village by way of Bhoodan, this sub-section shall have effect as if the lands so donated were included in the total extent of his lands.

Provided further that in specifying the extent of the lands to be held by him as Gramdan kisan, an owner shall as far as may be, specify such lands as are subject to any lease or mortgage.

(2) Every declaration filed under sub-section (1) shall also contain an undertaking that the owner shall—

- (i) join the gramdan community of that village, and
- (ii) make a periodic contribution to the Gram Sabha, in accordance with the provisions of clause (f) of sub-section (1) of section 18, for community purposes;

Provided that no such declaration filed by any owner in respect of any land held by him under a grant, lease or assignment from the Government without permanent rights, shall be valid unless it is filed with the previous approval of the Government.

(3) The prescribed authority shall, as soon as may be after the receipt of the declaration, publish the same in the prescribed manner together with a notice requiring all persons interested in the land to submit their objections, if any, in writing to it within thirty days of such publication.

(4) On the expiry of the period specified in sub-section (3), the prescribed authority may, after considering the objections, if any, received and after making such enquiries as it deems fit, by order, either confirm the declaration or refuse to confirm it.

(5) Any person aggrieved by any order of the prescribed authority made under sub-section (4) may file an appeal to such appellate authority as may be prescribed within forty-five days of the date of the order and subject to the decision of the appellate authority, such order shall be final.

(6) A declaration which the prescribed authority has, by order, refused to confirm under sub-section (4), unless such declaration is confirmed on appeal, if any, under sub-section (5), shall be of no effect.

(7) No person who has filed a declaration under this section shall thereafter be competent to transfer or create any encumbrance on any land in respect of which the declaration has been filed, unless and until an order under sub-section (4) of this section refusing to confirm the declaration has become final, or an order under sub-section (3) of section 7, declaring the village in which the land is situate has not qualified to be a gramdan village, is made or an order under section 9 rescinding the donation by way of gramdan is made.

(8) Any transfer made or encumbrance created in contravention of sub-section (7) shall be void and inoperative.

5. *Persons who may join gramdan community without donating land.*—(1) Any adult residing in a village, who has not made a donation by way of gramdan under section 4 may file a declaration in the prescribed form and manner and before the prescribed authority, undertaking—

- (i) to join the gramdan community of that village, and
- (ii) to make a periodical contribution of one-thirtieth of his income computed in such manner and paid within such time as may be prescribed, for community purposes.

(2) The prescribed authority shall as soon as may be after the receipt of the declaration publish the same in the prescribed manner together with a notice requiring all persons to submit their objections, if any, in writing to it within thirty days of such publication.

(3) Sub-sections (4) to (6) of section 4 shall apply to a declaration filed under sub-section (1) of this section in the same manner as they apply to a declaration filed under sub-section (1) of section 4.

(4) The declaration under sub-section (1) of this section may be made by the persons referred to therein either individually or collectively.

6. *Ghoshna Patra*.—Any person who proposes to donate land by way of gramdan or to join the gramdan community under the provision of section 4 or section 5, as the case may be may subscribe to a Ghoshna Patra, along with other persons who propose to donate land by way of gramdan or to join the gramdan community under the said provisions, in such form and in such manner as may be prescribed.

7. *Declaration of village as Gramdan village*.—(1) Where, in a village—

- (a) the extent of lands in respect of which the declarations filed under section 4 have been confirmed is not less than fifty-one per cent of the total extent of lands owned by resident private owners in that village;
- (b) the number of persons whose declarations have been so confirmed is not less than seventy-five per cent of the total number of persons owning land and residing in the village; and
- (c) the number of adult residents of the village in respect of whom declarations made under section 4 or under section 5 have been confirmed is not less than seventy-five per cent of the adults residing in that village,

the prescribed authority may, after making such inquiry and in such manner as may be prescribed, by notification in the Official Gazette, declare that village to be a gramdan village with effect from the date specified in such notification.

Explanation.—For the purpose of clause (a), the expression “lands owned by resident private owners in that village” shall in the case of a village falling under sub-clause (i) or sub-clause (ii) of clause (q) of section 2, include lands owned by the residents of that village and situated within the revenue village of which the gramdan village forms a part.

(2) A copy of every notification under sub-section (1) shall be displayed in a prominent place in the village and another copy affixed on a conspicuous part in the office of the Deputy Commissioner of the district, or of the Sub-Divisional Officer of the Sub-Division, as the case may be, and the substance of every such notification shall also be published in the prescribed manner.

(3) Where the conditions mentioned in sub-section (1) are not satisfied within a reasonable time, the prescribed authority may by order declare in the manner prescribed that the village is not qualified to be a gramdan village and thereupon every declaration under section 4 or section 5 shall, notwithstanding that it had been confirmed, cease to have effect.

8. *Registration of part of village as a separate revenue village.*—(1) Where a part of a revenue village has been declared to be a gramdan village under this Act, the Gram Sabha of the gramdan village may file an application before the Collector of the district or the Sub-Divisional Officer of the Sub-Division, as the case may be, for separating that part from the rest of the revenue village and for registering the same as a separate revenue village.

(2) On receipt of an application under sub-section (1), the Collector or the Sub-Divisional Officer, as the case may be, may subject to such rules as may be prescribed, register the part as a separate revenue village;

Provided that no part of a revenue village shall be registered as a separate revenue village unless the population of such part is not less than one hundred.

(3) Where a part of revenue village has been registered as a separate revenue village under sub-section (2), the Collector or the Sub-Divisional Officer, as the case may be, shall also cause the common lands in the first mentioned revenue village to be divided by metes and bounds and apportioned between the two revenue villages to such extent and in such manner as may be prescribed.

9. *Effect of declaration as Gramdan Village.*—Notwithstanding anything to the contrary contained in any other law for the time being in force, with effect from the date from which a village is declared to be a gramdan village—

- (a) all rights, title and interest of persons whose declarations have been confirmed under section 4, in or over the lands covered by such declarations,

- shall, save as otherwise provided in this Act, cease and shall stand transferred to and vest in the Gram Sabha established for that gramdan village;
- (b) all common lands in the village, other than lands, if any, specified by the Government by notification in the Official Gazette, shall be managed by the Gram Sabha;
 - (c) the Gram Sabha shall be entitled to receive the contributions referred to in clause (ii) of subsection (2) of section 4 and clause (ii) of subsection (1) of section 5;
 - (d) the Gram Sabha shall be liable for—
 - (i) the payment of land revenue, rent, cesses, rates and taxes in respect of lands vested in the Gram Sabha, which would have been payable by the donors but for the donation, irrespective of whether the liability arose before or after the date of the vesting; and
 - (ii) the discharge of all encumbrances created in respect of any land vested in the Gram Sabha, prior to the date of filing of the declaration in respect thereof under section 4;

Provided that for the payment of any land revenue, rent, cesses, rates or taxes due on, or the discharge of any encumbrance created before the date of such vesting of the land for which the Gram Sabha is so liable, it shall be competent for the Gram Sabha to recover the amount required therefor, either before or after such payment or discharge, from the owner concerned who donated the land by way of gramdan as if it were an amount due to the Gram Sabha;

Provided further that where in any case it appears to the Gram Sabha that the encumbrances and other liabilities in respect of land donated by way of gramdan are excessive or for any other reason it is of opinion that it is not desirable to undertake the discharge of such liabilities, the Gram Sabha may, after giving the person to whom the land would belong but for the gramdan, an opportunity of being heard, rescind by order the donation by way of gramdan, and thereupon all rights, title and interest in or over those lands shall revert to such persons and all liabilities of the Gram Sabha in respect of those lands, except the liabilities, if any, that arose during the period the property remained vested in the Gram Sabha,

shall cease and the declaration filed under section 4 in respect of the gramdan aforesaid shall not continue in force.

- (e) the land revenue, cesses, rates and taxes due in respect of the lands situated in the gramdan villages and in respect of which donation by way of gramdan has not been made under section 4 or section 24, shall be payable to the Gram Sabha by the person liable for the same :

Provided that all amounts so realised shall, after deduction of such collection charges as may be prescribed, be remitted to the Government within such time and in such manner as may be prescribed.

CHAPTER III

The Gram Sabha

10. *Establishment and constitution of the Gram Sabha.*—

(1) The Government shall, by notification in the Official Gazette, establish, with effect from the date specified in the notification under sub-section (1) of section 7, a Gram Sabha for the Gramdan village.

(2) The Gram Sabha shall consist of all adults who:—

- (i) are residents of the Gramdan village, or
- (ii) have donated land by way of gramdan under section 4:

Provided that a person shall be disqualified for being a member of the Gram Sabha, if he—

- (a) is not a citizen of India, or
- (b) is of unsound mind and stands so declared by a competent court.

(3) The Gram Sabha shall be a body corporate having perpetual succession and a common seal with power to enter into contracts and, subject to the provisions of this Act, to acquire, hold, administer or dispose of property, both movable and immovable, and shall by the said name sue and be sued.

11. *Register of Members.*—On the establishment of a Gram-Sabha, the prescribed authority shall cause to be prepared a register in the prescribed form of all members of the Gram Sabha and the register so prepared shall be revised and brought up-to-date at such intervals and in such manner as may be prescribed.

12. *President of the Gram Sabha.*—(1) A Gram Sabha shall, in the manner prescribed elect from amongst its members a President who shall exercise such powers and discharge such duties as may be prescribed by regulations.

(2) The term of office of the President shall be three years.

13. *Executive Committee.*—(1) Every Gram Sabha shall constitute an executive committee consisting of the President of the Gram Sabha and such number of other members, not being less than five, as the Gram Sabha may determine.

(2) The members (other than the President) of the executive committee shall be elected by the members of the Gram Sabha from amongst themselves in the manner prescribed by regulations.

(3) The President of the Gram Sabha shall be the President of the executive committee.

(4) The term of office of the elected members of the executive committee shall be three years.

(5) The executive committee shall exercise, discharge and perform such powers, duties and functions as may be prescribed by regulations.

14. *Other committees.*—(1) A Gram Sabha may constitute—

(a) as many standing committees as it may deem necessary for exercising, discharging and performing such of the powers, duties and functions of the Gram Sabha as may be prescribed by regulations;

(b) as many *ad-hoc* committees as it may deem necessary for enquiring into or reporting and advising on any matter which it may refer to them.

(2) The committees, referred to in sub-section (1) shall be constituted in the manner prescribed by regulations and may be dissolved or reconstituted in such circumstances and in such manner as may be prescribed by regulations.

15. *Officers and employees of Gram Sabha.*—A Gram Sabha may appoint—

(a) a secretary who shall exercise such powers and discharge such duties as may be prescribed by regulations or as may be delegated to him by the President;

(b) such other officers and employees as may be necessary for the efficient performance of its functions.

16. *Removal of officers and employees.*—A Gram Sabha may, in such circumstances and in such manner as may be prescribed by regulations, remove the President from office or the secretary or other officer or employee from service.

17. *Conduct of business of Gram Sabha.*—The business of a Gram Sabha and of its committees shall be conducted in such manner as may be prescribed by regulations and such regulations may specify the cases in which the decisions of the Gram Sabha or of its committees shall be on the basis of unanimity or a near unanimity or a majority.

18. *Rights and liabilities of Gramdan kisan.*—(1) A Gramdan kisan shall, in respect of the lands referred to in subsection (1) of section 4 and held by him as a Gramdan kisan, have the rights and be subject to the liabilities specified below :—

- (a) in the case of land in his possession immediately before it was donated, he shall be entitled to be in possession thereof and shall not, save as otherwise provided in this Act, be disturbed from such possession by the Gram Sabha without his consent;
- (b) in the case of land subject to any lease immediately before it was donated, he shall have the right to recover possession thereof subject to the provisions of any law for the time being in force relating to land tenures as if he continued to be the lesser thereof, and pending termination of the lease, he shall also have the right to recover the rent payable by the lessee in respect of such land;
- (c) in the case of land subject to a mortgage with possession immediately before it was donated, he shall have the right to obtain possession thereof after the redemption of the mortgage by the Gram Sabha if he pays to the Gram Sabha the amount paid for the purpose of redeeming the mortgage together with all expenses connected therewith;
- (d) he shall be liable to pay to the Gram Sabha an amount equal to land revenues, rent, cesses, rates and taxes payable in respect of such lands;
- (e) his rights as Gramdan kisan over such lands shall be heritable but shall not be transferable:

Provided that the Gramdan kisan may,

- (i) surrender his interest in such lands or any part thereof to the Gram Sabha for consideration;

- (ii) under intimation to the Gram Saṁgha in such manner and in such form as may be prescribed, transfer his interest in such lands or any part thereof to any other person who has joined the Gramdan community under section 4 or section 5 or section 24 in respect of the village in which as may be agreed upon between them:
- (iii) hypothecate his interest in such lands or any part thereof in favour of the Government or any co-operative society or any other public institution for securing payment of any money borrowed from the Government of the co-operative society or other public institution, as the case may be;
- (f) he shall contribute annually to the Gram Sabha one-fortieth of the produce from such land or such other portion of the produce as the Gram Sabha may fix, or the cash value thereof.

(2) Nothing contained in sub-section (1) shall be deemed to confer on the Gramdan kisan any right which he did not possess immediately before he donated the lands.

19. Power to evict Gramdan kisan.—(1) If any Gramdan kisan:—

- (i) fails to pay to the Gram Saṁgha any amount or contribution referred to in clause (d) or clause (f) of sub-section 18 in respect of any land held by him as such;
- (ii) makes a transfer of any land held by him as such, contrary to the provisions of clause (e) of sub-section (1) of section 18;
- (iii) fails without sufficient cause to cultivate for two consecutive years any land held in possession by him as such, or
- (iv) fails to pay any amount due from him on account of any encumbrance referred to in sub-clause (ii) clause (d) of section 9,

the Gram Sabha may make an application to the prescribed authority for terminating the interest of the Gramdan kisan over the land, and if he is in possession thereof, for the eviction of the Gramdan kisan therefrom and thereupon the prescribed authority may, after making such inquiry as he deems fit and after giving the Gramdan kisan an opportunity

to be heard, order such termination of interest or eviction, as the case may be, and in the latter case give possession of such land to the Gram Sabha after ejecting the Gramdan kisan or any other person found in possession of the land:

Provided that the right of any person who is in lawful possession of such land shall not be affected thereby.

(2) Notwithstanding anything contained in sub-section (1) in any case falling under clause (i), clause (iii) or clause (iv) of that sub-section, the prescribed authority may, instead of terminating the interest of the Gramdan kisan or ordering his eviction, as the case may be, by order direct the Gram Sabha to take over the management of such land for such period as it may specify and make such further order as it may think fit for enabling the Gram Sabha to assume the management of such land.

(3) Where the Gram Sabha has been directed to take over the management of any land under sub-section (2), the Gram Sabha shall manage such land for the period specified and shall restore the management thereof to the Gramdan kisan on the expiration of that period.

(4) In any case where the management has been taken over under sub-section (2), the Gram Sabha shall, in such manner and at such intervals, as may be prescribed, pay to the Gramdan kisan the surplus income if any derived from the land during the period of management after deducting all amounts due to the Gram Sabha from such person on account of land revenue, rent, cesses, rates, taxes and other dues and on account of encumbrances.

20. *Land pool*.—A Gram Sabha shall constitute a land pool which shall consist of :—

- (i) all lands donated under sub-section (1) of section 4 or under section 24, the possession of which has been transferred to the Gram Sabha;
- (ii) all lands donated by way of Bhoodan under the law relating to it for the time being in force and situated in the village.

21. *Allotment of land and conditions thereof*.—(1) A Gram Sabha may allot land from the land pool for cultivation to any landless person or group of landless persons residing in the Gramdan village (including a co-operative society of such landless persons registered or deemed to be registered under any law for the time being in force) as it may deem fit.

(2) Every allotment of land made under sub-section (1) shall be subject to the following conditions, namely:—

- (a) The allottee shall be liable to pay annually to the Gram Sabha an amount equal to the land revenue, rent, cesses, rates and taxes payable in respect of the land allotted to him;
- (b) The allottee shall not transfer his interest in the land allotted but such interest shall be heritable:

Provided that the allottee may surrender his interest in the land or any part thereof to the Gram Sabha for consideration;

Provided further that the allottee may, with the previous permission of the Gram Sabha:—

- (i) transfer his interest in such land or any part thereof to any person, who has joined the gramdan community in respect of the village in which such land is situate, on such terms and conditions as may be agreed upon between them;
- (ii) hypothecate his interest in such land or any part thereof in favour of the Government or any co-operative society or any other public institution for securing payment of any money borrowed from such Government or co-operative society or institution.
- (c) Subject to the provisions of section 26, the allottee shall not be disturbed from the possession of such land by the Gram Sabha without his consent;
- (d) the allottee shall contribute annually to the Gram Sabha one-fortieth of the produce from such land or such other portion of the produce as the Gram Sabha may fix, or the cash value thereof.

(3) Nothing contained in this section shall be deemed to confer on the allottee any rights which the Gram Sabha did not possess immediately before making the allotment.

Explanation.—For the purpose of this section, “landless person” shall include a person who does not own or hold land in excess of such area as may be prescribed.

22. Management of common land by Gram Sabha.—(1) The Government may, from time to time, by notification in the Official Gazette, vest in the Gram Sabha, such common lands

in the revenue village of which the Gramdan village forms a part and on such terms and conditions as may be specified in the notification; and the Government may in like manner, cancel any such notification whereupon all the rights of the Gram Sabha over such lands shall cease and the said lands shall revert to Government.

(2) The Government may at any time, by like notification, resume the management of any common land managed by the Gram Sabha in pursuance of clause (b) of section 9.

23. *Power of the Gram Sabha to recover dues as arrear of land revenue.*—Any arrear of land revenue, cesses, rates or taxes or any other sum due to the Gram Sabha, by way of contribution or otherwise, shall, on a certificate issued to the Collector by the Gram Sabha, be recovered by the Collector as an arrear of land revenue and paid to the Gram Sabha.

24. *Persons who may donate land by way of gramdan join gramdan community in a Gramdan village.*—(1) Any owner of land not being a minor, holding land in a gramdan village may donate all his lands by way of gramdan in the same manner and subject to the same conditions as are provided for in the case of a donation under section 4 and thereupon, subject to the provisions of sub-section (2), the provisions of this Act shall, as far as may be, apply as if such donation were made under that section:

Provided that no declaration made under this section shall be confirmed by the prescribed authority without the approval of the Gram Sabha.

(2) With effect from the date on which the declaration referred to in sub-section (1) is confirmed, all the rights, title and interest of any person whose declaration is so confirmed in or over the lands covered by such declaration, shall save as otherwise provided under this Act cease and shall stand transferred to and vest in the Gram Sabha established for that gramdan village.

(3) Any adult residing in a gramdan village who has not made a donation by way of gramdan under section 4 or sub-section (1) of this section, may join the gramdan community in the same manner and subject to the same conditions as are provided in sub-section (1) of section 5 and thereupon the provisions of this Act shall, as far as may be, apply as if such declaration were made under sub-section (1) of section 5.

25. Arbitration Board.—(1) Subject to such rules as may be prescribed in this behalf, a Gram Sabha shall, on application made to it by an aggrieved person, refer any dispute regarding allotment of land for arbitration by an Arbitration Board consisting of:—

- (i) one member nominated by the applicant;
- (ii) one member nominated by the Gram Sabha; and
- (iii) one member nominated jointly by the member referred to in clauses (i) and (ii) and if they do not agree, by the prescribed authority.

(2) The Arbitration Board shall regulate its own procedure.

(3) The decision of the Arbitration Board shall be final and binding on the parties.

26. Power to evict allottees.—(1) If any allottee of land:—

- (i) contravenes the provisions of clause (b) of sub-section (2) of section 21; or
- (ii) fails to pay any dues in respect of any land allotted to him; or
- (iii) fails without sufficient cause to cultivate such land for two consecutive years;

the Gram Sabha may make an application to the prescribed authority for cancelling the allotment and thereupon the prescribed authority may, after making such inquiry as it deems fit and after giving the allottee an opportunity to be heard, cancel the allotment and restore possession of the land to the Gram Sabha after ejecting the allottee or any other person found in possession of the land.

(2) Notwithstanding anything contained in sub-section (1), in any case falling under clause (ii) or clause (iii) of that sub-section, the prescribed authority may, instead of cancelling the allotment and restoring the possession of the land to the Gram Sabha, by order, direct the Gram Sabha to take over the management of such land for such period as it may specify.

(3) Where the Gram Sabha has been directed to take over the management of any land under sub-section (2), the prescribed authority may make such further orders as it may think fit for enabling the Gram Sabha to assume the management of such land and the Gram Sabha manage such land for the period specified and restore the possession of the land to the allottee on the expiration of that period.

(4) In any case where the management has been taken over under sub-section (2) the Gram Sabha shall, in such manner and at such intervals as may be prescribed, pay to the allottee the surplus income, if any, derived from the land during the period of management after deducting all amounts due from such persons.

27. Powers and functions of the Gram Sabha.—(1) The Gram Sabha shall manage the lands which are vested in it including such other lands as may come under its management and undertake activities for the welfare of the village community and the members thereof and do all other things incidental thereto.

(2) In particular and without prejudice to the generality of the foregoing power, the Gram Sabha may:—

- (a) take steps to inculcate and develop in the village community the spirit of collective responsibility, mutual aid and promote or undertake or participate in co-operative activities;
- (b) take steps to promote multi-sided and integrated development of the village community;
- (c) arrange for the maintenance of destitute children and aid and infirm persons;
- (d) prepare and implement schemes for the improvement of agriculture in the village and the best utilisation of lands in the village;
- (e) set apart land for community purposes;
- (f) prepare and implement schemes for the general development of the village including promotion of small scale industries therein and the proper utilisation of local resources and man-power;
- (g) allot such lands as are available for the purpose to landless persons;
- (h) prepare and implement schemes for regional self-sufficiency in articles of food, clothing and other necessities of life and to that end secure the co-operation and the assistance of the Government, and other institutions or agencies operating in the village or in its neighbourhood;
- (i) promote consolidation of holdings;

- (j) grant loans to any member of the Gram Sabha whether an allottee of land or not, for any purpose whether agricultural or not;
- (k) take measures for improvement of lands and reclamation of waste lands and introduce improved methods of cultivation;
- (l) promote the industrial development of the village;
- (m) facilitate the elimination of unemployment in the village;
- (n) raise voluntary contributions from the village for community purposes;
- (o) maintain the accounts of the Gram Nidhi;
- (p) prepare and maintain village records including register giving details of land holding in the possession of person under the Gram Sabha;
- (q) raise a village peace force or Shanti Dal for the maintenance of peace in the village by peaceful means; and
- (r) perform such other functions and duties and exercise such other powers as may from time to time be prescribed.

28. *Power of Gram Sabha Adalat to decide civil and criminal cases.*—(1) The Government may establish a Gram Sabha Adalat in respect of every Gramdan village consisting of such number of members of the Gram Sabha and in such manner as may be prescribed and the Gram Sabha Adalat shall have power to try and dispose of:—

- (a) any dispute of a civil nature between residents of the Gramdan village which the parties have, by a written agreement, referred to the Gram Sabha Adalat for decision;
- (b) any criminal case other than a case involving an offence which is not compoundable or which is compoundable only with the permission of the court under the provisions of the Code of Criminal Procedure, 1898.

(2) In any case of conviction, a Gram Sabha Adalat may impose a sentence of fine not exceeding rupees two hundred and fifty, but shall not impose a sentence of imprisonment, substantively or in default of payment of fine.

44 PC—9.

(3) No member of a Gram Sabha Adalat shall take part in the trial or disposal of any civil or criminal case in or to which he is a party or is interested.

29. Certain cases not to be tried by a Gram Sabha Adalat.—

(1) No Gram Sabha Adalat shall proceed with any civil case in which the matter directly and substantially in issue is pending for decision in a Panchayati Adalat or any other court of competent jurisdiction in a previously instituted suit between the same parties or between the parties under whom they or any of them claim or has been heard and finally decided in a suit between the same parties or between the parties under whom they or any of them claim.

(2) No Gram Sabha Adalat shall proceed with the trial of a criminal case against any person where a criminal case is pending against him in any Panchayati Adalat or any other court in respect of the same offence, or on the same facts of any other offence of which the accused might have been charged or convicted.

30. Transfer of cases.—(1) If at any time it appears to a Gram Sabha Adalat that any case before it is one which should be tried by a Panchayati Adalat or any ordinary court or that the offence involved in any criminal case before it is one for which it cannot award adequate punishment, it shall submit the case, if it is a civil case, to the District Judge or, if it is a criminal case, to the District Magistrate concerned for transfer to a Panchayati Adalat or any other court of competent jurisdiction and shall give information thereof to the parties concerned.

(2) The District Judge may, on the application of any of the parties, by order, withdraw any suit from the Gram Sabha Adalat and try the suit himself, as if it had been instituted in his court or transfer it for trial to any court subordinate to him:

Provided that any party applying to have the suit withdrawn shall, before any such order of transfer is made, remit the fees payable under Court Fees Act for the time being in force.

(3) Pending disposal of any application under sub-section (1), the District Judge may order a stay of proceedings in the Gram Sabha Adalat.

(4) The District Magistrate may, on application or otherwise, withdraw at any time any criminal case pending before the Gram Sabha Adalat and transfer the same to any magistrate subordinate to him or may inquire into or try the case himself.

31. *Revision*.—The District Judge or the District Magistrate according as it is a civil or criminal case may, either on his own motion or on the application of any party, call for the record of any case which has been decided by the Gram Sabha Adalat and if it appears to him that a failure of justice has occurred, he may make such order in the case as he thinks fit.

Explanation.—For the purpose of this section and section 30, the expression "District Judge" and "District Magistrate" shall mean the District Judge or the District Magistrate, as the case may be, exercising jurisdiction over the area where the Gram Sabha Adalat is situate.

32. *Procedure before Gram Sabha Adalat*.—The procedure to be followed by a Gram Sabha Adalat in civil and criminal cases and in the enforcement of its decisions, sentences, decrees and orders, the powers of a civil or criminal court which it may exercise and the fees to be levied by it in civil and criminal cases, shall be such as may be prescribed.

33. *Act of Gram Sabha not to be invalidated*.—No act or proceeding of a Gram Sabha or of any committee thereof, shall be deemed to be invalid by reason only of a defect in its constitution or of any informality in its proceedings.

34. *Appeal*.—(1) Any person aggrieved by any decision of the prescribed authority under sections 4, 5, 7, 19, 24 and 26 may prefer an appeal to such appellate authority within such time and in such manner as may be prescribed.

(2) The appellate authority shall, after hearing the parties, pass such orders as it deems fit and the orders of the appellate authority so passed shall be final.

CHAPTER IV

THE GRAM NIDHI

35. *Gram Nidhi*.—(1) Every Gram Sabha shall have its own Fund to be called the Gram Nidhi and may accept grants, donations, requests, gifts or loans from the Central or the State Government or any person for all or any of the purposes of this Act.

(2) All sums and moneys received by the Gram Sabha, including the profits of any cultivation or any enterprise undertaken by it shall be credited into the Gram Nidhi.

(3) *Application of Gram Nidhi*.—All sums realised by the Gram Sabha Adalat by way of fees, fines, penalties or otherwise shall be credited into the Gram Nidhi.

36. Subject to the provisions of this Act, the Gram Nidhi shall be applied by the Gram Sabha for the purposes of this Act.

37. *Borrowing powers of Gram Sabha*.—Subject to such rules as may be made in this behalf, the Gram Sabha shall have power to borrow money on the security of the Gram Nidhi or any property belonging to it.

38. *Accounts and audit*.—The Gram Sabha shall cause accounts to be kept of all moneys received and expended by it and such accounts shall be audited every year by such person as may be appointed by the Gram Sabha with the previous approval of the Government.

CHAPTER V

Miscellaneous

39. *Restriction on sale of lands held by Gram Sabha, Gramdan kisan or allottee.*—Where the interest of a Gramdan kisan or an allottee in any land donated to the Gram Sabha or where the interest of the Gram Sabha in any land, is sold on account of any default in the payment, of any amounts due from the Gramdan kisan, allottee or Gram Sabha, as the case may be, such interest shall not be sold to any person other than the Gram Sabha or a person who has joined the Gramdan community of the village in which the land is situate.

40. *Liability of Gram Sabha to pay surcharge on land revenue and tax on agricultural income.*—Notwithstanding anything contained in any law for the time being in force relating to the levy of surcharge on land revenue or the levy of tax on agricultural income, the Gram Sabha shall not be liable to pay any amount by way of surcharge on land revenue or tax on agricultural income in respect of any land donated by way of Gramdan in excess of what would have been payable in respect thereof by the person who has donated such land if it had not been so donated.

41. *Right of Gram Sabha to apply for scaling down of debts.*—(1) The Gram Sabha may make an application under any law for the time being in force relating to the scaling down of debts, for the scaling down of any debt to which such law is applicable, and in respect of which the Gram Sabha or any of its members is liable.

(2) Where the Gram Sabha makes an application for the scaling down of any such debt in respect of which it is liable, such application shall be dealt with as if it were an application made by the person who was liable for the debt immediately before the date on which the property in respect of which the debt arose vested in the Gram Sabha.

(3) Where the Gram Sabha makes an application for the scaling down of any such debt for which any of its members is liable, such application shall be dealt with as if it were an application made by such member and the order passed thereon shall, subject to such rules as may be prescribed, ensure to the benefit of such member.

42. *Registration of Gram Sabha as a cooperative society.*

(1) Any Gram Sabha may register itself as a society under the law relating to co-operative societies for the time being in force.

(2) The provisions of the law referred to in sub-section (1) shall apply to any such Gram Sabha subject to such exceptions, adaptations and modifications, if any, as the Government may, by notification in the Official Gazette, specify.

43. *Power to extent from stamp duty, etc.*—The Government may, by notification in the Official Gazette, remit:—

- (a) the stamp duty with which, under any law for the time being in force, any declaration under section 4, section 5, section 6 or section 24, or any instrument executed by or on behalf of a Gram Sabha is chargeable, and
- (b) any fees payable by a Gram Sabha or any owner who donates land under section 4 or section 24 under the law relating to registration of documents for the time being in force,

44. *Gram Sabha may be empowered to function as Panchayat.*—(1) The Government at the request of a Gram Sabha and after consultation with the Panchayat within whose territorial jurisdiction the Gram Sabha functions may, by notification in the Official Gazette, declare that the Gram Sabha shall exercise all or any of the powers and discharge all or any of the duties and functions of the Panchayat, as may be specified in the notification, in relation to the area within the jurisdiction of the Gram Sabha (hereafter in this section referred to as the said area).

(2) Upon the issue of a notification under sub-section (1) —

- (a) if all the powers and duties and functions of a Panchayat are to be exercised and discharged by the Gram Sabha.—
 - (i) the Panchayat which functioned immediately before the date of notification shall, in relation to the said area, cease to function therein;
 - (ii) all the powers, duties and functions attaching to the Panchayat under the Panchayat Act , shall, in relation to the said area, attach to the Gram Sabha and accordingly, the Gram Sabha shall exercise the powers and discharge the duties and functions aforesaid;

- (iii) the provisions of thePanchayat, Act,, shall subject to such restrictions and modifications as the Government may specify in the notification, apply to the Gram Sabha as if it were a Panchayat constituted under the law for that village;
- (iv) the Gram Sabha shall be entitled to all the assets and be subject to all the liabilities of the Panchayat as on the date of the notification in as far as such assets and liabilities are relatable to the said area;

Provided that a hat or bazar situated within the area of a Gram Sabha and which was managed by the Panchayat within whose territorial jurisdiction such hat or bazar lies shall continue to be managed by Panchayat, and a proportion of the income thereof shall be given to the Gram Sabha according to the ratio which the population of the Gram Sabha bears to the whole population of the Panchayat area;

(b) in any other case—

- (i) the Panchayat shall cease to exercise the powers and perform the duties and functions specified in the notification in relation to the area within the jurisdiction of the Gram Sabha;
- (ii) the powers, duties and functions so specified which attached to the Panchayat shall in relation to the area aforesaid attach to the Gram Sabha and accordingly, the Gram Sabha shall exercise these powers and discharge these duties and functions;
- (iii) the provisions of thePanchayat Act,, shall, subject to such restrictions and modifications as may be specified in the notification apply to the Gram Sabha as if it were a Panchayat constituted under thePanchayat Act of
- (iv) the Gram Sabha shall be entitled to such of the assets and be subject to such of the liabilities of the Panchayat as on the date of notification as may be specified in that notification.

(3) Any notification issued under sub-section (1) may contain such supplemental, incidental and consequential provisions as the Government may deem necessary, and in particular, may direct—

- (i) that any tax, fee or other sum due to the Panchayat shall be payable to the Gram Sabha;
- (ii) that appeals, petitions or other applications with reference to any such tax, fee or sum which are pending on the date of such notification shall be disposed of by the Gram Sabha.

Explanation.—Where the area within the jurisdiction of the Gram Sabha is comprised within the territorial jurisdiction of more than one panchayat, the references to panchayat in sub-sections (1) and (2) shall be construed as references to such panchayats.

45. *Power to make rules.*—(1) The Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

- (a) the form and manner of declarations under this Act and the documents to be filed along with them;
- (b) the authorities before which declarations and objections under this Act may be filed;
- (c) the manner in which declarations under this Act shall be published, the nature, scope and manner of inquiries, and the hearing and disposal of objections, under this Act;
- (d) the form of "Ghoshna Patra" and the manner in which persons may subscribe to it;
- (e) the manner of preferring appeals under this Act, the fees leviable therefor, the authorities to whom they may be preferred and the procedure for hearing and disposal of such appeals;
- (f) the conditions subject to which Gramdan village may be registered as a separate revenue village and the extent to which and the manner in which common lands may be divided by metes and bounds;

- (g) the rate at which, the time within which and the manner in which periodical contributions are to be made;
- (h) the manner of election of the President of the Gram Sabha;
- (i) the manner and the form in which intimations of transfer are to be given by the Gramdan kisan;
- (j) the form and the manner in which and the intervals at which the register of members may be prepared and revised;
- (k) the rate of collection charges for the recovery of land revenue and the time and the manner of remitting the same;
- (l) the maximum extent of land that a person may hold or own for the purpose of being a landless person under section 21;
- (m) the strength of the Gram Sabha Adalat, the manner in which it is to be established, and the procedure to be followed by a Gram Sabha Adalat in the institution, trial and disposal of civil and criminal cases;
- (n) the issue, service and execution of summons and other processes and notices of a Gram Sabha and Gram Sabha Adalat;
- (o) the procedure for the enforcement of the decisions, sentences, decrees and orders of a Gram Sabha Adalat and the powers of a Civil or Criminal Court which it may exercise;
- (p) the manner of enforcement of orders or decisions of the prescribed authority;
- (q) the fees to be levied by a Gram Sabha Adalat for institution of cases, for the issue of processes and for obtaining copies of documents and other matters;
- (r) the manner of borrowing moneys by a Gram Sabha and borrowing limits; and
- (s) any other matter that is to be or may be prescribed.

(3) Here enter the usual provision for laying rules before Parliaments/State Legislature.

46. *Power to make regulations.*—(1) The Gram Sabha may, with the previous sanction of the Government, make regulations not inconsistent with this Act or the rules made thereunder, to provide for all matters for which provision is necessary for the purpose of giving effect to the provisions of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may provide for—

- (a) the meetings of the Gram Sabha, the conduct of business thereat and the procedure for disposal of its business;
- (b) the manner of election of the members of the executive committee, and the powers, duties and functions of the executive committee;
- (c) the powers and duties of the President and the Secretary;
- (d) the circumstances and the manner in which the President may be removed from office;
- (e) the manner in which and the term for which casual vacancies in the executive committee or any other committee or in the office of the president of the Gram Sabha shall be filled;
- (f) the constitution of standing and *ad-hoc* committees, their powers and duties, the term of office of the members and the conduct of their business and the circumstances and the manner in which a committee may be dissolved or reconstituted;
- (g) the appointment, remuneration and conditions of service of the Secretary and other officers and employees of the Gram Sabha and the circumstances in which they may be removed from service and the manner of such removal;
- (h) the maintenance of the accounts of the Gram Sabha;
- (i) the principles to be followed in the allotment of land and the levy of rent, fees or other charges for such allotment;

- (j) the principles to be followed in recovering any payments due to the Gram Sabha, on account of encumbrances or of any land revenue, rent, cesses, rates and other dues on the date of vesting of any land, from the owner concerned who donated the land by way of gramdan;
- (k) the manner in which lands, if any, set apart for cultivation by the Gram Sabha itself shall be cultivated; and
- (l) any other matter for which provision is necessary for the purpose of enabling the Gram Sabha to discharge its duties and functions under this Act.

47. *Supersession of a Gram Sabha.*—(1) If, in the opinion of the Government a Gram Sabha—

- (a) is not competent to perform or persistently makes default in performing the duties assigned to it by this Act, or
- (b) exceeds or abuses the powers assigned to it under this Act, or
- (c) is not functioning in a manner consistent with the provisions of this Act or the rules framed thereunder.

the Government may, by notification in the Official Gazette, stating the reasons for its order declare that Gram Sabha to be incompetent or in default or to have exceeded or abused its power or to have not been functioning in a manner consistent with the provisions of this Act or the rules framed thereunder, as the case may be, and supersede it for such period not exceeding one year at a time:

Provided that before any such notification is issued, the Gram Sabha concerned shall be given a reasonable opportunity of showing cause why the proposed declaration should not be made.

(2) On the supersession of a Gram Sabha under sub-section (1),—

- (a) the President and members of all committees constituted by the Gram Sabha shall from the date specified in the notification vacate their office;

- (b) the officers and employees of the Gram Sabha shall cease to hold office with effect from the date of supersession provided that any person appointed by the Government under sub-clause (c) may direct the continuance in office of any of the officers or employees of the Gram Sabha for such time and on such terms as he may specify;
- (c) all the powers and duties of the Gram Sabha or any committee thereof, shall, during the period of supersession be exercised and performed by such person or persons as the Government may from time to time appoint in this behalf;
- (d) all properties vested in the Gram Sabha and any balance of the Gram Nidhi, shall be vested in and such of its liabilities as may have been incurred in the discharge of its legitimate functions or which have been incurred in the course of normal duties performed by the Gram Sabha concerned, shall be transferred to the Collector or the Deputy Commissioner of the district, as the case may be, who shall take such arrangements, as may be deemed necessary, until the expiration of the period of supersession; and
- (e) the Gram Sabha Adalat established for the Gramdan village concerned, shall cease to function and all the pending cases and suits shall stand transferred to the courts of competent jurisdiction.

(3) On the expiration of the period of supersession specified in the notification, the Government may, if in its opinion it is so necessary, extend the period of supersession for such further term, as it may consider necessary, but not exceeding one year at a time, and on the expiration of the period of supersession either as originally specified or extended, the Gram Sabha shall resume its functions and elect its president and constitute the committees, and the Government shall establish the Gram Sabha Adalat, in the manner provided in this Act:

Provided that the Government may, at any time before the expiration of the period of supersession, withdraw any notification issued under sub-section (1).

(4) The income derived from the Gramdan village during the period of supersession, shall first be utilised towards the cost of management during the period of supersession and liquidation of liabilities of the Gram Sabha and the balance shall be credited to the Gram Nidhi.

ANNEXURE XI

Planning Commission

New Delhi:

July 1964

My dear

SUBJECT:—*Gramdan Legislation.*

Kindly refer to my D.O. No. 9/3/64-LR dated 10th June, 1964 forwarding a copy of a draft Gramdan Bill and requesting you to kindly take necessary steps for enacting the Gramdan Legislation. It was mentioned that the Bill would need to be suitably modified by your Government in the light of local conditions and needs and the laws and tenures prevailing in your State.

2. Since the intention is to facilitate the development of gramdan villages, you would, doubtless consult the State Sarvodaya Mandal (or where the Sarvodaya Mandal does not exist, the statutory State Bhoodan Board) and take their wishes into account so that no difficulties are experienced in organising the work.

3. I have discussed this question further with Acharya Vinoba Bhave and some leading Sarvodaya workers and the following additional points which merged as a result of these discussions, may also be kept in view in preparing the State gramdan legislation:

- (i) Provision may be made for constituting a Statutory Board to be known as the State Gramdan Board which would be responsible for (a) training of constructive workers to be assigned to Gramdan villages, (b) speeding up of legal and other formalities connected with gramdan villages, and (c) study and general evaluation of experience in the development of gramdan villages. The Board may consist of 5 to 9 members. As in the case of Statutory Bhoodan Boards, the members of the Gramdan Board may also be appointed with the approval of Acharya Vinoba Bhave.

- (ii) In clause 4(1) of the draft Gramdan Bill, it has been provided that an owner of land may donate all his land in a village subject to the condition that he shall hold 19/20th of those lands as gramdan kisan. It is not intended that this condition (that the donor would retain 19/20th of his land as gramdan kisan), should be interpreted in a rigid manner. The provision may be flexible to cover cases where the owner voluntarily keeps for himself a smaller fraction than 19/20th of the land. A draft amendment* is attached for your consideration.

4. It is essential to take up comprehensive programme for social and economic progress as soon as a village is donated in Gramdan. If these programmes are not undertaken promptly or pursued speedily the spirit of mutual help and the feelings of enthusiasm and cohesion among the village people generated by the Gramdan movement would tend to become weak. It would be a help if instructions could kindly be issued to Development Commissioner, District Officers, Block Staff and other staff connected with agricultural and industrial development and to Panchayati Raj Institutions to pay special attention and to give high priority to the development of gramdan villages. I shall be grateful if a copy of the instructions issued could kindly be sent to me for information.

Yours sincerely,
(Shriman Narayan)

To
All Chief Ministers

*In Sub-clause (1) of clause 4 of the draft Gramdan Bill, for the words "he shall hold nineteen—twentieth of the extent of these lands", the words "he shall hold not more than nineteen—twentieth of extent of those lands" shall be substituted.

Shriman Narayan

No. 19/63-LR

Member, Planning Commission

November, 1963

My dear

A Conference was held on 2nd and 3rd November 1963 to consider various questions relating to development of Gramdan villages and Bhoodan lands and problems relating to settlement of landless agricultural workers. The Conference was attended by the Minister of Community Development and Co-operation, official representatives of various Ministries and State Governments and leading non-official workers including Shri J. P. Narayan. I am enclosing a copy of the recommendations* made at this Conference. In particular I would like to draw your attention to the need for expediting Gramdan legislation, taking steps for speedy registration of Bhoodan lands and for the development of Bhoodan lands and Gramdan villages and effective implementation of schemes for survey and categorisation of wastelands, resettlement of landless agricultural workers and Implementation of Uppal Committee's recommendations. I shall be grateful if you would kindly let me know at an early date the action your State Government propose to take on these recommendations.

Yours sincerely,

Sd/-

[* pp. 86-94]

No. 20-113/63-MY

Government of India

MINISTRY OF FOOD AND AGRICULTURE

(Department of Agriculture)

New Delhi-2, the 8th April, 1964

Shri I. P. Mathur, Deputy Secretary to the Government of India.

To

The Secretaries, All State Governments, Agriculture/Revenue Departments.

SUBJECT:—*Pattern of financial assistance for the Centrally sponsored schemes for (i) Resettlement of landless agricultural labourers and (ii) Survey and Categorisation of Culturable Wastelands in small blocks.*

Sir,

As the State Governments are aware, the Government of India have had under consideration the question of raising the ceiling of Central assistance for the Centrally sponsored schemes for the resettlement of landless agricultural labourers and Survey and Categorisation of small blocks. It has been decided that the pattern of assistance for these Centrally sponsored schemes would be as follows from 1964-65:—

<i>Name of the scheme</i>	<i>Revised pattern</i>
A. Resettlement of landless agricultural labourers.	
(a) Cost of reclamation	The Central Govt. will share the grant and loan portions of the cost of reclamation equally with States subject to a ceiling of Rs. 300/- per acre of land allotted (The ceiling of Rs. 150/- laid down in this Ministry letter No. 13-1/62-MY, dated 7-4-62 is raised to Rs. 300/-).

<i>Name of the scheme</i>	<i>Revised pattern</i>
(b) Expenditure on initial expenses involved in resettlement proper.	Grant 75% Loan 25% subject to a ceiling of Rs. 750/- per family. (The ceiling of Rs. 500/- per family is raised to Rs. 750).
B. Survey and categorisation of culturable wastelands in blocks of less than 250 acres.	Grant 100%—subject to a ceiling of Rs. 50,000/- per district. (This will also be applicable to the schemes that had already been sanctioned under the earlier pattern, wherever found necessary)
C. Colonisation Schemes.	
(a) Cost of reclamation	The Central Govt. will share the grant and loan portions of the cost of reclamation equally with States subject to a ceiling of Rs. 300/- per acre of land allotted.
(b) Expenditure on colonisation.	Central assistance would be available to the extent of 100%—75% as 'grant' and 25% as 'loan' subject to a ceiling of Rs. 5,000/- per family.

2. The State Plan Schemes for the resettlement of landless agricultural labourers undertaken by the State Governments will be eligible to get financial assistance according to the revised pattern.

3. The scheme for resettlement has so far made very little progress and only small amounts have been spent out of the provision of Rs. 7 crores during the past three years. It is requested that the State Governments may now ensure that about one lakh families are actually settled during the next two years.

Yours faithfully,

Sd/- I. P. Mathur,

Deputy Secy. to the Govt. of India.

Copy to:—

1. Planning Commission (Shri A. N. Seth, Director of land reforms), New Delhi.

2. Ministry of Finance (AFI Branch) with reference to their U.O. No. 1058 AFI dated the 1st April, 1964.

3. Directorate of E. & S. New Delhi.

Sd/.

Deputy Secretary.

ANNEXURE XIII (contd.)

No. 20-113/63-MY

Government of India

MINISTRY OF FOOD AND AGRICULTURE

(Department of Agriculture)

New Delhi-2, the 22nd April, 1964

FROM

Shri A. C. Jain, Under Secretary to the Government of India.

To

The Secretaries, All State Governments, Agriculture/Revenue Departments.

SUBJECT:—*Pattern of financial assistance for the Centrally sponsored schemes for (i) Resettlement of landless agricultural labourers and (ii) Survey and Categorisation of Culturable Wastelands in small blocks..*

Sir,

I am directed to refer to this Ministry's letter of even number dated the 8th April, 1964, communicating therein the liberalised pattern of Central assistance for the above Centrally sponsored schemes and to say that some doubts have arisen regarding the maximum Central assistance that would be available for the colonisation schemes. It is clarified that the ceiling of Rs. 5,000/- per family indicated in the letter referred to above will include the cost of reclamation. The Central Government will bear 100 per cent expenditure on colonisation (75 per cent 'grant' and 25 per cent 'loan'). Beside this, the Central Government will share the grant and loan portions of the cost of reclamation equally with States subject to a ceiling of Rs. 300/- per acre of land allotted. The total cost should not exceed Rs. 5,000/- per family.

Yours faithfully,

Sd/- A. C. Jain,

Under Secretary to the Govt. of India.

Copy to:—

1. Planning Commission (Shri A. N. Seth, Director of land Reforms), New Delhi.

2. Ministry of Finance (AFI Branch).

3. Dte. of E. & S., New Delhi.

Sd/-

Under Secretary.

**MINISTRY OF WORKS, HOUSING AND
REHABILITATION**

D.O. No. 10(25)/64-HM/161

NEW DELHI

31st January, 1964.

My dear,

As you are aware, in the Third Plan (Chapter XXXIII-Para 41) Rs. 5 crores out of Rs. 12.7 crores provided under the Village Housing Projects Scheme have been earmarked for assisting States in securing house sites for landless agricultural workers. The subject was discussed at the Sixth Housing Ministers' Conference held at Bhubaneswar in November 1961 and after consultation with the Planning Commission, the Ministry of Community Development and Co-operation and other Ministries concerned, detailed instructions were issued in our letter No. 23(11)/61-HII, dated 4th September, 1962 requesting the State Governments to draw up their own programmes for development and provision of house sites to landless agricultural workers which could be readily implemented through Panchayat Samitis and Village Panchayats. According to the pattern of assistance indicated in the letter, the State Governments would get from the Centre the funds utilised by them for this purpose in the form of outright grants. The replies that we got from the State Governments show that the matter is still under their consideration.

2. This subject was discussed in a Conference convened at Delhi by the Planning Commission on the 2nd and 3rd November 1963 to consider the development of Gramdan villages and Bhoodan lands and the problems relating to settlement of landless agricultural workers, and it was decided that my Ministry should, in consultation with the State Governments take necessary measures for implementing speedily the scheme of Rs. 5 crores for provision of house sites to landless agricultural workers. Shri Shriman Narayan, Member of the Planning Commission, while stressing the importance of the scheme has urged that it would be desirable to give priority to the

work in Gramdan villages where the necessary land required for house sites cannot be found out of the land donated under Gramdan. We agree with him that priority should be given to such Gramdan villages in addition to other villages enumerated in para 4(5) of the letter dated 4th September, 1962 referred to above.

3. I shall be grateful if you kindly look into the matter and ensure that necessary steps are taken to implement the scheme without any further delay.

Yours sincerely,

Sd./- Mehr Chand Khanna,

To

Housing Ministers of all State Governments.

No. 20-34/63-GMF (Co.)

Government of India

MINISTRY OF FOOD AND AGRICULTURE

(Deptt. of Agriculture)

New Delhi, the December, 1963.

From

Shri V. Balasubramaniam,
Under Secretary to the Government of India.

To

All State Governments/Union Territories (except Manipur, Tripura, NEFA, Nagaland, Pondicherry, Goa, Daman, Diu and Andamans, Delhi, Jammu & Kashmir and Punjab).

SUBJECT:—*Gramdan Areas—Special attention in regard to implementation of plan schemes.*

Sir,

I am directed to say that in a Conference held in the Planning Commission on the 2nd and 3rd November, 1963 to consider the development of Gramdan villages and other matters, it was *inter-alia* recommended that while implementing the various Plan schemes connected with intensive agriculture, etc. special attention should be devoted to the Gramdan areas which evince a spirit of self-reliance, community effort and mutual co-operation.

2. The total number of Gramdan villages in the country is now estimated to be of the order of about 6800 and it is reported that this number includes not only villages located in the tribal areas of different States but also villages which possess rich land and are inhabited by progressive farmers. The number of Gramdan villages so donated in your State up to 31st March, 1963 is reported to be ——. It is considered that if special attention is given to intensive agriculture in these villages it would result not only in the economic betterment of the people of these villages but also in an all round progress and development. As the State Governments and

Union Territories are aware the intensive programme is already being taken in regard to a number of commodities, rice, millets etc. and these programmes may provide the needed special experience and special attention for taking up suitable schemes in Gramdan villages. I am, therefore, to request that the State Governments/Union Territories may kindly consider the recommendation made by the aforesaid Conference and take necessary action to implement.

Action proposed to be taken may also be intimated.

Yours faithfully,

Sd./- V. Balasubramaniam,

Under Secy.

Copy forwarded to:

1. Planing Commission, New Delhi with reference to Member (Agri.) D.O. No. 19/63-LR dated 3rd December, 1963 to the Minister of Food and Agriculture.
2. The Directorate of Economics & Statistics, New Delhi.
3. The Directorate of Extension, New Delhi.

Sd./- V. Balasubramaniam,
Under Secy.

No. 5/7/63-P.R.

Government of India

MINISTRY OF COMMUNITY DEVELOPMENT AND
COOPERATION

(Deptt. of Community Development)

Krishi Bhavan, New Delhi

December 12, 1963.

To,

The Development Commissioners of all States.

SUBJECT: - *Development of Gramdan villages and Bhoodan lands.*

Sir,

The development of Gramdan villages and Bhoodan lands was recently discussed at a meeting held on the 2nd and 3rd November, 1963, which was attended by the representatives of the Planning Commission, the Ministry of Community Development and Cooperation, the Akhil Bharat Sarva Seva Sangh and the State Governments. While reviewing the progress of the distribution of Bhoodan land it was found that about 17 lakh acres of Bhoodan lands remained undistributed due to delays in the verification of titles. The Revenue Secretaries of the State Governments who were present at the meeting were requested to expedite this process, but it was felt that, if Panchayati Raj bodies could take interest in this work, the pace of progress could be quickened. It is accordingly requested that in those States where Panchayat Samitis and Zila Parishads have been set up, instructions may be issued to ensure that they extend their assistance to the Bhoodan Boards in distributing the remaining Bhoodan lands in their respective areas.

2. The Conference was also of the view that the Panchayati Raj institutions should take active interest in the promotion and development of the Gramdan movement which has immense potentialities for the solution of difficult problems relating to higher production, full employment and for ensuring minimum living standards for the weaker sections of the population. The Conference also recommended that special attention should be devoted to the Gramdan areas which

evinced a spirit of selfreliance, community effort and mutual cooperation, while implementing various plan schemes connected with intensive agriculture, cattle development, rural industries, rural works programme, as also the organisation of the Village Volunteer Force.

3. It is requested that necessary instructions in the matter may kindly be given to the Panchayati Raj institutions in the State. It may also kindly be ensured that the extension agency in the Blocks provides the fullest assistance and co-operation to the workers of the Akhil Bharat Sarva Seva Sangh and other agencies working in Gramdan villages, towards the implementation of the recommendations referred to above.

4. The receipt of this letter may kindly be acknowledged. The action taken by you in the matter may kindly be intimated to this Ministry.

Yours faithfully,
Sd./- Shiromani Sharma,
Under Secretary.

No. 20-113/63-MY

Government of India

MINISTRY OF FOOD & AGRICULTURE

(Department of Agriculture)

New Delhi-2, the 24th January, 1964.

From

Shri A. C. Jain, Under Secretary to the Govt. of India.

To

The Secretary,

Revenue Department (All State Govts.).

SUBJECT:—*Meeting on development of Gramdan villages and bhoodan lands and problems relating to settlement of landless agricultural workers held on the 2nd and 3rd November, 1963.*

Sir,

I am directed to say that a meeting of the Central Advisory Committee on Agricultural Labour and Secretaries of the State Departments or Department concerned with resettlement, colonisation, survey and reclamation was held in New Delhi on the 2nd and 3rd November, 1963, to consider matters relating to development of gramdan villages, bhoodan land and problems relating to settlement of landless agricultural workers. One of the recommendations arrived at the meeting was that "Government wastelands in gramdan villages should be handed over to Gram Sabhas instead of being distributed to individual landless labourers". It is, requested that the State Governments may kindly keep this recommendation in view while distributing government wastelands in Gramdan villages.

Yours faithfully,

Sd./- A. C. Jain.

Copy to Planning Commission for information.

No. F. 12/89/63-SCT.III (A)

Government of India

MINISTRY OF HOME AFFAIRS

From

Shri M. K. Venkateshan,

Deputy Secretary to the Government of India.

To

New Delhi-11, the 16th January, 1964.

SUBJECT:—*Development of Gramdan Villages and Bhoodan land.*

Sir,

I am directed to state that the Planning Commission had convened a meeting to consider the matters relating to the development of Gramdan villages and Bhoodan land and the problems about the settlement of landless agricultural workers. As a large number of Gramdan villages lie in the tribal areas, it was recommended at the above meeting that while opening new Tribal Development Blocks, preference should be given to the Gramdan Villages. In pursuance of this recommendation it is requested that in future while opening new Tribal Development Blocks, on the criteria already accepted, it may kindly be ensured that priority in point of time is given to those which contain Gramdan Villages. The Government of India would be grateful if a list of the Tribal Development Blocks already opened and those to be opened hereafter, which contain Gramdan villages, is furnished to this Ministry as early as possible.

Yours faithfully,

Sd/- M. K. Venkateshan,

Deputy Secy. to the Government of India.

Dated the 16th January, 1964.

No. F. 12/89/63-SCT-III(A)

Copy forwarded for information to the Planning Commission New Delhi with reference to their Circular letter No. 19/63-LR dated the 22nd November, 1963.

Copy forwarded for information to the Ministry of C.D. & C. (Department of C.D.) New Delhi.

Sd/- M. K. Venkateshan,
Dy Secy. to the Government of India.

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